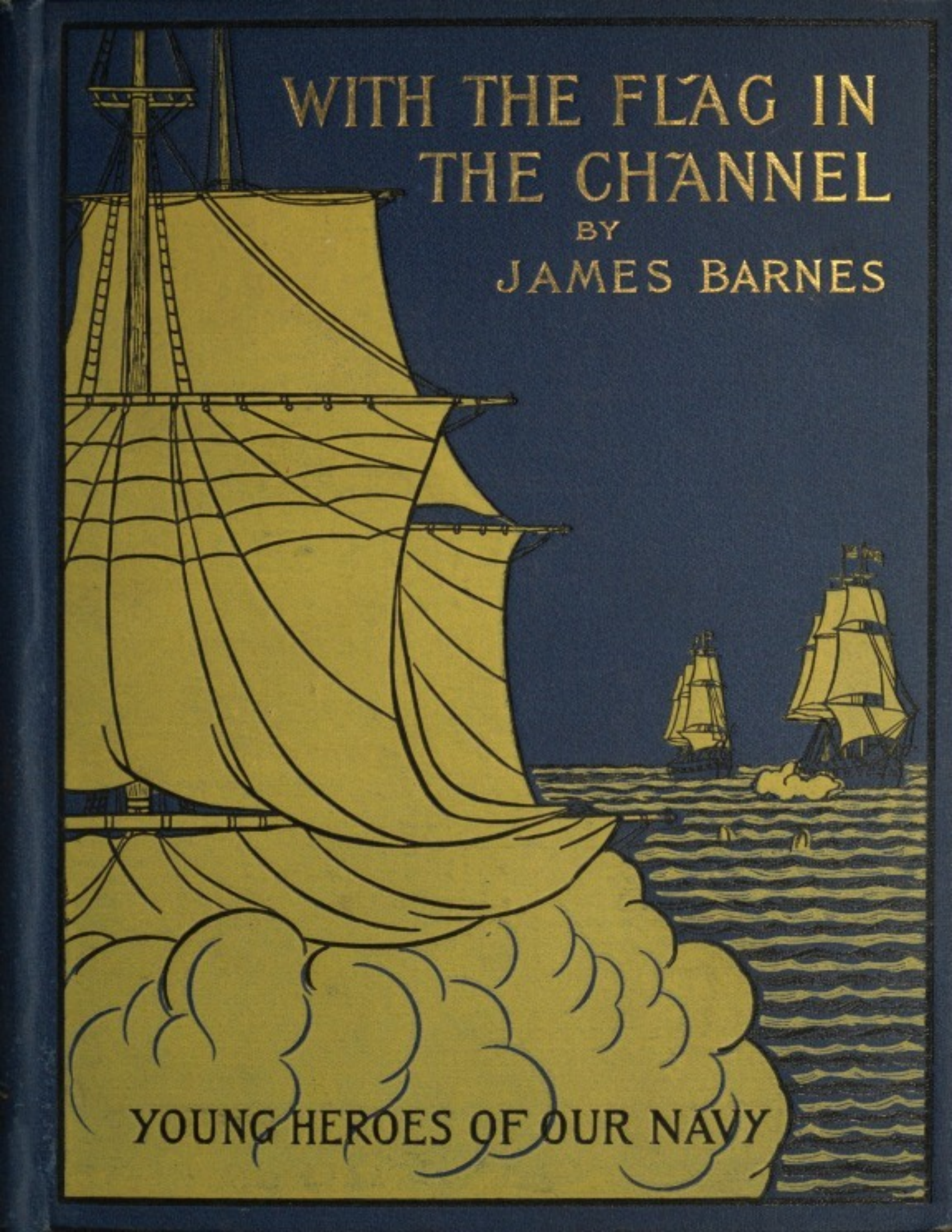
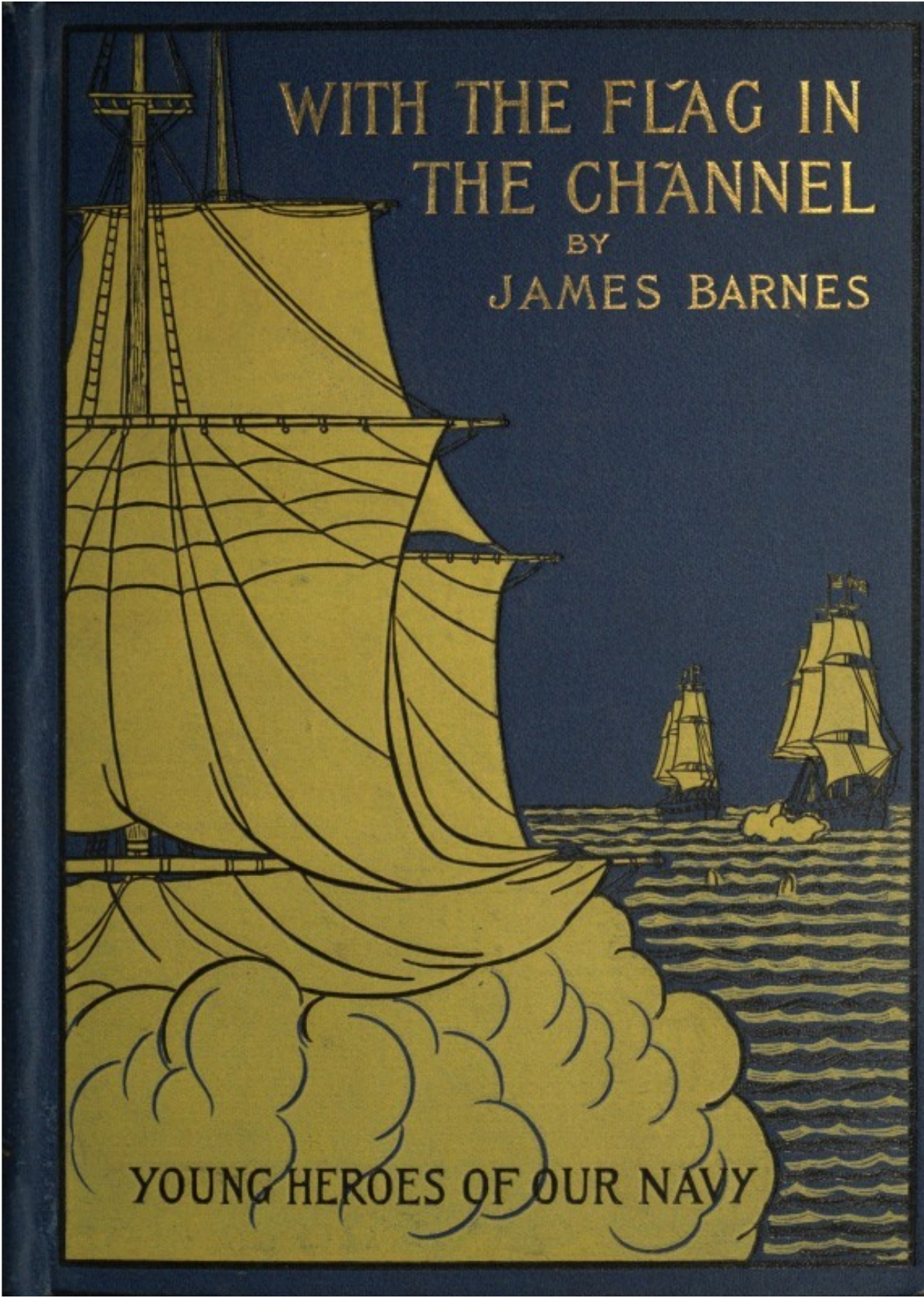




WITH THE FLAG IN THE CHANNEL

BY
JAMES BARNES

YOUNG HEROES OF OUR NAVY



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Title: With the Flag in the Channel; or, The Adventures of Captain Gustavus Conyngham

Author: James Barnes

Illustrator: Carlton T. Chapman

Release date: August 16, 2016 [eBook #52816]
Most recently updated: October 23, 2024

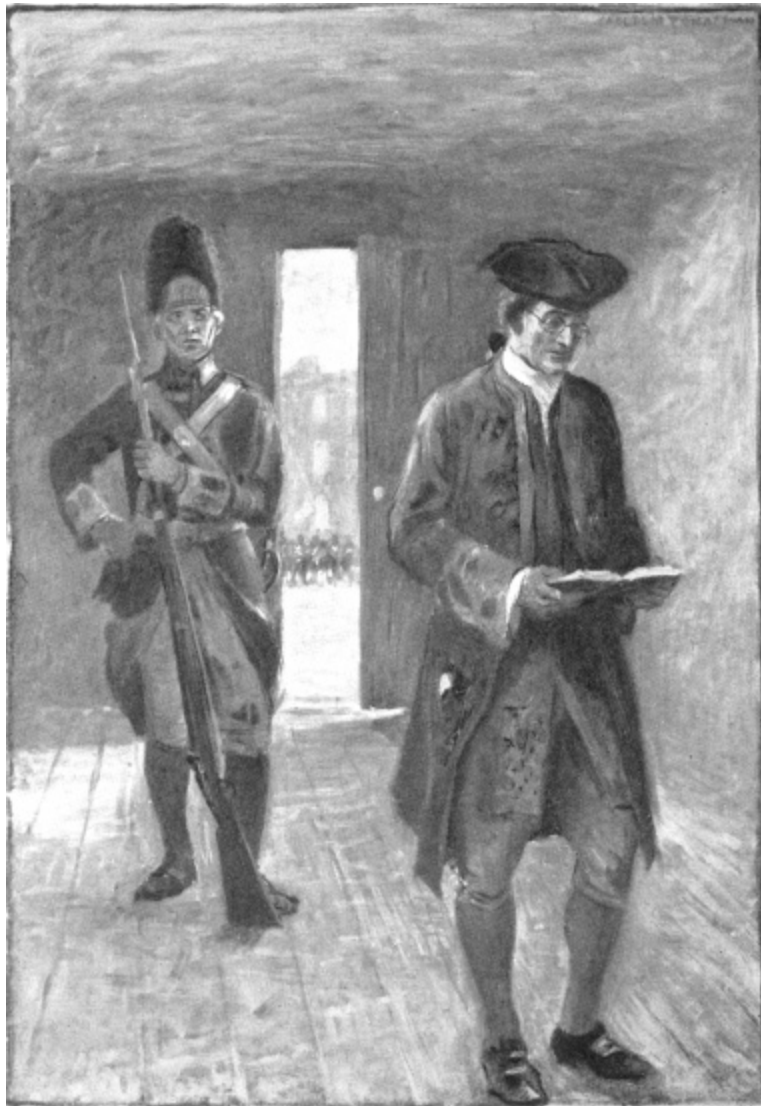
Language: English

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*** START OF THE PROJECT GUTENBERG EBOOK WITH THE
FLAG IN THE CHANNEL; OR, THE ADVENTURES OF CAPTAIN
GUSTAVUS CONYNHAM ***

WITH THE FLAG IN THE CHANNEL



He was past the sentry now.

(See [page 141](#).)

WITH THE FLAG IN THE CHANNEL

OR, THE ADVENTURES OF
CAPTAIN GUSTAVUS CONYNGHAM

BY
JAMES BARNES

AUTHOR OF MIDSHIPMAN FARRAGUT, THE HERO OF THE ERIE,
COMMODORE BAINBRIDGE, ETC.

ILLUSTRATED BY CARLTON T. CHAPMAN



NEW YORK
D. APPLETON AND COMPANY
1902

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Published September, 1902

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WITH THE FLAG IN THE CHANNEL



CHAPTER I

THE PROJECT

Mr. James Nesbit, merchant of Philadelphia, stood leaning against the long, polished desk at the farther end of which two clerks were hard at work copying entries into a ponderous ledger. On Mr. Nesbit's face there was a look of preoccupation. He drew a deep breath, rapped nervously with his finger on the desk, and, reaching behind his ear, under the folds of his heavy white wig, threw down a large quill pen. Then, taking a big silver snuff-box out of his pocket, he helped himself neatly to a pinch of snuff. Having done this he waited anxiously, as if the expected sneeze might jar his mind into better working order. It seemed to answer, for, after a preliminary rumbling gasp and an explosion, he blew his nose violently, and turning addressed one of the clerks.

"If Mr. Conyngham comes during the next few minutes, tell him I shall be at 'The Old Clock' coffee-house", he said.

With that he took down a great cloak from one of the wooden pegs that lined the wall and stepped to the door. It was raining torrents, and the gutters were running full. With an agility that was surprising in so heavy a man and one of his years, he gathered the cloak about him, and picking up his heels ran swiftly around the corner. Just as he turned he collided with another man much younger and slightly smaller, who was hurrying in the opposite direction. They grasped each other in order to keep their feet, and at once burst into laughter.

"Well met, indeed, David!" cried Mr. Nesbit, even before he had uttered a word of apology, "but you've well-nigh knocked the breath out of me."

“And me also,” responded the smaller man. “You charged around the corner like a squadron of horse. Why such a hurry, sir?”

“A short explanation,” was the answer, “’tis past my meal hour, and I had waited for you till I could stand it no longer. Years ago, methinks, I must have swallowed a wolf, and at feeding hours he’s wont to grow rapacious and must be satisfied. Come, here we are at ‘The Old Clock.’ In with us out of the rain and we’ll satisfy the ravenous one.”

As he was speaking Mr. Nesbit almost pushed his friend ahead of him through a doorway and entered the grill-room of the tavern. A mingled odor of roast beef, ale, and tobacco smoke saluted their nostrils, and the proprietor, his wide waistcoat covered by a gleaming new apron, greeted them cheerfully.

“A wet day, gentlemen,” he observed, “but good weather for the farmers.”

“And for ducks and geese and all such,” interjected Mr. Nesbit, “but I would have you observe, Mr. Turner, that I am a dry-goods merchant and wish the bad weather would confine itself to the country.”

As he spoke he took off his heavy cloak with one hand, and relieved his friend of one almost as large, from which the water was dripping on to the sanded floor. Giving instructions to the landlord that they should both be hung by the fire where they might dry, he turned and glanced about the room, nodding to two or three men who sat at a table in the corner.

“No one but our friends here to-day,” he remarked; “we won’t join them, however. Let us sit apart, for there is much I would discuss with thee.”

“And there is much I have to say also,” returned the other, “that is not for the general ear. Is the post in?”

“Late on account of the roads, I take it,” was the response, “but there will be important news from Boston and New York, I warrant you. But now to feed the wolf! A most inconvenient beast at times, but most easily placated. Ah! there’s a cut of beef for you, and now some of your best mulled ale, Mr. Turner, and thanks to you.”

As if he saw that it was useless to begin any conversation until Mr. Nesbit's personal menagerie was quieted, the smaller man said nothing, and for some minutes the two ate in silence. At last, with a sigh of pleasurable relief, James Nesbit pushed himself back from the table and set down the empty tankard with a bang.

"Your news first," he said. "What is it, Friend Conyngham?"

"I have been successful," was the rejoinder. "She's not very large, but is prepossessing to look at, and they say a good one in smooth water. Tho' only a coaster brig we think she'll serve our purpose, and as no time was to be lost I have concluded the bargain. She is ours in joint ownership."

"You have been deft, David," said Mr. Nesbit, "but there is a matter of more importance, in view of the shortness of the time. Have you found the man?"

"The very one; at least believe me that I am influenced but by my best judgment. You've heard me speak of him often. My kinsman, Gustavus. He is just in yesterday from a voyage to the West Indies, with a load of fruit, rum, and molasses."

"The same young seaman who married Mistress Anne Hockley some time ago?"

"The same. The captain of the Molly."

"I would he had brought in a cargo of powder and cannon-balls. Aye, or saltpeter and cloth and medicines. We'll need them, for mark my words _____"

"Hush," interposed Mr. Conyngham suddenly. "Your old enemy, that tory, Lester, and Flackman the lawyer, have just entered. They are a-prowl for news, I take it."

Mr. Nesbit lowered his voice.

"The time will come when we can talk loudly anywhere," he said. "You may call me a 'hothead,' but after what has been happening up Boston way there is no drawing back. When shall we see Captain Conyngham?" he asked, "for the longer we put the matter off the greater the risk will be."

“This very afternoon. He informed me there were some pressing matters to be attended to, and that he would repair to your office. I have given him but few particulars, but he is eager for the undertaking. He knows of the vessel, too, and pronounces her fit for it.”

As he spoke the younger man turned and looked out of the window, against which the wind was driving the large drops of rain.

“Egad, sir!” he exclaimed. “As I am living, who comes around the corner but the very man himself! I will stop him at the door and fetch him in.”

As he spoke Mr. Conyngham hurriedly rose and, opening the door, gave a seaman’s hail, followed by a wave of the hand.

The inrush of fresh air caused all the men seated about the room to turn suddenly, and they were just in time to see the entrance of a short but well-knit figure dressed in a sailor’s greatcoat, from under which appeared a pair of heavy sea boots. He threw a shower of water from his sleeves and his hat as he grasped his cousin’s hand.

“Homeward bound!” he cried. “But any port out of the storm.”

“Well, then, come in and cast anchor beside the table here. Off with your wet things and be comfortable. You know our friend, Mr. Nesbit.”

“I knew your father and all your family,” spoke the elder man who had been addressed, rather ponderously.

“By the powers, you know half the County of Donegal, then, and more than I do,” laughed the sailor, with a touch of a rich rolling brogue. “But years ago,” he added, “I met you, sir, when I was with Captain Henderson, who was in the Antigua trade. I was but a slip of a lad then, and no doubt you have forgotten me.”

“No,” responded Mr. Nesbit, “I have a good memory, and, what is more to the point, I remember what Captain Henderson said of you.”

“It was his only fault,” returned the sailor, shaking his head, “the loose tongue he had! But perhaps he spoke in the heat of anger, and might think better of it.”

“Oh, it was nothing to be ashamed of,” replied Mr. Nesbit, laughing in his turn.

“Oh, an amiable enough man at times; perhaps I wronged him then. He was always a great palaverer.”

The young captain had seated himself by this time, and after the last speech he turned and looked about the room. His glance fell for a moment upon the two men, Lester and Flackman, who had been referred to by Mr. Nesbit in his conversation a few minutes previously. He half nodded toward them, and the action called his cousin’s attention.

“So, Captain Gustavus, you know our friend Lester,” said David quickly.

“Just well enough to keep an eye on him,” was the rejoinder. “I saw him talking with the mate of that old Dutch Indiaman that lies astern of the Charming Peggy. I judged from the way he was talking that she was the subject of conversation, so I hove to and asked them a few silent questions.”

“What did you do that for?” asked David Conyngham. “Silent questions!”

“Sure, to find out how little they know,” answered the captain roguishly. “It is as good to know how little a man knows as how much, sometimes.”

“And what was that little?” asked Mr. Nesbit.

“That he knows who bought her in Baltimore,” was the reply.

“Did he say so?”

“Not in words spoken to me. For he would have denied that he had any interest in the matter. But by means of a little trick that I learned when a schoolboy, and that I have cultivated since for my amusement. It served me a good turn more than once. I got it from an Irish schoolmaster in Letterkenny. It was the one thing he taught me without knowing how he did it. Whisht,” went on the captain, “listen, and I’ll prove it to ye. There’s a man sitting with his back to you, but facing me. Can you hear what he says?”

“He’s at the other end of the room,” responded Mr. Nesbit. “No man could hear what he says at that distance.”

“But I can see what he says,” answered Conyngham, “and he has just uttered a speech that would make King George shudder. Being a believer in soft language I will not repeat it. It’s all in watching a man’s lips. Sure this old schoolmaster was deaf as a post, but he could hear what you were thinking of if you only whispered it. Many a good lickin’ I got before I was sure of it. But now to business,” he added, “if you’re going to talk of it this day. For I must confess to you, gentlemen, that I have a wife waiting for me, and while it’s pleasant here, I’d like to get under way for home.”

“Well, Mr. Conyngham,” returned Mr. Nesbit, who was a trifle upset by the young officer’s loquaciousness and yet his directness, “we want you to take command of the Charming Peggy. That much your cousin has informed you. You are to pick a crew as quick as possible and to sail for Holland.”

“With what cargo?” asked the captain.

“In ballast,” was the reply. “It’s of no importance what you bring over; it’s what you shall bring back.”

“And that would be easy guessing, sir. I could write it out blindfolded.”

“Perhaps so; but of that more to-morrow, when we will meet in my counting-house. We won’t detain you longer.”

As Captain Conyngham was slipping on his still wet greatcoat, he leaned forward and spoke softly to the others, who had risen, but were standing by their chairs:

“Our fine gentlemen yonder have put two and two together,” he said, “as why shouldn’t they? And the man with the fat jowls, whom you call ‘Lester,’ has just made a remark that it is a good thing to remember, for he has just said that he would keep an eye on the Charming Peggy, and mark the time of her sailing. By the same token there are two English men-o’-war just off the capes of the Delaware. I sailed by them in the fog.”

“Forewarned is forearmed, Captain Conyngham,” returned Mr. Nesbit, “and we’ll keep an eye on Mr. Lester.”

“If he comes down by my ship let’s pray he’s a good swimmer,” responded the captain, jamming his heavy hat down over his black hair and drawing his queue from under his coat collar. With that he pulled his sea boots well up his legs and went out into the storm.

For a minute Mr. David Conyngham and the senior partner remained silent, and then the latter spoke.

“An odd character,” he said suggestively, “this kinsman of yours. Might I say without any offense, that he has a certain amount of assurance.”

“Call it self-reliance better,” responded David, “it was always so with him as a boy. But mark you this, sir, behind it all he has the courage that is daunted at nothing, and ask any seaman with whom he has sailed if he knows of a better or more resourceful man in emergencies.”

“He comes of good stock,” rejoined Mr. Nesbit, “eh, David?”

The younger man caught the elder’s twinkling eye and bowed.

“We’ve all been kings in Ireland,” he returned, “and to quote Gustavus, ‘surely one king is as good as another.’ But the news that you had for me has not been told. What is it?”

“A secret of state, my friend, and one that must be kept as quiet as the grave.” He leaned toward Conyngham as he spoke. “Our good Dr. Franklin is going to France to represent the cause of the colonies at the court of the French king, and by the time he does so,” he added, “we shall no longer be in the category of ‘rebels,’ for there are great doings afoot.”

“I know, I understand,” answered the younger man, his face lighting. “God prosper the new nation!”

“God prosper the new nation,” repeated Mr. Nesbit, “and confusion to the enemies of liberty!”

The storm had abated suddenly, and in a few minutes a ray of warm spring sunlight pierced the cloud. Mr. Nesbit and the junior partner rose, and arm in arm went out into the street.

The glances of the tory and Flackman the lawyer followed their exit, and as they disappeared the two men fell to whispering earnestly.

CHAPTER II

THE VOYAGE OF THE CHARMING PEGGY

It was lucky that the water was smooth and that the Charming Peggy was on her best tack, otherwise the frigate that was now dropping fast astern would have overhauled her ere she had been well clear of the capes. The gun that the Englishman had fired had had a ring of disappointment in it, an admonition more of warning than of threat. Captain Conyngham, looking back over the low taffrail, waved his hand as he saw her haul her wind.

“Good-by to you, my petty tyrant,” he cried half aloud. “I hope I’ve seen the last of the likes of you.”

The crew, whose expressions had changed during the short chase from anxiety to hope, and from hope to satisfaction, looked up at the little quarter-deck where the captain was pacing to and fro with firm, springing steps. They were a motley lot, this crew, mostly American sailormen from Baltimore, a half-Spaniard from the West Indies, and two strong fellows who had about them the unmistakable marks of man-of-war’s-men. In all there were but fifteen, including the cook, a big, curly-haired Virginia negro with a rolling eye and a soft, high-pitched voice.

The young captain had been more than satisfied with the way they had jumped at his orders during the few exciting moments when it was a moot question whether he would be able to cross the frigate’s bows at a range beyond gunshot. He had just managed to do it and no more, but it had proved to his satisfaction that, given a smooth sea and a light wind, the Charming Peggy could outfoot any of her ponderous pursuers. He well knew that the dangerous time would soon come when in English home waters, and that there stratagem, as well as speed, would have to be resorted

to if occasion demanded. He could scarcely hope to reach a Dutch or French port without some further adventure, and to tell the truth he was in a measure prepared for a certain form of it. On the forecastle rail were mounted two swivel guns, and amidships a short six-pounder. Not a formidable armament, to be sure, but sufficient, if at close range, with the element of surprise added, to account for any small merchant vessel that the Peggy might fall in with.

Still, in his sailing orders, nothing had been said about the taking of prizes. He had merely been ordered to get safely in to some Dutch port and bring out as soon as possible a miscellaneous cargo of such materials and supplies as merchants could dispose of most readily to the fighting branch of the revolted colonies.

All was plain sailing, with pleasant breezes, until at the end of the twenty-third day after leaving the capes. Then a storm sprang up with high winds, and the tumbling, rolling seas that mark the edge of the Bay of Biscay, and there the Charming Peggy proved to be a disappointment. Safe enough she was, but she butted and jumped and turned like a tub in a mill-race. She acted like a bewitched and bewildered creature, and in order to prevent having to run for it, Captain Conyngham had recourse to an expedient often used in vessels of light tonnage. He rigged out a sea-anchor, and for three days the observations showed that the Peggy's position was about stationary. On the fourth day the weather cleared a bit, the wind shifted, and twenty-four hours' good sailing to the northward brought her in sight of the English coast. The wind holding fair, she entered King George's private channel with all light canvas flying, and everything seeming to promise well for the future. Numerous sail had been sighted on either hand, but Captain Conyngham kept well to the eastward, close in to the low-lying French coast. Clumsy fishing craft and trading vessels had been passed near at hand, but not a sign of a man-of-war, or anything to give the slightest concern as to the safety of the Charming Peggy. But late in the afternoon of the second day, after the clearing away of the storm, there appeared, bowling along, and holding such a course as would bring her soon within hailing distance, a jaunty single-masted vessel that needed no second glance to determine her class and quality.

Captain Conyngham knew her to be one of the fast king's cutters long before he had looked at her through the glass, but he held his own course as

if unconcerned, and now the expected resort to strategy was necessary. At his orders the Dutch flag had been shown, and the cutter, although coming nearer and nearer, showed apparently no signs of suspicion. The watch on deck lolled over the rail, glancing from the approaching vessel to their young skipper, who like themselves was leaning over the side puffing a cloud of smoke from a long clay pipe. Occasionally, however, he would give an order to the helmsman that was obeyed, and it was seen that almost imperceptibly the brig was edging up nearer the wind, and that the approaching cutter, that was sailing close hauled also, would pass astern of her.

The captain turned for an instant, from measuring the lessening distance between the two vessels, to see how the crew were taking it, for any untoward action now might attract the other's attention. Captain Conyngham could not make up his mind at first as to whether she intended hailing him or not, and still in doubt, he spoke to the first mate, a lean New Englander, who sat on the edge of the cabin transom, smilingly addressing him.

"Mr. Jarvis, I wonder which of us speaks the best Dutch?" he half queried. "If that fellow yonder intends to hail us, we've got to get an answer ready. I'm pretty good on Spanish, and I can 'parlez-vous' after a fashion, but Dutch has been Dutch to me. We should have flown the Spanish flag, but it's too late now, bad luck to it."

"Wa-al," the Yankee answered, "I'm thinkin' if we just squeeze her the least bit more she'll be at jus' such a distance that y'u couldn't make nothin' out through a speakin'-trumpet, and Dutch is Dutch to most Englishmen anyhow."

By this time the figures on board the approaching cutter could be plainly seen. On the quarter-deck there were two officers standing together, while forward the crew lay bunched together, sheltering, behind the low bulwarks, from the spray that dashed over her bows. Again Captain Conyngham looked at his own crew standing in the waist. Talking together were the two sailormen who had had the mark upon them of the royal service. One, Captain Conyngham had suspected from the very first of being a deserter from one of the English ships that had touched at an American port. His name—Higgins—also might have gone to strengthen

his suspicion, and he had a little Devonshire twist in his speech. The other, a shorter man, with light blue eyes, was a compatriot of the young captain; he had a broad stretch of upper lip, and the strong brogue of the west coast.

Conyngham's eye fell upon these two as they stood there and suddenly he started. They were whispering almost beneath their breath. Strange to say the supposed deserter showed no signs of the fear that the occasion might have demanded; yet he was a trifle nervous, for his fingers hitched at the lanyard of his clasp-knife.

"Higgins," cried Captain Conyngham suddenly, "below with you and fetch me one of the broadaxes from the carpenter's chest. And stay," he said; "bring me up a dozen nails, two of each kind. Sort them out carefully and make no mistake about it."

The man hesitated.

"Below with you there," the captain repeated, half fiercely, "and no questions."

Reluctantly the tall sailor went down the forward hatchway.

"McCarthy," called Captain Conyngham again, "go to my cabin and tell the boy to send me up my trumpet, and stay below until I send for you."

The other men had listened to these orders in some astonishment. Even the first mate had cast an inquiring glance at the captain, but had said nothing.

In a few minutes the boy appeared with the speaking-trumpet. Captain Conyngham took it and held it out of sight beneath his coat.

The position of the English cutter was now a little abaft the beam of the Charming Peggy, but she was dropping farther and farther astern with every foot of sailing.

Suddenly across the water there was a hail. "Heave to, I want to speak to you," came plainly and distinctly.

The captain, after his sudden orders to the sailors, had resumed smoking. Now he took the long pipe from his mouth and leaning forward placed his hand behind his ear as if he had not understood.

Again the hail was repeated. This time the captain waved his hand denoting complete understanding. Then he turned as if he was giving some orders aloud to the crew, but instead he told the steersman to luff a little, and spoke quietly to the first mate:

“Two minutes more and we’ll be out of it, Mr. Jarvis,” he said; “she will never fire at us.”

The cutter still held on, and was by this time well astern. The officer who had hailed was standing with his companion expectantly leaning against the shrouds.

Conyngham whipped the trumpet from under his coat, as if it had just been handed him, and bellowed something back over the taffrail. Then he waved his hand cheerfully and went on smoking his pipe.

The two men on the English vessel were evidently perplexed. But the Charming Peggy, now having gone back to her course again, and having the weather-gage, was rapidly leaving. At last, as if her suspicion had been satisfied, the cutter wore, let go her sheets, and went off free to the southeast.

The men on the Charming Peggy were all in a broad grin, and Mr. Jarvis was almost hugging himself in sheer delight and relief.

“I thought you spoke no Dutch, sir,” he said, laughing. “What was it you said to him?”

“I haven’t the slightest idea,” was Conyngham’s rejoinder, “but I think it had some Irish in it.”

He did not appear amused, however, and a moment or two later he stopped suddenly in the pacing that he had taken up again. With a stern look on his face he ordered that the two men he had told to go below should be sent up to him at once.

If the crew had been surprised at what they had just witnessed, they were soon to be more so. The two men appeared and, hat in hand, stood at the mast. Higgins carried in one hand a bundle of iron nails and in the other the ax, one side of which was flat like a hammer.

Captain Conyngham ordered him to step forward, and he handed the nails and ax to Mr. Jarvis, who stood wonderingly by his side.

“Higgins,” asked Captain Conyngham sternly, “do you know what I want these for?”

“No, sir.”

The man was pale, but over his face there flickered a smile of affected amusement or bravado.

“I’ll show you.—McCarthy, step up here.”

The two men stood before him.

“Now, Higgins,” said Conyngham sternly, “I’ll tell you what I wanted the nails and ax for. I wanted to nail the lies that you are going to tell me.”

The man began to protest feebly, and the captain stopped him.

“What were you saying just as that cutter came within hailing distance?”

“I was saying nothing, sir.”

“Lie number one; you were.”

The captain changed one of the nails from one hand into the other.

“You, McCarthy, what did you say to Higgins?”

“I said nothing, sir.”

“Lie number two.”

The captain looked from one to the other with his piercing eyes, and then, almost without a movement of preparation, his bare fists shot out to left and right, and the men dropped where they stood like knackered bees.

It had all come so suddenly that the crew, at least those who had been watching, were held spellbound in astonishment. Even Mr. Jarvis looked frightened, and gazed at his superior officer, wondering if he had lost his senses.

“Here, pick these men up, some of you, and put them on their feet,” ordered Conyngham sternly.

Half dazed, the two men were propped against the railing.

“What are you doing aboard this vessel?”

“Sailing as honest seamen,” responded the Englishman, who had recovered his equilibrium in a measure, and in whose eyes glared a fierce light of mad hatred, as he returned Conyngham’s steadfast look.

“Lie number three. But we won’t go on. I’ll tell you what you said. When you saw that we were outpointing that cutter, you said that when she was near enough to hail, you would take your knife and cut away the sheets, and that McCarthy here would let go the jib-halyards, and that you would then——” he paused suddenly. “Open your shirt,” he ordered.

The men’s faces were white and terrified. Higgins fumbled weakly at his breast and then, all at once, collapsed forward on the deck. He had fainted dead away.

Acting on Conyngham’s orders, Mr. Jarvis bent over the prostrate man and drew forth and displayed, to the astonished eyes of all, a small British Union Jack.

The crew fell to murmuring. Captain Conyngham was all smiles again. He waited until Higgins had been revived by a dash of cold water. Then he spoke to the two frightened and now trembling men.

“Your conduct shall be reported,” he said, “to Messrs. Lester and Flackman, secret agents of the British Crown. They should not employ such joltheads. Now below with these rascals. Put them in irons, Mr. Jarvis.”

In charge of the first mate and the boatswain, the two prisoners were marched below. The captain resumed his hurried pacing of the quarter-deck, and the crew suddenly jumped at his order to shorten sail, for the wind had increased and was blowing in unsteady puffs.

During the early hours of the night it blew half a gale, but died away in the early morning hours, and at daybreak the Peggy found herself jumping uneasily in the rough water with her sails flapping idly against the masts. All about her was a thick opaque white haze. One of the Channel mists had suddenly swept down from the north. It was almost impossible to see even the length of the deck.

The lookout forward, who had been peering over the bows, came stumbling aft to where the first mate, whose watch it was, stood by the wheel.

“There’s a vessel close off our bow, sir; listen, and you can hear her! She can’t be more than a pistol-shot away.”

In the stillness there could be heard the slow squeaking and creaking of blocks and yards, and even the faint tapping of the reef-points against the sails, as she rose and fell to the seas. Clearer and clearer it sounded every minute.

Slowly but surely the two ships were drifting together.

“Jump below and call the captain to the deck,” ordered Mr. Jarvis quietly.

It was evident the Charming Peggy was in for further adventures.

CHAPTER III

BOARDED

By the time that Captain Conyngham reached the deck the outlines of the stranger could be seen. She towered huge and indistinct in the white gloom high above the little Peggy, almost threatening to roll her down as she swept broadside on.

“A frigate!” muttered Conyngham below his breath to Mr. Jarvis, as he noticed the double line of ports out of which the black muzzles of the guns stretched menacingly. Just as he spoke the Charming Peggy’s bowsprit struck gently in the foreshrouds of the big one, and with hardly a jar they came together. Strange to say there had been no warning shout from either side. But that the larger vessel had perceived the Peggy first was evident, for instantly half a score of men, a few armed with cutlasses, swarmed down the frigate’s side and jumped on deck. They were headed by a young officer, who walked quickly aft.

“What vessel is this?” he asked.

There was no use in dissembling then. Plainly the jig was up with a vengeance.

Quietly, with his arms folded, Captain Conyngham gave the name of the Charming Peggy, but added that she was merely a merchant vessel from Philadelphia in ballast proceeding to Holland to be sold.

At this moment a voice from the frigate hailed the deck, and, calling the young officer by name, asked him the name of the clumsy craft that had dared to run afoul so deliberately of one of his Majesty’s ships of war.

“A Yankee rebel brig,” returned the young officer. “I think we’ve made a prize, sir; and she’s armed, too,” he added, noticing for the first time the

six-pounder amidships.

The unseen owner of the voice from the frigate's quarter-deck replied again.

"Examine into her papers and if she's all right let her proceed. If not, we'll put a prize crew on her and send her into Portsmouth."

"Aye, aye, sir," was the lieutenant's answer, and then he turned and requested that Captain Conyngham would produce his papers and muster his crew in the waist.

Conyngham politely asked the young officer to follow him down to the cabin. As he opened the chest that contained the charts and papers his mind was working quickly. He knew that it might be easy to claim that the Charming Peggy was the property of loyal British subjects, for there was nothing to prove otherwise. No one but himself and Mr. Jarvis knew what her mission was, and he did not doubt that he could pull the wool over the young officer's eyes, if it were not for the presence of the two plotters now confined in the forward hold. If their presence should be discovered and their story listened to, he doubted if anything he might say could save him from being taken into a British port; and the prospect before him was exceedingly unpleasant, in view of the fact that in his mind a long war was about to begin. Still, he hoped that the officer's search would not prove a diligent one, and that the presence of Higgins and McCarthy would not be discovered. The officer looked at the papers carefully, and his words after glancing at them cast a gloom upon Captain Conyngham's hopes.

"I shall have to take a look into your hold," he said peremptorily, "and ask a few questions of the crew."

Conyngham smiled.

"You will find something there in the hold about which I intend to tell you," he said, "and we can both be gainers, I am sure, by the fact. I have with me two troublesome rascals, who, I think, owe a term of service to his Majesty. Two deserters, I am sure, that I shall be glad to turn over to you, and I can say good riddance to them with pleasure."

It was a bold step he was taking and he knew it, but it was the only way he could forestall any story that the plotters might tell, and there was the one hope that, being acknowledged deserters, the men might be hastened on

board the frigate and their yarn disbelieved. He called up through the transom over his head to Mr. Jarvis, and the latter answered him at once.

“Bring the prisoners out of the hold,” he said, “and get their belongings together to hand them over,” he ordered.

“Aye, aye, sir,” replied Mr. Jarvis, catching the drift of the captain’s orders. “We’ll be glad to get them out of the ship, sir.”

Just then the Charming Peggy gave a slight lurch and heeled over to port. The lieutenant started as if to make for the companion-ladder. Conyngham’s heart gave a bound. He knew at once what it meant; that a breeze had sprung up and that the two vessels had broken apart. He could hear the tramping of feet on the deck above, and then a sudden crash.

Looking out of the little cabin windows he just caught a glimpse of the bow of the frigate shooting astern, for having the larger spread of canvas set, she had first caught the pressure of the wind. Her large jib-boom coming in contact with the Peggy’s mizzenmast had been carried away, and there was a great row and cursing going on in her forecastle.

At this moment Captain Conyngham wished he had said nothing of the prisoners, but it was too late. Both he and the English lieutenant hastened on deck.

Although the wind was blowing very fresh the fog and mist were as thick as ever, and the frigate had disappeared. But from astern a voice shouted through a trumpet:

“Aboard the brig. Mr. Holden there!”

The young officer replied to the hail and the voice went on. “You will stand by, and if necessary we’ll send a boat on board of you.”

“Aye, aye, sir,” answered the lieutenant.

Then he turned and looked at the crew, who were standing together in the port gangway.

Captain Conyngham was about to speak to him when a man stepped forward. He wore irons on his wrists, and yet attempted to make an awkward salute.

“A word, sir,” he said. “This is a Yankee privateersman, belonging to Yankee traitors and bound to Holland to carry back powder and supplies. Me and me mate here were put on board of her with orders to inform on her to the first British officer who should come on board of us.”

The young lieutenant looked perplexed. Captain Conyngham still smiled.

“A good yarn, Higgins. Sure, you’ve got the imagination of a ballad-monger, but it won’t do, my lad. There’s a good rope’s-end and worse perhaps waiting for you and your mate, and you may make the best of it.”

The English lieutenant, still mystified, looked from the seaman to the captain, and just then McCarthy, who was manacled also, stepped out.

“It’s the truth, sir, you’ve been told,” he said. “I come from the Leonidas. Captain Chisholm put twenty of us ashore in New York under orders to work our way into American vessels. He has the list, sir. We were to get forty pounds apiece, and our discharges.”

“By the powers, that story will stand proving, my lad,” rejoined Captain Conyngham quietly. “And now, Mr. Holden—if I understand that to be your name, sir,” he added politely—“we’ll start for Portsmouth. The course should be, unless I miss my reckoning, south by west half west.”

Before the still mystified lieutenant could say a word, Conyngham began to give hurried orders, and the crew of Americans and Englishmen jumped to obey them.

The two prisoners, protesting loudly and mocked at by their companions, were again sent below, their irons still on their wrists.

Conyngham and the lieutenant stood side by side on the quarter-deck. The Britisher was a very young man, and perhaps inexperienced. At all events, he seemed uncertain now what course of action to take. Conyngham’s next words, however, seemed to reassure him, for they evidently spoke his wishes.

“We’ll run close to the frigate, Mr. Holden, and you can tell your captain what you’ve done,” said Conyngham quietly. “I’ll be glad to look into Portsmouth myself, for I have some friends there, and a cargo of sand won’t spoil for a few days’ longer voyage.”

In a few minutes the fog-blurred form of the frigate could be made out now on the port hand. She was hove to, her foresail rippling and fluttering in the freshening breeze, her mainsail against the mast, and her crew standing by the tacks and sheets.

“Pray the Lord that the fog holds four hours longer,” muttered Captain Conyngham to himself.

Mr. Holden hailed the frigate through the trumpet.

“On board the Minerva,” he shouted. “We’re going into Portsmouth, sir.”

“Very good,” was the reply, “wait there for us.”

“And now, Mr. Holden,” spoke Conyngham quietly, “will you take command of the brig, or shall I continue?”

The lieutenant hesitated. Before he could answer Captain Conyngham continued:

“It’s a straight run, sir, and with this wind she’d make it with her helm lashed; and now if you’ll allow me, I should propose that we’d go below and have some breakfast. There’s one thing this little craft can boast, and that’s a famous Virginia cook. Mr. Jarvis,” he added, “see that the men are fed and send Socrates to me in a few minutes. You’ll hold the same course, sir, until we return on deck.”

The mate saluted, and Captain Conyngham and his guest went down to the cabin.

Five minutes later the negro cook knocked at the cabin door and was bidden to enter. There at the table sat Captain Conyngham, and in the big chair beside him sat the lieutenant.

The negro’s eyes opened in astonishment, for the Englishman was tied fast to the seat, and a gag made of the captain’s handkerchief was strapped across his mouth!

Captain Conyngham was breathing as if from some hard exertion. The lieutenant’s face and eyes were suffused with angry red.

“Now, Socrates,” said Conyngham slowly, “you will cook us the very best breakfast that you can, and serve it here in the cabin in half an hour.

But, in the meantime, take a message to Mr. Jarvis on deck, and hand him this quietly. There are ten Britishers with us and we still number thirteen. Tell the boatswain, without any one seeing you, what you have seen here in the cabin. Attract no suspicion, and try whether you can live up to your name. Now go forward quietly.”

He handed a pistol to the negro, who slipped it under his apron and went up on deck.

The English sailors did not seem to be in the least suspicious, and the Americans fell in readily with the apparent position of affairs. But as one after another was called to the galley on some pretext, they soon were cognizant of the captain’s plot.

The English sailors had discarded their cutlasses, and were grouped with the others about the mess-kits that had been brought up on deck, when suddenly the captain appeared alone from the cabin. Mr. Jarvis joined him, and both stepped quickly forward toward the forecastle. The men, seeing the two officers approach, arose to their feet. The English sailors glanced suspiciously about them, and a glance was enough to convince them that they were trapped. At the elbow of each man stood one of their whilom hosts. A few of the Americans were armed with pistols, and the negro cook with a big carving-knife stood over the pile of cutlasses that they had left on the deck by the main fife-rail.

“Now, men,” said Conyngham quietly, “we want no cutting, slashing, or shooting, and you’re our prisoners. But don’t be afraid,” he added, as he saw a look of fear come into the Englishmen’s eyes. “We are no pirates. You’ll get to Portsmouth all right, where you can join your ship. You’ll have a good joke to tell them of the Yankee-Irish trick that was played on you. Take the prisoners below, Mr. Corkin,” he continued, addressing the boatswain. “Put them in the hold and mount a guard over them.—And now, Socrates,” he added, turning to the grinning cook, “we’ll have our breakfast in the cabin.”

The English lieutenant, released from his bonds, sat at first in sulky silence and would not even touch a bit of the savory rasher that Socrates placed before him. When he went on deck later at Captain Conyngham’s invitation he looked off to the eastward. The *Minerva*, almost hull down, was holding a course toward the French coast. At the masthead of the

Charming Peggy fluttered the English flag, and in the distance to the westward, plain above the horizon, rose the English shores.

“We’ll go in a little closer, Mr. Holden,” said Captain Conyngham, “and then we’ll part company, sir.”

He turned to the first mate.

“Mr. Jarvis,” he went on, “prepare to lower the cutter; put in a breaker of water, two bags of biscuit, and a bottle of port.”

After half an hour’s more sailing the brig was hove to and the crew, with Higgins and McCarthy now freed from their irons, pushed out from the brig’s side. In the stern sheets sat the lieutenant disconsolately.

He turned to watch the brig as she came about and headed off shore. At that moment down came the English flag and the Spanish took its place. And it was just at this minute that Captain Conyngham, looking aloft, spoke to his first mate.

“We’ll have a flag of our own soon,” he said, “and avast with this masquerading, say I.”

The crew, as if they had heard his words, suddenly burst into a spontaneous cheer. Their voices, carried by the wind, reached the Englishmen slowly pulling in for the distant headlands.

CHAPTER IV

IN HOLLAND AND FRANCE

For two months now Captain Conyngham and Jonathan Nesbit, a nephew of Mr. James Nesbit, of Philadelphia, had been in Holland purchasing supplies and outfitting the *Peggy*, after her safe arrival, for her return voyage to America. They found, however, that the difficulties were greater than they had imagined. Although the cargo had been placed on board, at least the greater part of it, so closely were the Dutch ports watched, and those of France also, that it was almost impossible for any American vessel to set sail for home without word being sent to the English cruisers hovering on the coast of the time for sailing, and many prizes had they taken within a few miles of the harbor mouth. The towns and seaports were full of spies. Both France and Holland were then at peace with England, and English vessels were leaving and entering almost every day, so the naval authorities were well informed of doings elsewhere. Another difficulty also had presented itself in that the stores which had been placed on board the *Charming Peggy* were evidently munitions of war, and the Dutch Government had been complained to by the English consul, and therefore the little brig was under a strict surveillance. If she had been a faster sailer Captain Conyngham would have taken advantage, on two or three occasions, of the thick and stormy weather that had prevailed. Once he had slipped his cable, but an English armed sloop near him had done the same and had followed him almost to the open water, where, seeing it was impossible to escape, Conyngham had turned and gone back to his anchorage.

So strong now were the remonstrances of the English representative, that the Dutch custom officials confiscated the *Peggy*, and she was brought into court. To save themselves a total loss, her cargo was resold at a great

discount by Nesbit and Conyngham, and the Peggy herself was disposed of to a Dutch shipping house.

And now Captain Conyngham found himself stranded, like many another American shipmaster, on the shores of a foreign country. His active spirit chafed at the enforced idleness, but week after week passed, and he saw no chance of getting away. But great things had happened in America since his departure, and great things were soon to happen in Europe.

The Declaration of Independence had been signed and heralded to the world. A small fleet had been organized, and it was rumored that vessels of war were building in the home ports to go out and fight the English on the high seas. Stronger and stronger grew the ambition in Conyngham's heart to get into active service. He grew almost despondent, however, as the time dragged on.

It was difficult even to obtain news, and the uncertainty of what was happening at home made his position more galling. At last one day the information was brought by post from Paris to The Hague that two American vessels of war—the Reprisal, commanded by a Captain Wickes, and a smaller vessel, the Lexington—had arrived in France; but, better news than all that, Dr. Benjamin Franklin had reached the capital itself armed with credentials from the American Congress to act as Minister Plenipotentiary and Extraordinary to the French court.

For a long time a plan had been in Captain Conyngham's mind, the feasibility of which, granting that certain obstacles were removed, tempted him strongly. There were enough American sailormen, of good fighting stock, hanging idly about French and Dutch ports of entry, to man a small squadron. Why was it not possible to fit out one vessel at least and sail into the highway of British commerce? The risk would be great, the rewards would be tremendous, and the advantages to the American cause, if the project was successful, past reckoning. All it required was money and a starting place. It would be necessary, no doubt, from the very first to arrange matters with the immediate authorities in order to have them wink at the proceeding, and to do this, back of the whole idea, there must lurk that important word, authority.

Any ship's captain who sailed on his own account and made prizes in the English Channel, would get no mercy if he once fell into the hands of

the enemy. But even without the authority Captain Conyngham was eager to take the risk, if a vessel could be procured and he could find others to join him.

Shortly after the news reached him at The Hague of Franklin's arrival, he left Holland and sailed as passenger in a Dutch coaster to Dunkirk, and there, the very night of his arrival, he met with a man who was to have a great influence in his further doings.

Messrs. Hodge, Allan, and Ross were three Americans, part factors, part merchants, who were in France at the time of the breaking out of war between America and the mother country.

In the earlier months before the English had begun their very strict watching of the foreign ports, they had managed to send out some small and miscellaneous cargoes of supplies. Latterly, however, they had been unsuccessful, but with the arrival of Franklin and the appointment as commissioners of Mr. Arthur Lee and Mr. Silas Deane, the latter a New England merchant well known to them, a better prospect seemed to dawn.

The Reprisal had brought in with her three English vessels, all merchantmen, the first prizes to be brought into the ports of a foreign country. The English ambassador, Lord Stormont, had raised a dreadful row at the French court over this proceeding, and it was rumored that the American vessels and their prizes would be forced to quit the French harbors.

It was just at this time that Conyngham landed at Dunkirk, having come down by sea from Holland in a Dutch packet. He had hardly set foot on French shore when he met a Mr. Thomas Ross, whom he had known as a supercargo on one of his earlier voyages into the Mediterranean. It was years since they had seen one another, but Mr. Ross remembered him at once.

"Well, indeed, Conyngham, this is a surprise!" he cried, shaking hands, after the young captain had accosted him. "And what are you doing here?"

"Fretting my head off," was the reply. "Sure, it is a piece of ill fortune for a man like myself to be idle when there is so much that he would like to do. But before we talk of our own private grievances or affairs, tell me of

the news. What has Dr. Franklin accomplished, and what prospects are there that France will do anything for us?"

"We're all in the fog, as you sailors would say," returned Mr. Ross. "But there are some prospects. The army at home has done as well as can be expected, although the British have possession yet of many places, including New York. But come," he added, "you must join me to-night at supper. We're expecting our friend Hodge down from Paris, and my brother and Mr. Allan. They can tell you much of importance. Mr. Hodge was to see Dr. Franklin, and Mr. Deane was to speak for all of us. There will be work here and plenty for good men, if I'm not out in my reckoning. The French as a nation have no love for England, nor has the king, if rumor speaks rightly, and a few big successes on our part may sway the ministry into action, for mark me, my friend, the common people are seldom wrong, and their voice is the heart-beat of the nation."

"By the Powers," rejoined Conyngham, "but you talk like a book. Is it a speech you have been preparing to convince the king?"

Ross laughed.

"I know of one king that was never convinced by speeches," he returned, "and that's the one who sits there across the water."

"Ah, there's one thing that will convince him," returned Conyngham softly and dropping, as he often did, into the very richest of brogues. "Whisht, my lad, and that's cannon-balls and straight shooting."

"You're right, Friend Conyngham," answered Ross. "But there is one thing more that is necessary—supplies and ships—and a truth must be acknowledged: Europe must recognize us as a nation. Three or four big victories on our part would turn the scale. But more of this to-night when we meet. You will find me at my lodgings, there in that little gray house on the corner, the one with the sloping roof, at five o'clock, and we will go to a little tavern that I know of that is kept by a Frenchman we can trust. Don't fail me."

"I will be on hand," returned Conyngham, and the two men parted.

At six o'clock that evening, in the little front room of the Chanticlear Tavern, there were five men seated about the table. The conversation, that had first been of home affairs and the discussion of the latest news from the

army—the battles of Trenton and Princeton and Washington’s doings—soon turned to matters nearer at hand. Mr. Hodge, a strong-featured, red-faced man of a traditional John Bull appearance, sat between the two Ross brothers. After the waiter had left and they were all alone he began to talk, and his audience resolved themselves into the most eager listeners.

Conyngham had told his story of the capture of the prize crew, and the recital had at once placed him as one who was worthy of every confidence, and before whom everything could be said openly.

“You’d have laughed,” went on Mr. Hodge, continuing the story of his trip to Paris, “to have heard the good doctor describe his arrival in Paris. As yet he has not been received openly at court, but that will all come in due time. Nevertheless, the number of fine names and titles and high personages whom he has met would make quite a bill of lading. You see Lord Stormont, the English ambassador, has his suspicions. He would be a dolt if he hadn’t. And the Count de Vergennes, the king’s Prime Minister, has his also, but the latter’s are the harder to guess. I don’t exactly understand the Frenchman,” continued Mr. Hodge. “He’s a bit too deep for me, and whether or not he is blowing hot and cold to save time, or whether he is really anxious in the end to be of service to us, is more than I can answer for. My own idea of it is that he has but one idea in his head, and that is France, and that he would see our country swamped and ruined if he could further France’s interest in the slightest degree. He realizes, no doubt, that in England’s troubles and difficulties lie France’s opportunities, and that the more she is weakened and distressed, the easier it will be for France when the war comes; for, mark my words, the temper of the French people can not long be restrained, and sooner or later England and this country will be at each other’s throats. But, nevertheless, gentlemen, it is well worth our time to keep a wary eye on M. le Comte de Vergennes, and mind his doings carefully. But I have digressed. I was speaking of Franklin—he told me that Lord Stormont had objected to his coming to Paris at all, and said that ‘if this arch-rebel reaches the city I will away home with me, bag and baggage.’ ‘All right,’ says de Vergennes, ‘anything to please your excellency! We will despatch a messenger to stop him.’ And so a messenger was sent to meet the diligence by which ‘Goodman Richard’ was coming into Paris, but the messenger took the wrong road and never met the doctor, and the first thing you know Lord Stormont hears that the ‘arch-traitor’ has

arrived. 'Heavens, mercy me!' exclaims de Vergennes, when his lordship calls upon him. 'How could it have happened? I will speak strongly to this fool of a messenger. I will admonish him.' 'But what are you going to do about it?' insists Lord Stormont. 'What can we do?' returns Monsieur le Comte. 'You can not expect us to be uncivil! Surely it is no one but an old gentleman who flies kites and writes almanacs, and we Frenchmen have a reputation for politeness to sustain. We can not ask him to leave without ceremony. It is not our way.' So there he is," continued Mr. Hodge, "hobnobbing with lords and ladies and what not, and thinking great things in that great head of his; making arrangements with Beaumarchais, who is our friend with good interest now. Oh, such a man!" Mr. Hodge interrupted his long speech by throwing back his head and laughing heartily.

"Beaumarchais? Beaumarchais? I've heard the name," interrupted Conyngham. "But who is he?"

"The most interesting and fantastic of creatures," replied Mr. Hodge. "A man whose career sounds like the invention of the romancer. His real name is Caron, and he is but the son of a watchmaker, whose timepieces are celebrated. I believe that he himself was brought up to follow his father's trade, but playing the harp attracted him more than adjusting springs and balance-wheels, and he became an instructor and harpist at the court. Being a man of parts besides of harps, and a natural born courtier, he soon made his way and became one of the petted favorites despite his lowly birth. A consummate Jack of all trades. He is the author of plays, two of which I have had the pleasure of seeing—'The Barber of Seville' and 'The Marriage of Figaro.' The king and the queen trust him implicitly, and he has the ear of most of the noblemen, though some of them dislike him and fear his sharp wits."

"I met him once," interrupted Mr. Allan, "at Nantes—a quietly dressed, smooth-spoken, business-like fellow."

"Then you don't know him at court," laughed Mr. Hodge, "for there he is an exquisite, and can flutter his laces and make his bow with the best of them. He has a hundred sides, and can change color like a chameleon."

"He is a good friend of America and a hater of England," remarked the elder Ross. "If he had his way, Lord Stormont would be packed off to London, bag and baggage, and there would be no more of this dissembling."

He knows the temper of the people, and has his finger on the national pulse.”

“I wish that he had his fingers in the national purse,” laughed his brother, “for the good doctor is not overburdened with money.”

The entrance of the landlord here interrupted the conversation, but as soon as he disappeared Mr. Hodge, who had been doing a great deal of thinking, and had paid little attention to the steaming ragoût, followed him to the door and closed it firmly. Then, coming back to the table, he leaned over his chair and in a low but eager voice addressed the company.

“We’re all Americans here,” he said, “and Captain Conyngham’s recital of his own mission and adventures proves his discretion, and so, gentlemen—a secret.” He paused and his eyes swept around the table. “The money will be forthcoming, and if I make no mistake there will be plenty of it.”

“Surely the Count de Vergennes, and Necker while he has charge of the purse-strings, will disgorge little,” said Mr. Allan dubiously.

“The Prime Minister is a deep one,” replied Mr. Hodge. “It pays to keep both eyes on him. He would use America as a cat’s-paw, I have no doubt; but nevertheless he sees in the success of our cause the way to stab England deeply. Beaumarchais, with the help of the rest, will prove a match for him.”

“But you are digressing,” remarked the younger Ross, who had spoken little up to this time. “How are we to get the arms and munitions?”

“We shall see,” answered Hodge, smiling wisely. “The French Government doesn’t wish to commit itself at present, and as a nation will offer us no direct or open aid, but there is nothing to prevent a private company or corporation from advancing money on its own responsibility, if it assumes the risk, and there lies the secret, to which you gentlemen, I know, will consider yourselves pledged from this minute. Have you heard of Hortalez et Cie. of Paris? It is a new name, and one as yet unknown in commercial circles, but mark me, some day history will record it, and we Americans shall have good cause not to forget it.”

“And who composes this new firm?” asked Mr. Ross.

“That,” replied Mr. Hodge, “is more than I can answer. But they say that Beaumarchais could tell all about it, and the shareholders have noble names. Even royalty has invested, and there is plenty of money behind the new name.”

“Be more outspoken,” suggested Mr. Allan. “Who is Hortalez?”

“Hortalez,” answered Mr. Hodge, “and this under pledge of secrecy, gentlemen, is none other than Beaumarchais himself, and Beaumarchais is the court.”

For an instant there was silence, and the five men looked at one another without saying a word. Then it was Conyngham who spoke.

“Mr. Hodge,” he said, “what you have told me opens the way at once to something that I intended to speak of before this company here at the table. In every port in France, and even in Holland, there are scores of American seamen lying idle because of the embargo that has been placed upon our shipping. They’re eager, every one of them, to strike a blow against the enemy. With money, and brains to direct its disposal, the matter would be easy. There is the Channel filled with British shipping before us. We are here on this side of the water. I have in my mind a long-fostered idea that is easy of accomplishment, and that would promise big returns if successfully set on foot.”

“Your idea, Captain Conyngham,” answered Mr. Hodge, “might not be hard to guess, and let me tell you that it has already been spoken of. By the way,” he added, “I start to-morrow morning for Paris. Will you not accompany me thither, for I think that Dr. Franklin may have something to say to you.”

Conyngham’s face flushed with excited pleasure, as he reached across the table and struck his palm into that of Mr. Hodge.

“I am with you,” he cried, “mind, soul, and body.”

As the party broke up to go they halted at the door. The elder Ross placed his hand on Conyngham’s shoulder.

“You are the man we have been looking for,” he said in a whisper, “the very man.”

“Hold, gentlemen,” whispered Mr. Hodge, softly, “what we have spoken of here this evening we will consider buried in the catacombs of our memory, and it would be better,” he suggested, “if we should meet Captain Conyngham elsewhere to be as strangers to him. Is it so understood?”

The rest nodded, and they passed out into the hallway, at the end of which the smiling landlord greeted them and bowed them out into the street.

CHAPTER V

COMMISSIONED

Dr. Franklin entered the little house from the garden at the back, mopping his wide forehead, for the day was hot. He advanced toward Mr. Hodge with his hand outstretched and greeted him warmly in his deep musical voice.

“Ah, friend Hodge,” he said, “back so soon? And you have brought some one with you, I see. From our side of the water?” he asked.

“Yes,” returned Mr. Hodge; “at least from the right side of the water. Allow me to present to you, sir, Captain Gustavus Conyngham, late commander of the Charming Peggy.”

“Of Philadelphia, owned by J. M. Nesbit and Company, was she not, and confiscated in Holland?” interjected Dr. Franklin, looking at Conyngham over the tops of his round spectacles.

“The same, sir,” replied the young captain, wondering at the doctor’s knowledge.

“I would that she had managed to get away with her cargo,” continued Dr. Franklin, “and I was distressed and sorrowed that I could not help you. But Holland, I fear, is under the thumb of Great Britain. I could pray again for the days of Van Tromp, but I fear me it is not to be.”

As he spoke the doctor motioned the others to be seated and placed himself at one side of a big table, upon which was a chess-board with the men placed upon it, as if they had been left in the midst of playing. As he continued speaking he moved them about from one space to another, as if his thoughts were divided between the subject of conversation and the game.

At first he asked a few questions about Philadelphia, and forestalled Mr. Hodge's evident attempt to interrupt.

"Ah!" exclaimed the doctor at last, "I have it—it was the knight's move and a very pretty problem!... Now, Captain Conyngham," he went on, "you were born in Ireland, but having married a wife in Philadelphia one might say that your better half is American."

"And seeing that the other is American by adoption also," returned Conyngham, "although I acknowledge my birthplace and my speech at times betrayeth me, I can claim to be whole American, and I have as little love for England as the best of you."

"Good," returned Dr. Franklin, shoving the chessmen off the board; "'tis the proper disposition. And now, Mr. Hodge, I presume you have told Captain Conyngham of the great difficulties with which we are surrounded. And by the way," he added hurriedly, "you can do a favor for me if you'll be so kind. I was to meet Mr. Deane at his lodgings at about this hour. Could you act as my emissary? We have need to call on our friends for small services. Will you go to him and inform him that I shall not be able to keep my appointment, but kindly ask him to return with you here, where you will find Captain Conyngham and myself awaiting you?"

Mr. Hodge, although a little perplexed at the request, acquiesced immediately, and in a minute or two Franklin and the young captain were alone. The latter waited for the doctor to begin, and he did so by asking a question.

"Are the English smaller vessels better built and faster than those made in France?" he asked.

"By all means," Conyngham returned; "there is none that can equal the work of the British shipyards, except ourselves, and there I mean Americans," he added.

"And the Dutchmen?"

"Good seagoing craft, but clumsy," returned Conyngham.

"Do you think it would be possible, Captain Conyngham, to procure a fast-sailing English cutter or lugger on this side of the water?"

"It would be hard to do so without exciting suspicion."

“In England you think it would be possible to procure such?”

“Without the least difficulty, in Dover,” Conyngham replied. “That would be my plan,” he added, “and if once we could get her, say to such a port as Dunkirk, I would find the men easily to man her.”

Dr. Franklin arose and began slowly pacing to and fro.

“What do you think would be the best plan to set about the purchase of such a craft?” he asked at last. “Do you think that you could accomplish it yourself?”

“It would be better for some one else to try,” Conyngham replied, “for I am known to many in the English ports. In fact, I might say without boasting that I am a good pilot in both channels. If she were secured by a man who might pass himself off easily as an English merchant it could be done without attracting suspicion, and she might be brought over with a French crew to Dunkirk.”

After more talk, in which Captain Conyngham detailed his plans as to armament and outfitting, he came to the subject which hitherto neither had touched upon.

“Of course, Dr. Franklin,” he said, “no one realizes more than I do the danger of such an enterprise, and mark you, sir, it does not appal me, yet I might state that if I were captured, not only I, but the men with me, should meet with short shrift at the hands of the British. We should have few opportunities, after such an event, to serve our country again.”

Franklin paused and smiled. “We shall attend to that,” he said, turning to a large cabinet and unlocking one of the ponderous doors. “And now I shall have to call upon your discretion. There are a great many things nowadays that we have to keep secret even from our friends, but I have here the very instrument that we need in our business.”

As he spoke he drew forth from a large portfolio a printed form and laid it on the table.

“This,” he said, turning it so that Conyngham could read it, “is a commission in the navy of the United Colonies. Thinking that just this sort of a contingency might arise, I armed myself with a few of these papers sent me in America. You see it is signed by John Hancock, as President of

Congress, and is attested by William Thompson, at Baltimore, where Congress was in session. It is dated the 1st of March of this year. I have but to fill in your name and the name of your vessel, and you are a full-fledged captain in the navy of the United Colonies from the moment. Your name I know, but the craft as yet is unchristened. What shall we call her?"

Conyngham paused a moment.

"You have surprised me, sir," he said, "and my wits for a moment were wool-gathering, but the name would be an easy matter."

"And you have suggested it, Captain Conyngham," returned Franklin, chuckling. "We will call her the Surprise."

Quickly, as he spoke, he filled in the blank spaces and handed the paper across the table.

"Captain Conyngham," he said, "I greet you. You will receive such orders as may come through our agents, but one thing I admonish you—be cautious. You are not to venture to attack a seventy-four nor even a sloop of war. There are plenty of small fry about worth the saving. Now," he went on, "another thing of great importance. Except in case of dire necessity show this commission to no one, not even to Mr. Hodge or our most intimate friends. It is a secret for the nonce between you and myself. You will readily understand the reason that I ask it. It would not only embarrass me just at present, but might embarrass the French Government; and they're a little bashful just now, so we must consider their feelings. Ah, here come Mr. Hodge and Mr. Deane," he added, looking out of the window. "Come, we will go out into the garden and sit under the trees, where we can discuss the weather, the fashions, and the ladies, in the open air."

After the introductions had been gone through, and Captain Conyngham had been presented to Mr. Silas Deane, a short, thick-set, easy-going-looking man of commercial aspect, not a word was said about plans or plot, and Franklin wandered from anecdote to anecdote, heading off any attempt to touch upon the subject that was uppermost in all their minds. But just as they were leaving he spoke a few words which disclosed the situation.

"Captain Conyngham," he said, "has undertaken to execute a commission of great importance and danger, and so, while it may come

under discussion at some length in the future, he will need now nothing but our good wishes, and we will drink his health.”

The toast was drunk and the gentlemen arose to take their departure.

“The captain will accompany you to Dunkirk on your return, Mr. Hodge,” said Dr. Franklin, as he bade farewell, “and Mr. Deane will instruct you as to your further procedure.”

Conyngham never forgot the parting pressure of the doctor’s hand.

CHAPTER VI

THE SURPRISE

There lay moored in the basin in the harbor of Dover two fast-sailing luggers that, despite the fact that they had been in the water but two years, had already earned great reputations for speed and seaworthiness, and to their merchant owners they had proved sources of pride and profit.

Mr. Robert Boltwood and his brother had been approached upon more than one occasion by persons desirous of purchasing either one of their two crack coasters. They were not surprised, therefore, when they received an offer made through a shipping firm, whose principal partners were Dutchmen, for one of the vessels named the Roebuck, but they were surprised when their terms were accepted, for they had placed what they considered almost a prohibitive price upon the Roebuck, which if anything was the faster of the two.

It was natural, perhaps, for them to wish to know for what purpose the Roebuck had been bought. All they could ascertain, however, was that a gentleman named Allan, claiming to come from London, and one Mr. Van der Beck, a Hollander, had bought her in partnership, and that she was to sail out of Dunkirk in the Channel trade.

Now it happened that in Dunkirk there were several indefatigable spies of the British Government, and in some way it had leaked out that a privateering expedition was on foot. There were so many idle American seamen in the port that it would have been a wonder if some such rumor had not been floated, and the story that started really need have had no connection with Conyngham's cherished project. Suffice it, however, that this came to the ears of Messrs. Boltwood's representative, who accordingly informed his firm, and this news reached them but a short time after they

had completed the sale of the Roebuck. The terms of the sale had not included the delivery of the vessel across the Channel, but Mr. Allan and the fictitious Mr. Van der Beck had mistakenly supposed that there would be no difficulty in securing a crew, or at least enough men to sail her to her port of destination. To their surprise, however, they found that this was not the case. Sailors were hard to find, and it soon became evident, also, that the old owners, repenting of their bargain, were working against them. This and the fact that their suspicions had also been aroused, made the secret commissioners wary of appearing to be in a great hurry. So while the Roebuck remained at anchor they informed their friends in Dunkirk of the situation, and Conyngham resolved upon a bold plan. It was nothing more nor less than to sail with some eight or ten men in a large open yawl and bring out the Roebuck at night from her anchorage. It was agreed that Mr. Van der Beck (whom everybody will recognize as the elder Ross), who had lived in Holland and spoke the language like a born Dutchman, and Allen, should move themselves and their belongings on board the Roebuck, whose crew consisted of two French sailors, almost so decrepit from age as to be no longer on the active list. On a given night this short-handed crew were to slip their anchor and make out toward the harbor mouth where Conyngham and his crew of eight men would be taken on board, when they would sail at once for Dunkirk.

Those were the days when smuggling between the Continent and England was considered almost a legitimate venture, and despite the watchfulness of the English coast-guard vessels, from many small ports and coves smuggler pilots ran their contraband cargoes in and out. It was not difficult for Conyngham to secure the services of a French smuggler pilot, and in fact some of the men of the crew, Americans though they were, had been employed, at times, in the same risky business.

A big open yawl was procured without difficulty, and on a misty night she slipped out of Dunkirk harbor heading with a favoring easterly wind for the English coast. For a short time this held true and steady, but fortune after a few hours turned against them. Before daybreak the wind had increased to half a gale, and in the choppy sea the yawl had a bad time of it. It was only by good seamanship and constant bailing that she was kept afloat. The afternoon of the next day they found themselves about three

leagues from the English coast, and the wind abating they laid their course for the white cliffs of Dover.

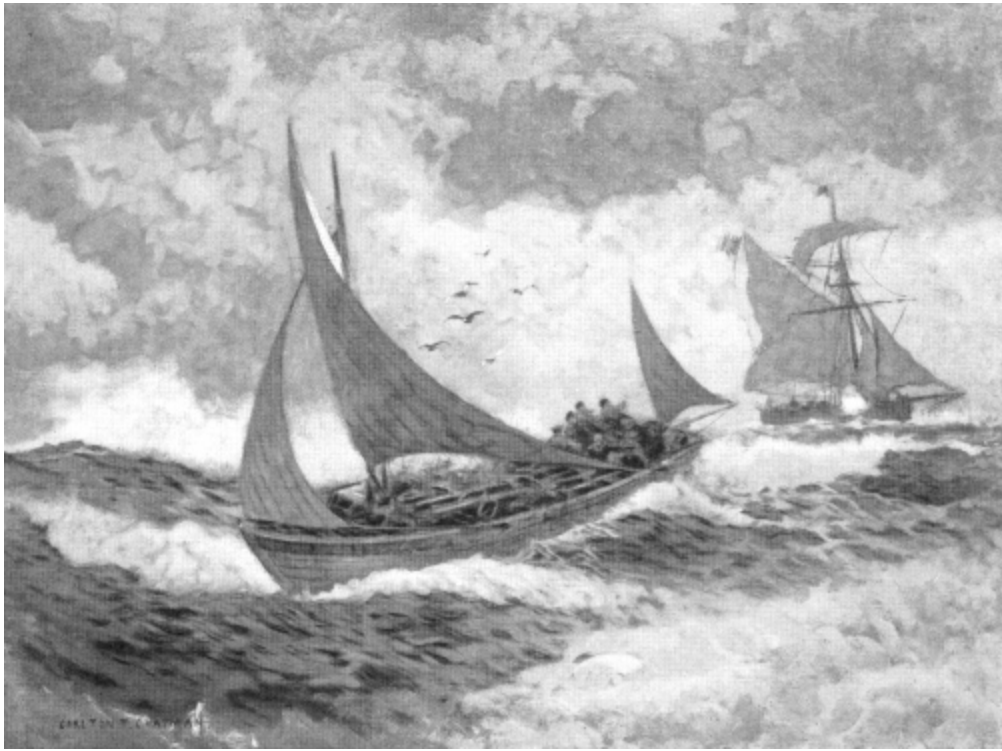
All apparently was going well, and they had passed several vessels without exciting suspicion, for the smallness of their craft was a great point in their favor, and she might have been taken for a coaster or fisherman hailing from any of the small villages that sent out their little fleets during the trawling season.

Late in the afternoon, while they were creeping southward along the coast, a king's cutter suddenly appeared around a little headland not two miles away. The French pilot who was at the helm was undoubtedly responsible for what followed, for the sudden appearance of the cutter must have caused him to lose his head. Without a word of warning he threw the yawl up into the wind and headed her off shore, plainly in an endeavor to give the cutter a wider berth. The suspicious action had been seen by the Englishman, who at once altered his own course and turned off in pursuit.

Captain Conyngham at the time that the coast-guard was sighted had been resting asleep under a tarpaulin between the thwarts. The exclamations of the men on seeing the cutter's tactics aroused him, and as soon as he had looked to leeward he saw that it was only a matter of time when the cutter would overhaul his little craft.

They were still so close into shore that they could see the white surf leaping and boiling against the rocks and at the base of the cliff. At one point he could make out a little break in the steep side, with some foliage near the top, and down at the bottom a short stretch of sandy beach.

A rocky ledge formed a barrier to the entrance of the little cove, and over it the water jumped and tossed angrily. Here and there, farther inshore, leaped sudden spurts of foam as the waves thundered on the sharp points of the hidden rocks. Yet one thing he noticed clearly even at the distance he was from shore—the water ran smoothly and evenly up to the narrow stretch of white beach, showing that within a few feet of shore it deepened again. His mind was made up in an instant.



The yawl was in the midst of the smother.

The cutter was outpointing the yawl, and though at first to leeward was working up to the windward position. Conyngham gave a few quick orders as he grasped the tiller. The yawl swung about, and with loosened sheets caught the wind abaft the beam and tore away shoreward. The cutter came about also, taking a longer time at it, and, flying down just outside the edge of the breakers, made a bold attempt to head the yawl and turn her back before she could cross her bows.

It came to be a question of minutes, and there was an added danger now, for the cutter opened up with a small bow gun, firing as quickly as she could load and aim. But, owing to the small size of the target and the uneven rise and fall of the chop, her marksmanship was bad, and though the balls whistled overhead and plashed all round, not one struck the intended mark.

The Frenchman, who was now in a state of terror, began to call upon the saints. To Conyngham's inquiry whether he knew of a safe entrance to

the little cove at which they were heading he vouchsafed no reply. But as they drew near the line of breakers his wails increased.

“We shall all be drowned!” he cried over and over. “Better a prison than the bottom of the sea.”

But Conyngham, with one eye ahead and the other on the approaching cutter, held his course. In another moment he had crossed the Englishman’s bows, and as the latter fired a parting shot the yawl was in the midst of the smother of tumbling waters.

How she got through it without being wrecked was more than any one of the crew could ever tell. Time and again they held their breath, expecting to be crushed upon the black points that now and then showed themselves on either hand. But with the skill of an Indian guiding his canoe down the rapids, Conyngham steered the little boat, and in half an hour she had safely passed the barrier reef and the worst part of the sailing, and soon was in the comparatively smooth water near the little beach.

Now there could be noticed a few roughly built huts of stone before which there were some nets drying on the ground, and some frightened fishermen came down to the water’s edge. One of them hailed in half French and half English, to which Conyngham replied.

The man informed them that they had better not land, as they had been seen by the Government lookout on the top of the cliff, and that in all probability the guards would soon be down and they would all be made prisoners.

Evidently, like the cutter, the fellow had taken them for smugglers, but he gave the information that farther down the coast there was a small cove inaccessible and invisible from above, where they might be able to get ashore.

Shortening sail, Conyngham headed the yawl southward. Out to sea the cutter was holding the same course, watching like a cat at a rat-hole. It looked as if escape was impossible, for a long promontory ran out to south not four leagues away, and with a shifted wind it would be only by miracle that they could keep from going ashore.

But the darkness, that Conyngham was waiting for, came at last, ushered in by a blinding fall of rain, and in it he once more managed to

make an offing and by good luck and good seamanship weathered the point, and with the cutter somewhere back in the darkness, he made out once more into the open channel. At daybreak he was off Dover and could see the flag flying on the walls of the castle, and a mass of shipping about the entrance. He made boldly in and dropped his little anchor amid a fleet of small craft. The harbor at this time was not one of the best in the world, for the shingle bar would keep shifting, and the breakwaters, except the old basin piers, were not then built. But lying well out Captain Conyngham detected a vessel that, from the description he had received from Mr. Allan, he was sure could be none other than the Roebuck.

His sailing in so boldly had not attracted the least notice, and as he had bidden most of the crew to keep themselves out of sight under the tarpaulins, the number of men he had with him had not attracted attention either.

Just at dusk he got up his anchor and came farther up into the harbor. As he passed by the Roebuck his heart was beating with excitement, for she looked to be the very vessel for his purpose. He was within hailing distance when a figure came on deck. He could scarce refrain from shouting from sheer joy, for he recognized the stocky figure of his friend Allan. Another minute and he had called his name.

Working the yawl alongside he soon stepped on deck. It was considered too risky to transfer the men while there was yet light enough for them to be perceived, and, uncomfortable as it may have been for them, they remained in their cramped position in the smaller boat until almost midnight. In the early morning hours the Roebuck slipped her cable and slid out like a ghost through the channel fog. The yawl was being towed behind, but as it impeded the lugger's sailing the small boat was stove in, laden with some of the spare ballast from the Roebuck, and sunk.

Without adventure or molestation they reached Dunkirk under the British flag. As they dropped anchor well up the harbor, Mr. Allan turned to the young captain with a smile.

"Well, sir," he said, "this part of the proceeding is over and we are ready to go on with the rest of it. By the way, shall we keep the name?" He pointed to the stern of the jolly-boat where the word Roebuck stood out in red letters.

“No,” returned Conyngham, “that will all be changed. She has been renamed what we hope she’ll be.”

“And that is?” queried Mr. Allan.

“The Surprise,” was Conyngham’s answer.

CHAPTER VII

THE CHANNEL CRUISE

The people of Dunkirk must have been very stupid indeed if they could not have perceived that there was something mysterious about the strange little vessel that lay moored to one of the wharves. Although there was some attempt at carrying out the disguise of her being a peaceful trader, there were many circumstances arising that would mark her otherwise. But, to tell the truth, the people of Dunkirk were not only suspicious. In their minds they were quite settled as to the aims and ambitions of the jaunty little lugger, and sailors ashore are wont sometimes to let their tongues get away with their discretion.

The English spies and agents of course were well informed, and letters were written even to the papers in London describing the doings at Dunkirk, and the preparations that were being made to outfit a “piratical expedition,” as it was called, against the king’s commerce in his own home water.

Objection was continually made by the English representatives against the outfitting of a belligerent vessel in a friendly port, but nothing was done by the French authorities, and very soon the Surprise—or the Roebuck, as she was then called—was ready for sea with the exception of her armament, her given destination being Norway and Sweden.

Conyngham and his crew had kept away during the lading of the vessel, and most of the work had been done by Frenchmen, in order to prevent the whole thing from being too glaringly open. But one evening, just about dusk, Conyngham strolled down the edge of the wharf and stood watching some long boxes that were being slung on board and lowered over the side. A very short red-haired man came up to him and spoke to him in French.

“Good evening, monsieur,” he said. “A pretty little vessel this, eh?”

Conyngham turned at once and looked the speaker over. He knew him to be an Englishman who was supposed to be a Government spy. The man’s audacity in daring to approach him at that moment was rather startling, but Conyngham’s reply must have been more so.

“She is good to look at,” he returned in French, “and they tell me she is sailing to-morrow night. But let us go down to her,” he said, taking the smaller man’s arm, “and ask some questions of those on board. We may learn something.”

Half reluctantly, the Englishman accompanied him. In a few steps they were at the gangway. The tackle that had just deposited its load on deck swung outboard from the yard-arm that was being used as a crane, and passed close to where Conyngham and the spy were standing. With a swiftness that was surprising, Conyngham caught the rope in one hand and gave it a twist about the body of his companion beneath the arms.

“Hoist away,” he shouted, holding the struggling Englishman. And before he knew it the latter was swinging in the air, afraid to struggle for fear of being dropped, but shouting and cursing in hearty John Bull fashion.

Conyngham rushed up the gangway and met a tall, dark-featured man, who saluted him as he stepped on board. Just then the Englishman’s feet touched the deck also.

“Here, Monsieur Villois, have this man brought to the cabin,” said Conyngham, and the half-frightened spy was ushered in by two grinning French sailors.

“Now, sir,” said Conyngham, “you shall learn all about it. Sit down.” He motioned the spy to a seat and then, looking at him fixedly, continued:

“For the last three weeks you have dogged my footsteps; you have tried to overhear everything that I have spoken, and you have eavesdropped at windows and doors when I was in company with other gentlemen. You have a companion here who claims to be a very learned person, and always goes about with a book under his arm, wearing big spectacles. Last evening you met on a bench at the end of the park that leads to the street of the windmill, and you said—” Here to the Englishman’s horror and surprise Conyngham

detailed a long conversation that had taken place—word for word he had it. At last he was interrupted.

“But you could not have heard this; there was no one nigh us,” said the Englishman, and then he added quickly, “I see it all. That villain has betrayed me. What do you intend to do with me?”

“I intend,” said Conyngham quietly, “to tell you all you want to know, and to set you on shore at the proper moment. The first and most interesting point, I suppose,” he continued, “would be, What is the destination of this vessel and when does she sail? That is easy. She sails to-night—in fact, in about two hours. Her destination is nowhere in particular. At present she is the property of a French firm of merchants, and is a peaceable, unarmed lugger. In about six hours, if the wind holds fair, she will be purchased by the United Colonies of America. She will be signed and receipted for outside of the jurisdiction of the French Government. Her name also will be changed, as well as her character.”

“You will be pirates?” gasped the spy.

“Not in the least,” was Conyngham’s return. “If that question should ever arise, it could be settled with little trouble. Now,” he concluded, “you know as much as you would like to, I am sure.”

“And are you going to set me on shore?” asked the Englishman incredulously.

“Not yet, my friend,” was Conyngham’s reply. “I still have use for you.”

Just at this moment the cabin door opened and the tall man who had stood at the gangway entered. The darkness of his complexion and the straightness of his black hair betrayed the fact that he was of Spanish or some southern extraction. But the English that he spoke was pure and without accent, as it had been proved, also, was his French.

“Well, captain,” he said, “the last box has been put on board. The rest that are standing about are all empty. We are ready to get under way.”

“Has the other vessel sailed?” asked Conyngham, adding, with a wave of his hand, “you can speak frankly before this gentleman.”

“She has, sir; she slipped out four hours ago, and will join us three leagues off the coast to-morrow at daylight.”

“Are all the crew on board of her?”

“Yes, sir, and the armament. I am afraid we shall have some difficulty with the six-pounder.”

“Never cross a bridge till you come to it, Mr. Freeman,” returned Conyngham, “and now one more question. Is the agent of Mr. Hortalez on board?”

“Yes, sir; he is waiting on deck.”

“Tell him I will join him in half a minute. If you should ask my advice as a mere passenger who has had some experience, I should say that we might slip our moorings quietly and get under way; the tide, I should judge, would carry us well down the harbor. But I merely advise it, you understand, as you are the captain of the ship. And by the way, Mr. Bulger,” he added, turning to the spy, “you will kindly wait here for my return; there is a gentleman at the door who will object to your leaving, so if you will allow me to suggest, it will be better for you to remain here quietly.”

He arose as he spoke and left the cabin. “Mr. Bulger” remained seated, with consternation written on every line of his face. In a few minutes, though there had been no sound from the deck, he could tell from the swaying of the vessel that they were under way. For fully half an hour the Roebuck drifted quietly with the tide, and then the mainsail was hoisted and she keeled over to the damp easterly breeze that carried her out beyond the mouth of the harbor. For some time she sailed, holding a course to the northwestward, then she hove to and as day broke she was seen to be about three leagues off the French coast; and not two miles away, hove to also, was a clumsy little brig with her brown sails laid back against the mast. A red flag suddenly appeared, waving over the brig’s side. This was answered by the wave of a white one over the Roebuck’s taffrail, and then one on the port tack and the other on the starboard; swiftly the two vessels approached until within hailing distance. The decks of the little brig were crowded with sailormen, and amidships were long boxes, carefully wrapped and ready for slinging, and a few long bales wound in sail-cloth. By careful maneuvering they were brought together broadside to broadside, well tendered and

lashed. No sooner had this been accomplished under the direction of the dark man, at whose side stood Conyngham, than the latter turned, and speaking to a slightly built but richly dressed young Frenchman, who was evidently a little upset by the motion of the sea, he requested him to step into the cabin, where he was introduced to the imprisoned Englishman as Mr. Beauchier, the representative of the owners of the Roebuck.

“And now, Mr. Bulger,” remarked Conyngham, after the introduction, “comes the favor that I am going to ask of you. I shall request you to witness the sale and transfer of this vessel from its present ownership to that of the United Colonies of America. The price has been arranged between Mr. Beauchier and myself, and only our signatures are needed to the document, with that of a witness to the same. This is the bill of sale and transfer of the lugger Roebuck, as you can see. Mr. Beauchier will sign here, I here, and you will witness and put your name on this line.”

Half trembling, the Englishman scrawled his signature beside those of the others.

“And now, Mr. Beauchier,” went on Conyngham, “is it true that I understand that you own also the vessel which is alongside of us?”

“Yes, and her contents,” was the reply.

“Have you got any ballast for sale—old iron or such like?”

“We have, sir, and also some passengers who are anxious to leave the ship, because they are afraid of the leak which the captain reports she has sprung.”

“Poor people! Poor people!” repeated Conyngham. “I will take them on board for nothing.”

The transfer of the long heavy bundles proved an easy task, as the “passengers” were all of the male sex and insisted upon turning to and helping. In two hours it was all accomplished; the lashings were cut off and the two vessels drifted apart.

It had been agreed that the little Englishman should be put ashore at some obscure French port, the brig being bound now for L’Orient. But as Mr. Bulger stood watching the lugger square away to the north he ground his teeth in impotent despair.

“Pirates, just the same,” he muttered. “Pirates, every one of them.”

At that moment there broke from the masthead of the lugger, not the Jolly Roger, but a big flag with thirteen alternate stripes of red and white. Across it diagonally stretched the writhing coils of a rattlesnake, and on the fourth white bar appeared the printed words, “Don’t tread on me.”



CHAPTER VIII

THE HARWICH PACKET

The next day proved clear and fine, and also the following day, but no sail of importance, so far as small craft were concerned, was discovered. Such vessels as were passed that flew the English ensign were too big to be reckoned with or too near armed escort; but on the morning of the 4th of the month, off the coast of Holland, a little single-sticker, a cutter, was discovered bowling merrily along from the westward, and from what the Surprise's French pilot said it was plain that she was the very one for which Captain Conyngham was watching—the Harwich packet, that bore the mails for the north of Europe, usually carrying, besides crown moneys, a small but rich cargo.

The rules of the road at sea have been from time immemorial practically the same for sailing ships, and a vessel close hauled has the right of way of one going free on the wind. When the packet was first sighted she was running with the wind almost astern and making good time, as she tossed the white foam before her. Now, the Surprise was close hauled on the starboard tack, and it would have required but a little careful sailing to bring her across the packet's bows. The latter had flown a large English ensign, but Conyngham had shown no flag at all, although the big red and white striped ensign with the rattlesnake across the field lay on the deck ready to be hoisted to the peak.

Nearer and nearer the two vessels came. The helmsman on the packet was evidently perplexed as to the intentions of the approaching lugger, for he had swung his vessel off in order to give the latter room to cross his forefoot. But every time he did so the Surprise would luff a little, for it was Conyngham's intention to get close under the packet's stern and board her if possible without firing a shot.

The trick worked like magic. In a few minutes the Englishman was so close that the features of the helmsman could be seen distinctly. He was not in the least suspicious, for he gazed in silence at the approaching lugger, contemptuously smiling at her apparently clumsy sailing.

A man who had been walking up and down the deck came to the rail as if he supposed that the Surprise was about to hail him, and making ready to answer.

Conyngham had kept his men below well out of sight, though they were all armed with pistols and cutlasses ready to rush on deck at a given signal. Just before he came under the Englishman's stern, he let go his sheets and swinging off suddenly, his bowsprit swept over the stranger's taffrail, beneath which appeared the words "Prince of Orange" in big red letters. The cutter, whose sails, now deprived of the wind, flapped uselessly, lost headway. Another second, and the Surprise struck so gently that it hardly started the paint on her cutwater, a grapple was thrown on board, and from the forward hatch a score of men poured over the bows upon the other's deck.

Captain Baxter, the English skipper, was in the cabin at breakfast with five passengers, four of them merchants and one a young secretary bearing dispatches to the Dutch Government, when the mate shouted through the transom that a strange vessel had run afoul of them, and that they were being boarded by pirates!

"Great heavens!" exclaimed one of the merchants in consternation. "Pirates in the English Channel! Bless my soul, never!"

Before Captain Baxter could gain the foot of the companion-ladder a figure stepped into the cabin.

"Who are you, and what are you doing aboard my vessel?" roared the captain, reaching for a cutlass that hung from one of the berths that lined the sides.

"Hold! not so fast, my friend," was the quiet answer. "Sure, it's much better to take no unnecessary trouble. And my advice to you is to be as quiet as a mouse."

As he spoke, Conyngham shifted his hand to the butt of a pistol that protruded from under his long blue coat.

Though his words were lightly spoken, the Englishman saw a dangerous gleam in the captain's dark eyes, and stood still, muttering.

"Are you a pirate?" he demanded, hoarsely, at last.

"Far from that," answered Conyngham, smiling and advancing farther into the little space. "If the gentlemen will seat themselves, I shall be glad to inform you of the circumstances. You are prisoners of the American cruiser *Surprise*, that I have the honor to command. But you need fear nothing, I assure you."



A score of men poured over the bows.

“What is your name and under whose authority are you acting?” demanded the young under-secretary, who had now found his tongue.

“My name is Conyngham,” was the reply, “and I am acting under authority of the president of the American Congress.”

“You will hang for it,” interposed one of the merchants. “I shall complain to the Government—such an outrage, and in the English Channel, too!”

Conyngham smiled.

“You can write a letter to the Times if you see fit, my good sir,” he replied, “but at present there is no use of being bad-natured. Don’t allow me to disturb you in your meal, as I see you’ve just begun.”

At this moment a slight scuffle and some loud words came from the deck above. The captain again started to his feet.

“They’re securing the crew,” Conyngham said in explanation. “There is no use in making a fuss over the matter; we’re in complete possession. Be easy now.”

Just as he spoke the lank figure of the Yankee second mate appeared at the foot of the ladder. He saluted Conyngham, and grinned at the others as if enjoying their discomfiture.

“I have to report, sir, that all’s well, and await your orders. There is one man we had to put into irons; the rest submitted quietly.”

“You see how matters stand, gentlemen,” Conyngham went on, “and before we cast off our lashings I shall have to ask you to accompany me to my vessel.”

“A most high-handed proceeding,” muttered the English merchant.

But his protestations were interrupted by the young secretary at this point.

“It’s always best,” said he, “to accept a bad position gracefully, and I am sure if this gentleman,” he waved his hand toward Conyngham, “will allow us to remain on board here we shall much appreciate the favor. As for myself,” he added, “I will promise not to endeavor to escape. I am a bad swimmer at the best, and if our gallant friend, who, I perceive, at some time

or other has been a subject of his Majesty, will permit it, we should like to remain.”

“You certainly can do so, sir,” was the quiet reply, “and need not fear that I will disturb you; but as you seem to have lost your appetites, I shall first ask that you all come on deck.” With a polite bow he ushered the party to the companionway.

Perhaps he had divined the young Englishman’s purpose. At all events, the suspicion had crossed his mind that the latter only wished to obtain time to secrete or destroy some of the papers in the dispatch-box that showed beneath a locker on one side of the cabin. With some show of discontent, the party followed his suggestions, however, and went up on deck. Once there they could not conceal their surprise at the state of affairs. There was the strange vessel, that was but slightly larger than their own, still made fast to them, and rippling almost overhead was the big rattlesnake flag. Perhaps, despite Conyngham’s assurance, they had expected to see the Jolly Roger with the skull and cross-bones, and they were to all appearances relieved.

The English crew were all under hatches forward, and no one was in sight but five or six of the Surprise’s crew, who, to tell the truth, were piratical enough in appearance to belie even the striped flag.

Leaving a guard over his guests, Conyngham went below with the first mate and began a search of the cabin. When he came on deck again he plainly perceived the importance of his prize. But a complication had arisen that made him form his plans quickly. It would never do to delay the mails or interfere with the diplomatic correspondence intended for a friendly power, and there were letters for Prussia and Holland, besides those addressed to the British ambassador at Paris. The private property of the merchants was unmolested, but a report showed that the contents of the hold was of no little value, and under the usages of war it would be fair booty. So Conyngham ordered that Captain Baxter should accompany him on board the Surprise, and with ill grace the latter did so. After giving orders to the first mate, whom he left in command of the Prince of Orange, Conyngham ordered the two vessels to be cast loose from each other, and the course was laid southeast by east for Dunkirk once again. He realized that there would be a great row made upon his landing, but in view of the connivance of the French Government at the sale of the prizes brought in by

Captain Wickes, that were allowed to be disposed of just outside the harbor limits of Nantes, he thought that with the aid of Franklin's growing importance at the French court the Government would be more than lenient with him. He supposed at least they would allow him an opportunity to dispose of the vessel and its contents for what the commissioners in Paris most needed, namely, gold; and, thinking that he would place himself in a good position to ask any favors by his conduct in connection with the foreign mails, he held no anxiety concerning himself or his crew. Besides all this, he knew that in the commission that he held from Franklin he possessed a talisman that would save him from personal danger.

It had been his hope that he might fall in with one of the transports then engaged in carrying Hessian troops to America, and in the latter case he had decided upon two alternatives: one to make a prize of their vessel, even at the risk of recapture, and endeavor to get her into some American port, or to land them disarmed on the coast of France or Holland. But even the prospect of making another rich haul did not tempt him to remain longer on the cruising grounds. So, under all the sail he could carry, he laid his course for Dunkirk, the Prince of Orange staggering along in his wake.

That night it came on to blow, and in the darkness the two vessels were separated, so that at daylight of the next day nothing could be seen of the prize. The Channel was a gray, seething mass of flattened foam-tops.

At about noon a little brig was discovered laboring along making to the westward. The Surprise altered her course, and early in the afternoon had ranged alongside.

The wind was too high and the cross seas too boisterous to admit of lowering a boat, and the hails that were shouted through the speaking-trumpet could not be heard, so a shot was fired across the brig's bow in order to make her show her flag. It was English! As soon as this was ascertained to be a fact, Captain Conyngham sailed boldly in under her lee, and once more the rattlesnake and the red and white stripes were tossed to the wind.

Another hail, accompanied by a second shot across the brig's bows, and she hove to, lurching and plunging. By working his vessel in still closer, even at the danger of colliding, Conyngham at last made himself understood, and on the threat of blowing the brig out of the water her

captain obeyed the order to put her about and lay the course he was instructed to. At the same time he was told to hang a lantern over the stern and keep it lit all night. Then, like a constable following an unwilling prisoner, the Surprise trailed along, shortening sail in order to keep her position, and the brig, yawing and swinging uncomfortably as if loath to be on the move, preceded her. Before dark the wind had gone down and the sea abated enough for Conyngham to lower a boat and board his prize. She proved to be the Joseph, the property of English merchants, laden with silks and wine and bound for London. Placing a prize crew on board of her, this time the Surprise took the lead, and sailing noticeably better, the brig followed her. When day broke they were but a few leagues off the coast to the northward of Dunkirk, and to Conyngham's delight he perceived a small vessel just to the south of him, and through the glass he could make her out to be the captured packet!

So good fortune had attended his first cruise, and with a hopeful and cheerful heart he sailed into the harbor. With his prizes close on either hand, he dropped anchor near to shore. Little did he know what a storm was to arise or what was to happen during the next few days. Perhaps if he had known, he would not have thought so much about the European mails.

CHAPTER IX

THE ARREST

There was a large crowd lining the shores as the little boat rowed up, and as Captain Conyngham, on whom all eyes were centered, climbed up the ladder to the wharf a large man bent over and extended a helping hand. There was a greeting in the grasp also, and a ring of welcome in his voice.

“Back so soon, eh?” exclaimed the elder Ross, for it was he. “We hardly expected you for a week or more to come. And you have got her! The news is about the town; don’t stop to parley here. My brother and Hodge and Allan are waiting. There is much to do. What have you there?”

The boatmen were handing up three large canvas bags. The chattering crowd looked at them and pointed excitedly.

“The mails for Europe,” returned Conyngham softly. “Let us get together and consider what is best to do. Bad cess to them, I wish they were off my hands!”

As he spoke he started suddenly.

“What is it?” demanded Ross in a low tone.

“That blackguard English spy!” returned Conyngham. “Didn’t you see him? There he goes on a run up the street.”

By this time three sailors had also climbed to the wharf and picked up the canvas bags. The crowd made way as the little party started forward, Ross and the young captain leading. The people, on the whole, were in smiling good nature. There was even a trace of exultation in their expression, a few clapped their hands, there were some murmured

“Bravos.” Had they been English or American they might have fallen to cheering.

“Heaven grant we have not been rash,” muttered Ross, “but there will be a tempest as soon as the news reaches Paris.”

“What will there be when it reaches London?” returned Conyngham laughing. “Perhaps this time our friend Lord Stormont will demand his recall or Parliament will send for him. Egad! then the fat will be in the fire!”

Although they had passed close to the spot where Ross and Allan and Hodge were standing, no sign of recognition passed between them. The crowd had the politeness not to follow, and soon Conyngham and Ross turned down the corner toward the little inn at which the first meeting had been held; the sailors carrying the canvas bags were close at their heels, and, the landlord of the tavern appearing at the doorway, the party entered. In a few minutes the rest of the plotters appeared, having come in by another entrance, and the sailors returned to the ship’s boat.

As soon as they were all seated about the table in the little front room and had ascertained that there was no chance of their conversation being overheard, Conyngham related his experience.

The company laughed heartily as he told of the English captain’s discomfiture, but Hodge a moment later looked very grave. So much so, in fact, that Allan, noticing it, clapped him on the shoulder.

“What is it, friend William? You look suddenly stricken with grief or disappointment.”

“I am just thinking,” was the return, “that a great deal will have to be done before the sun goes down this day. One of us will have to post at once to Paris. We must not delay turning over the mails to the proper authorities, and—another thing—we must get this news to the ears of the Count de Vergennes before it is brought to him by Lord Stormont. I like not altogether de Vergennes’s attitude. He would see us all at the bottom of the sea rather than sacrifice a chosen project of his own, and, as I have said many a time, back of all his half-expressed desires to lend us assistance is but the hope of aiding France’s interest.”

“Well, if any one is to go,” returned the elder Ross, “it should be you, Mr. Hodge, unless you consider it necessary that the captain here should go up in person.”

Conyngham shook his head. “I’m afraid that would be impossible,” he put in. “It would never do at all, at all. I will have to stand by my ship for a few days at least, until we dispose of the prizes in such a manner as to enable me to pay off my crew. Is there much money in the treasury, Mr. Ross?” he asked.

The latter laughed. “I don’t suppose that we have fifty pounds among us at present,” he said. “The treasury has been on the ebb for the past fortnight, but M. Grand, our banker in Paris, is hopeful.”

“There is a good four thousand pounds of ready money in the prizes,” said Conyngham, “and much that could be disposed of on the nail, could we but put it immediately in the market. But it is my belief what must be done must be done quickly. Mr. Hodge should start with the mails for Paris—no one will recognize what those canvas bags contain, and we should scent out some purchaser and sail out of the harbor this very afternoon and hold a little auction off the coast.”

“How about the prisoners?” interrupted Mr. Hodge. “What are we to do with them?”

“I, for one, will say ‘good riddance,’” returned Conyngham, “when once they are on shore. We could never keep them while we are here in port, and I propose giving them a run this very day.”

Upon this point all of the party were agreed, and also upon the necessity of Hodge’s immediate departure for the capital. The latter, accompanied by Allan, left the room in order to see the proprietor of the tavern, to which establishment was attached a stable containing a number of excellent horses and equipages suited for the highroad. They had been gone but a few minutes when suddenly Allan returned, evidently in a state of some perturbation.

“Something has happened,” he said earnestly, “that requires our immediate attention, gentlemen. A moment since I left Mr. Hodge. I was standing at the entrance to the stable-yard, from which a good view could be had of the harbor down the street. Suddenly there appeared a vessel

sailing into the field of vision, and from her looks I knew her to be an English sloop of war. She was taking in sail and preparing to drop anchor in the outer harbor, when suddenly a small boat rowed out to her; an instant later she broke out her sails again, and is now coming in close to where the Surprise and the other two are anchored. I don't like the looks of things."

"We can obtain a good view of what is happening from one of the windows of an upper room," said Conyngham.

"Let us adjourn there," suggested the elder Ross. "I know the way—come, follow me."

Without more ado he led the rest of the party into the hall, and they hurriedly ascended to the second floor. Entering one of the rooms, they rushed to the window.

As the inn stood upon rising ground, they had a free and uninterrupted view of the harbor over the roofs of the houses. Sure enough, there was the British sloop of war working her way in close to shore, where Conyngham's little squadron lay. A single glance and the captain spoke quickly.

"I must get on board at once," he said. "That fellow's intentions are evident. Here, I have a small pocket glass. There is something doing on board the Surprise."

As he spoke he pulled a small spy-glass from his pocket and hastily adjusting it lifted it to his eye.

"The Surprise is getting under way," he said. "That Yankee first mate of mine has his wits about him, but, gentlemen, this is no place for me; I must get on board, if possible."

With that he left the others, and soon they could see him on the street running at a dog-trot down toward the wharves. Just at this moment also there was the rattle of wheels and the clatter of hoofs, and out of the gateway of the stable-yard rolled a post-chaise, on the high seat of which sat Mr. Hodge. He had gone back to the dining-room, but not finding his companions had decided to delay no longer, but to push on at once.

The commissioners in Paris must be informed of what had happened, and steps must be taken to prepare the way, for the English ambassador was sure to raise trouble.

Conyngham had made good time of it and reached the water's edge before the English sloop of war was half-way across the harbor. The watchers at the window saw him disappear around a corner; a minute later a row-boat shot out from the wharf, and through the glass that the captain had left behind, Mr. Ross descried the rowers bending all their strength at the oars in an endeavor to reach the lugger before the Englishman could get much nearer. The wind was against the latter, and he had been forced to tack, but Mr. Ross could see that they were preparing to lower away a boat and that the bulwarks were lined with men.

"There!" he cried suddenly, "Conyngham is standing up in the stern sheets encouraging the rowers. By all the powers, he'll make it! Row! row!" he cried, as if his voice could be heard by the men at the oars.

The big foresail of the Surprise had been dropped, and she was slowly swinging around as if in an endeavor to make her way out through the crowd of anchored vessels near her to the open waters that lay beyond. This could be discerned without the aid of the glass, and Allan perceiving it struck his fist into the palm of his other hand.

"The fool!" he cried. "What is he doing that for? It is the very thing the Englishman would like best—to get him in the open. His chances were much better if he stayed nearer shore."

Ross, whose hand was trembling so that he could hardly hold the glass, now spoke up again.

"There!" he cried. "Look! Conyngham has joined his vessel. See, she swings back again and turns in toward shore. She'll run that little vessel down. Heavens! that was close; she just touched." He whirled and looked at the others. "Gentlemen, there's sailing for you," he said. "Did you see that? He steered in between those two small ones, and I know what his intentions are. He's going to try to run the lugger into the basin next the long wharf."

"He never can get through," interposed his brother; "there isn't room enough."

"He may," was the elder Ross's answer, "and at all events he's going to try it—and see, the packet follows him!"

A silence followed as they all watched the Surprise slipping along so close to the shore that her hull was now entirely hid from sight and nothing

but her big sail could be seen gliding past the vessels moored to the landing-places. Then all at once the big sail was clewed up, and under the impetus that she had gathered the Surprise forged slowly ahead. Into the basin she slipped without a wharf line being sent to shore, and grinding along the string-piece her speed slowly slackened and then stopped. Ropes were immediately passed out and she was made fast, and at this moment, as if foiled in her design to lay her alongside, the British sloop dropped her anchor. The Prince of Orange came into the basin in the Surprise's wake.

"Neatly done, by Jove!" exclaimed Allan. "He handled her as if she were naught but a shallop. Gentlemen, let us separate, and meet at the long wharf as soon as we can get there."

At once they descended the stairs and went out into the street, where, in order to attract the least suspicion and to carry out the plan that they always adopted of being strangers to one another, they went different ways, but all heading at last in the direction of the shore.

A surging mob was gathered on the long wharf and on the decks of the vessels moored near it. At one place there was a group of a half score or more men talking excitedly in English among themselves. The Frenchmen surrounding them were listening with evident amusement, although they could not understand what was being said. The men who formed the group were the prisoners whom Conyngham had released as soon as his vessel touched the wharf; in fact, he had driven them overboard ashore almost at the point of the pistol.

Hastily his crew were carrying out some bales and boxes from the forward hold of the prize, and the captain standing upon the bulwarks directing them.

The crowd was watching all this as if it were part of a play arranged for their special benefit.

Mr. Ross elbowed his way quietly through the crowd and soon was close to the vessel's side. Conyngham looked down and saw him.

"The jig is up," he said, speaking so that Ross could hear him. "They're going to hand us over. I thought as much from the looks of things. They expected me to come back here—it was all prepared, but I was a little ahead of time."

“Well, what are you up to now?” asked Mr. Ross. “Why all this unloading?”

“Merely for the establishment of international good feeling,” Conyngham returned. “You’ll see in a minute.”

From his post of vantage in the bulwarks of the vessel he turned, and, taking off his hat, addressed the crowd that up to this minute, as we have said, had been nothing but amused spectators.

“Citizens of Dunkirk, people of France,” he said, “help yourselves. Here are bales of fine English cloth and English cutlery. Sure, they’re things ornamental and things beautiful. Help yourselves; they’re yours for the taking, and the gift of the United Colonies of America and Gustavus Conyngham, captain in the navy.”

It was enough. With something that sounded like a cheer mixed with laughter, the crowd rushed upon the bales and boxes. Many climbed unhindered over the vessel’s sides and dived down the hatchway. Conyngham leaped to the wharf.

“Now,” said he, “let the Englishmen try to land and take us. The authorities were going to let them board us while we lay at anchor unprotected. I know that, for it was a French officer who went out to the English sloop. Who can believe a Frenchman anyhow? I have told my crew to scatter, and each man for himself. This is a pretty ending to our project, by the piper! isn’t it?” he added bitterly.

Ross did not reply, for just then he caught a glimpse of something up the wharf that had called his attention. There was a gleam of steel and a flash of blue and red, and straight toward them came marching a company of French soldiers. At the head walked an officer holding a paper in his hand, and by his side was the very English spy that Conyngham had seen run up the wharf. He perceived all in a glance. Turning to Ross, the young captain spoke quickly.

“Here,” he said, slipping a long sealed packet into his friend’s hand. “This is of the utmost importance. See that it reaches Dr. Franklin’s hands in Paris at once; it must not be lost, for it may save my life. De Vergennes has forsaken us.”

“Come,” replied Ross, hiding the paper in his pocket. “Endeavor to hide—you may escape in the crowd.”

“And be hunted like a rat with a ferret or taken like a criminal. Never that in the world. Appear not to know me.”

With that Conyngham stepped forward into the open space that the crowd had formed in giving way for the soldiers’ coming. Stepping boldly out to meet the company, the captain drew a short sword from under his long blue coat, and advancing toward the officer he extended him the hilt across the hollow of his left arm.

The officer was so surprised that he halted, as if not knowing what to do, then in some hesitation he took the proffered weapon. At the same time Conyngham spoke in a loud voice:

“Captain Conyngham of the American navy gives himself and his sword into the keeping of the Government of France.”

Then he glanced about to the English spy, but the latter had disappeared.

Leaving a guard of soldiers about the vessel, the officer and part of his company walked back up the wharf. Before he had gone many steps he returned the short sword to Conyngham, who took it with a smile and walked off by the officer’s side, chatting pleasantly in French with a strong touch of Irish brogue.

At the same corner where he had passed them but a few hours previously stood his friends. Again they gave no sign of recognition.

CHAPTER X

IN PARIS AGAIN

Dr. Franklin had just returned from court. He had been saying many pretty things to fair ladies, and had made his usual wise and witty remarks to ministers and to courtiers, and now he seated himself in his large arm-chair near the table, placed his big horn spectacles upon his nose, and drew toward him a pile of correspondence and some paper. Dipping his big quill into the inkstand, he paused a moment before he began to write. On his face suddenly came an expression of great pain. He pushed back his chair, and lifting his leg carefully kicked off the heavy buckled shoe and rested his foot on a cushion that lay on the floor. The good doctor was suffering a twinge from his old enemy, the gout. At last, when he was more comfortable, a smile of amusement lit up his features and he began scratching away quickly with the squeaky quill pen. It was not a letter of state importance or secret instructions that he was working on, for every now and then his smile widened or changed to one of quizzical amusement. He had abandoned himself to the whim of the moment, and when he had gone on for an hour or so he paused and began to read what he had inscribed aloud. It was an imaginary conversation between himself and his present bodily visitor and tormentor, whom he referred to politely as "Madam Gout." He was defending himself against the accusations of the lady in question as he read.

"I take—eh!—oh!—as much exercise—eh!" (here a twinge of pain seizes him) "as I can, Madam Gout. You know my sedentary state, and on that account it would seem, Madam Gout, as if you might spare me a little, seeing it is not altogether my own fault."

"Gout: Not a jot! Your rhetoric and your politeness are thrown away; your apology avails nothing. If your situation in life is a sedentary one, your

amusements, your recreation, at least, should be active. You ought to walk or ride; or, if the weather prevents that, play at billiards. But——”

He had got as far as this in his reading when a servant knocked on the door and softly entered.

“A gentleman named Mr. Hodge to see you, sir,” he said. “He says it is of great importance.”

Dr. Franklin’s smile faded and he pushed the paper from him.

“Bid him enter at once,” he said, and an instant later Mr. Hodge followed the servant into the room.

“Ah, good friend!” exclaimed Franklin. “You will pardon my rising, for my position explains itself; but I see by your face that you have something of import. Out with it and no beating about the bush. But I pray you to tell me no bad news unless that can’t be helped. Come now, what is it?”

In a few words Mr. Hodge related the story of Conyngham’s adventures and the return with the packet. When he had finished, Franklin arose and, despite the fact that one foot was shoeless, limped heavily two or three times around the room. Then he at last replied:

“Your news, Mr. Hodge, is both good and bad. I might have known that Conyngham would have done something of this sort, but just at present affairs at court are somewhat puzzling. I can trust Turgot and Maurepas, but the Count de Vergennes, Minister of Foreign Affairs, is at times too deep for me. Just now he seems to be listening too much to Lord Stormont. I would that we could get some good news from America about the doings of the army. But what you say about the foreign mails demands attention. They must go to de Vergennes this very moment. Do you think that you are the first to bring the news of all this to Paris?”

“That I can not say, sir,” returned Hodge. “There was a chaise and four an hour or so ahead of me on the road. I obtained word of its having preceded me at several stopping-places.”

“I am afraid that it is one of Stormont’s people,” said Franklin slowly; “they have kept him well informed; but if so, I shall soon hear of it.”

There came a ring at the garden bell just at this instant, for it was near candle-time and the porter had closed the gate for the evening.

“There!” exclaimed the doctor. “That may be news now.” And almost immediately the servant brought in the name of Mr. Silas Deane, Dr. Franklin’s fellow commissioner to the court.

Following close upon the announcement Deane entered. He looked surprised at seeing Hodge, and after greeting him spoke quickly.

“So you are already in possession of what I was going to tell you!” he exclaimed. “Lord Stormont has been told of our Captain Conyngham’s arrival at Dunkirk and has called on the Count de Vergennes. Dubourge informed me so but a half hour since. Conyngham must be communicated with and warned. Dubourge says that his lordship was in no pleasant humor, and let drop some direful threats.”

Franklin seated himself in the big chair and placed his foot again on the cushion.

“Gentlemen,” said he, “we must do some leaping; I mean you must—for my leaping days are over; but ‘look before you leap’ is a good old maxim, and let us do some looking. The position is just this: Had this thing happened three weeks later, or had it followed upon receipt of good news from America, it would cause me but little concern; but coming now the situation is most grave. Captain Conyngham with his prizes must leave Dunkirk and make his way to Spain. Through our friend Hortalez & Co. I have made arrangements for the disposal of our property there. It is not safe for him to remain in France. Are you too tired, Mr. Hodge,” he concluded, “to post back to Dunkirk at once? Our American friends there must be informed.”

Mr. Hodge sighed. He had had but little rest on the journey, and the prospect of another long one was not alluring; but there was nothing for it, and he acquiesced with good grace.

The doctor was beginning to give him some verbal instructions when the bell at the gate rang again, and following close upon the servant’s heels the younger Ross entered the room. He was travel-stained and his clothes looked dusty and rumpled. Apparently he was surprised to find the other gentlemen present, and stood somewhat embarrassed at the door, but upon being presented to Mr. Deane, whom he had not met, his embarrassment changed to excitement quickly, and he began to speak hurriedly.

“Conyngham has been taken,” he said. “His vessel and the prizes have been seized!”

“By the English?” exclaimed Franklin, almost jumping this time to his feet, despite the remark about his leaping days.

“No, sir; he surrendered himself and his sword to the keeping of the French Government. He and some of his men are in the French military prison.”

“Did the English obtain possession of his papers?” anxiously inquired Franklin.

“Not all of them, sir, for he sent you this, and bade me get it to your hands with all possible despatch.” He handed to Dr. Franklin as he spoke the big white packet that Conyngham had slipped into his brother’s hand.

Franklin opened it nervously and glanced at the contents. Immediately he appeared greatly relieved.

“Gentlemen,” he said, “you must both retire, and I suggest that you get much-needed rest and repair here to-morrow morning. In the meantime Mr. Deane and I will talk matters over. Will you breakfast with me here in the garden?”

Ross and Hodge left in a few minutes, and Silas Deane and the good doctor were alone.

“I wonder would it be possible for either of us to see de Vergennes to-morrow?” asked Franklin, as he placed in a large portfolio the papers that he had taken from the package.

“He apparently wishes to avoid an interview with me,” replied Silas Deane, “for I have been unable to get at him for some time. But this is bad news about Conyngham. If he has been thrown into a French prison, it must still be at the instigation of the British authorities, and they will demand that he be handed over to them. They will call his doings by ugly names, I warrant you. There will be a flood of abuse and invective.”

“And I have a good stop-gap for some of it,” was Franklin’s return. “I do not think that they will proceed to extremes. To-morrow I will see Maurepas, possibly Beaumarchais, and if needs be, the Queen.”

Deane was forced to smile despite himself, for he well knew the rumors of the good doctor's success with the fair sex; even the Queen had succumbed to his magnetic wit and personality, so it was but a bald statement of facts, and no boasting.

For some reason Franklin did not then show to Mr. Deane the paper which proved that Conyngham held a commission in the new navy of the United Colonies. Had he done so a great deal that subsequently happened might have been averted. For half an hour longer the two commissioners spoke of other matters. Affairs looked very glum indeed for the struggling little nation across the water, and no news had been received for some time. The failure of this last project boded ill for future attempts, yet the mere fact that it had at first succeeded and that the rattlesnake flag had been flown in the Channel proved to Europe that the new nation was alive.

CHAPTER XI

THE REVENGE

The position that Captain Conyngham and his crew found themselves in was peculiar. But few of his men had actually been placed under arrest. The Frenchmen who had shipped in the *Surprise*, though well known to the authorities, had been unmolested, nor could the imprisonment of the few others be considered in the light of a great hardship. The men occupied roomy quarters facing on the main courtyard, were allowed to purchase extra supplies, and in squads of five or six they were permitted to exercise in the open air of the court. Captain Conyngham was in a different wing of the jail, but was treated more as a guest than as a prisoner; still, until almost a week had gone by he had found it impossible to communicate with any friends in the outside world. One day, to his surprise, however, he heard a cheery voice calling to him from the doorway of his large cell, for, being in a prison, every room was supposed to hold prisoners. Looking up, Conyngham saw his friend Allan standing laughing at him cheerfully. He had a long apron hanging from his shoulders and a baker's basket on his arm.

"Any bread this morning, sir?" he asked in French. "I have some good Yankee bread with raisins and sweetening."

"Ah, but it's good to have a sight of you, friend Allan!" exclaimed Conyngham, rushing up and grasping the imitation baker by both hands, that, to carry out the illusion, Allan had daubed with flour. "Aren't you running great risks?" he asked.

"Risks?" laughed Allan. "Why, if the Frenchmen found out that I was bringing in food to their starving prisoners, I would be hung, drawn, and quartered."

“So you donned this disguise,” laughed Conyngham in reply, “and they never suspected you of such a thing. But news! news! my friend; that’s what I am starving for—it’s the heart and the soul of me that’s crying and not my stomach, for that the head jailer has looked after well. Are they going to hand us over to the Britishers?—that’s the first question.”

“They are and they aren’t,” replied Allan, “but this news I got this morning from Paris: ‘Tell Conyngham to sit tight and not worry. All is apparently going well.’ But the French are great people—they must do everything like a play or a spectacle. Here I was told that I should be allowed to see you if I applied to the commandant, and he informs me that I certainly can do so, but requests that I shall put on a disguise. I tried on three uniforms, but there were none that would button or allow me to sit down.”

“Which by the same token I haven’t asked you to do myself yet,” was Conyngham’s reply.

Allan seated himself in the big rush-bottom chair and placed his basket on the floor.

“The English expect that you are to be handed over for a certainty,” Allan continued. “They have prepared the sloop of war to receive you, and I understand that another is on its way. Instructions, too, have been sent to Portsmouth or Southampton, but we will disappoint them. The French Government is playing its little game of ‘wait a bit longer,’ and never letting their right hand see what their left hand is doing.”

“I knew that Dr. Franklin would take care of that,” returned Conyngham, “but how long is it going to last?”

“Have patience!” replied Allan, “it certainly will not be long. I am expecting Mr. Hodge to-morrow or the day after from Paris.”

“Have the crew been informed?”

“All but four of them escaped last night,” answered Allan.—“How careless these Frenchmen are!—There will be another row when the English hear of it; but I must be going, as they have spies by day watching the entrance to the prison and overlooking the yard, from the tall house next to the church.”

With that he picked up his basket, and after shaking hands went out into the yard, where the sentry, evidently under orders, allowed him to proceed to another part in an endeavor to dispose of his wares.

The next day Conyngham had another unexpected visitor, but it was not Mr. Hodge, and happened thus: He was out in the inclosure amusing himself and at the same time taking exercise by bounding a rubber ball back and forth against the high brick sides of the building, when one of the under jailers called to him from the entrance. At the same time a red-faced man who accompanied the jailer stepped forward, and telling the jailer to go, stood as if waiting for Conyngham to approach, but the latter paid no attention and went on with his game. At last the man drew near and spoke.

“I am Captain Cuthbertson of his Majesty’s sloop-of-war Alert. Your name is Conyngham,” he said.

“Now, somebody must have told you that,” returned Conyngham. “But it is my name, and I am captain of the armed cruiser the Surprise.”

“Which has been turned over to his Majesty’s Government with the other vessels that you piratically took off the coast of Holland,” replied the officer.

“Indeed?” was the reply, “That must be gratifying to his Majesty. But now, captain, won’t you take off your coat and have a game with me? It is a pleasant little occupation that two can play at better than one. I have little with me to wager but my shoe-buckles. I will play mine against yours. Or we’ll put up our wigs,” he continued.

“You’ve played for a larger stake than that and you’ve lost,” replied Captain Cuthbertson. “How can you, knowing that your very life is in jeopardy, indulge in such pastimes?”

“If my life was in jeopardy, I am sure it would be in a good cause. I ask for no favors except a little more elbow room, for you’re standing just where I wish to begin playing.”

“Listen to me first,” spoke the officer, not noticing that a dangerous flash had come into Conyngham’s eyes. “His Majesty might be disposed to be lenient—aye, more than that—if you will listen to reason. Perhaps it might be possible to arrange a pardon for you—and more. You have once been a British subject. Return to your allegiance and loyalty. I doubt not

that it might be so arranged that a good place could be found for you in the naval establishment, and that with your talents a sure advancement would follow.”

Conyngham threw the ball into the air and caught it. “You may tell those who sent you,” he replied, “that his Majesty might offer me the position of an admiral of the blue, and I would tell him that I would rather spend my days in the hold of a prison-hulk than accept it. As you will not play with me, I shall have to ask you to stand aside again. Some day we may meet where the game will be played for larger stakes and there will be harder missiles flying. Good morning, sir.”

The officer stamped his foot and started to reply, then he changed his mind quickly and left the jail-yard without a word.

Conyngham stopped playing and went to his cell. Before an hour had passed another visitor was announced. It was Mr. Hodge. He was not disguised, but dressed in his usual habit, that of a merchant in prosperous circumstances.

“I expected to see you as a cat’s-meat man or a turbaned Turk, my dear sir,” was Conyngham’s greeting, “and yet here you come as if you were dropping into the tavern of our friend on the hill.”

Hodge smiled. “There is very little more trouble. I bore some instructions from Paris that have made the commandant of the prison a very subservient individual.”

“Then you have brought me my release!”

“No, not that, but it will follow in due time. In some way the commissioners have got the French ministry between the grindstones, or—a better simile perhaps—Dr. Franklin is about to checkmate de Vergennes and the latter is apparently glad to call the game a draw. Good news also has come from America, though no great victory has yet been won. Grand, our banker in Paris, has now another hundred thousand livres at the disposal of the commissioners. What we must do is to spend it in such a manner as will best benefit the cause.”

“Then force the hand of the French Government,” replied Conyngham. “Everything that you do to make them sever relations formed on any

friendly basis with England, will lend more assistance than the capture of a dozen packets.”

“And how is it best to do that?” asked Mr. Hodge.

“I will answer that with a question first,” replied Conyngham. “How much longer shall I be detained in this ‘durance vile’? By the Powers, I’m tired of it.”

“Four or five days, perhaps a week.”

“That is right and will do well. You’re supposed by many to be an English merchant here, Mr. Hodge. I am, and will be for a little time, a prisoner. You did not figure in the purchase of the Surprise, but there is a fine two-masted craft of something over a hundred tons lying moored at the end of the long wharf. She is for sale. Buy her at once.”

“And then what?”

“Fit her out with stores for a two months’ cruise. I will secure her armament and crew upon my release.”

“We shall surely be in trouble again.”

“Not much this time. To my thinking, the French Government will be glad to be rid of us. To the south of us lies Spain with its open market, to the west of England lies Ireland with many a well-provisioned port and friendly hand, and there is always our own country. Had my last vessel been big enough to have crossed safely and had we not taken those unlucky mails, it was for home that I would have headed the Surprise.”

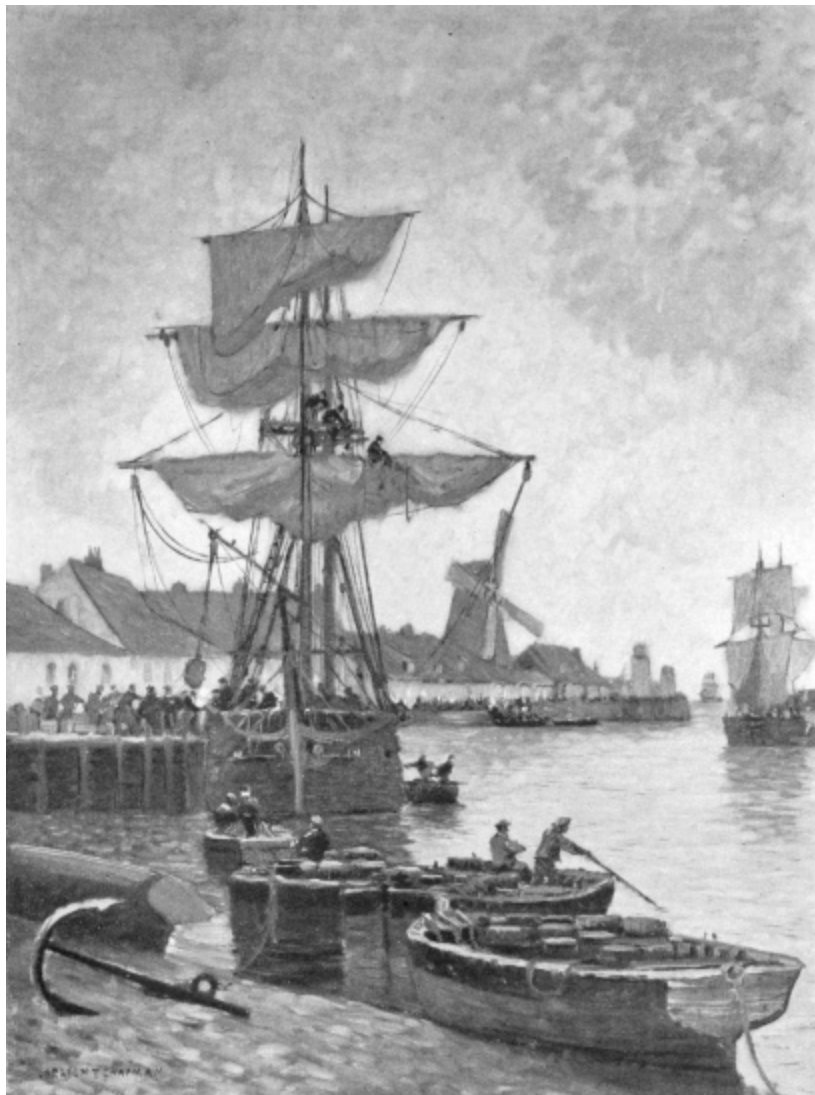
“She lived up to the definition of her name; what would you call this one?”

“I would be after calling her,” replied Conyngham slyly and in the softest of brogues, “I’d be after calling her the Revenge.”

CHAPTER XII

SAILING ORDERS

Made fast to the end of the long wharf was a rakish-looking vessel, and all about her was a scene of continuous activity. From small boats and slings men were painting her topsides, and at the same time, running to and fro from the wharf, others busy as ants were carrying bales and boxes on board; windlasses were lifting and swinging the heavier goods over the bulwarks. On the string-piece stood an active, wiry figure, recognizable at a glance, and near by was the portly form of our friend Hodge. Conyngham was a free man again. Mysterious orders had come from Paris, and to the surprise of everybody he had appeared one day walking the streets of Dunkirk smilingly greeting the inhabitants, who remembered well his giving the stores of the other vessels to the populace on the day of his arrest.



At the end of the wharf was a rakish-looking vessel.

It was the beginning of the second week of July, 1777, and for over a fortnight the outfitting, loading, and changing had been going on and the nameless vessel that was going on the nameless mission was almost ready to set sail. To tell the truth, although at first there was some mystery made about her ownership, her destination, and her probable calling, there was very little of the mystery left at the time at which this chapter opens. The English spies and sympathizers in Dunkirk were almost at their wits' end. They had informed their Government of their opinions, and now began to write to the English press in order to stir the Government to action.

A copy of the London Times almost a week old had come to the hands of Conyngham. As he glanced through the pages, all at once his own name attracted his attention. This had happened as he was walking down to the wharf, and he had smiled broadly as he perused the remarkable effusion. He had slipped the paper into his pocket, where, in the interest of watching the vessel's loading, although he took no active part in its direction, he had forgotten it.

"Everything seems to be going finely, Captain Gustavus," said Mr. Hodge. "No one apparently suspects the ownership of the vessel, and I do not think the French authorities will interfere with her sailing."

Conyngham smiled. That no one seemed to object struck him as having a humorous meaning. Perhaps he had not observed the twinkle in Mr. Hodge's eye, as he advanced this statement. He was about to refer to the article in the Times when something attracted his attention.

Two men, one dressed as a sailor and the other as something of a court dandy, came walking together down the wharf. The sailorman to all appearances had been drinking and was asking the gentleman with the long satin waistcoat for something more with which to quench his thirst. At last the latter, as if he could no longer resist the man's importuning, reached into his pocket and, producing a purse, took out a small silver piece. At the same time he addressed some words to the sailor, as if bidding him begone.

"I know this fop in satin and lace," said Hodge. "I have seen him in Paris, but I can not recollect where. He's not a Frenchman, but a German or a Pole."

"Methinks I know him too," returned Conyngham. "He's talking English to that beggar. Well, well—by the great gun!—it comes to me."

Conyngham lowered his voice almost to a whisper and spoke without turning his head or scarcely moving his lips.

"I know both of them now," he said. "The fop is our friend the English spy, and the other is one of the stool-pigeons. What do you suppose he said just then? Hush! here he comes in our direction. It is his intention to get near to us and listen to our conversation."

"Let us move then," suggested Mr. Hodge, "for there is a good deal about me that I would not wish to have known; besides," he added, "I think

you are mistaken, for I now remember where I have seen this coxcomb, and at the house of no one less than good Dr. Bancroft, the geographer and scientist, the friend of Franklin, and one who had kept us well informed of the British plans.”

“Then keep an eye on Dr. Bancroft, is my advice,” rejoined Conyngham. “Hush! let me speak to this fellow.”

The drunken sailor lurched up and leant with both elbows against a big pine-wood box, but apparently he paid no attention to the proximity of the others, for he began emptying his pockets of their contents, which included the silver piece which had just been given him, and searching for some bits of tobacco he jammed them into the bowl of his black heavy pipe.

“What you say about the moon may be true,” observed the captain as if carrying on some deep subject, “but still the influence of the orb upon the tides has been acknowledged for centuries.”

The sailor by this time had found a bit of flint and steel and was trying to ignite a bit of pocket tinder.

All at once Conyngham turned toward him, and at the same time taking the copy of the Times out of his pocket, he spread it out on the top of the box and began to read aloud.

“Listen to this nonsense,” he said in beginning. “The English must be in a ferment of terror to believe such stuff as this,” and forthwith he read:

“I saw Conyngham yesterday. He had engaged a crew of desperate characters to man a vessel of one hundred and thirty tons. She has now Frenchmen on board to deceive our minister here. A fine fast-sailing vessel, handsomely painted blue and yellow, is now at Dunkirk, having powder, small arms, and ammunition for her. Conyngham proved the cannon himself, and told the bystanders he would play the d——l with the British trade at Havre. It is supposed when the vessel is ready the Frenchmen will yield command to Conyngham and his crew. The vessel is to mount twenty carriage-guns and to have a complement of sixty men. She is the fastest sailer now known—no vessel can catch her once out on the ocean.

“I send you timely notice that you may be enabled to take active measures to stay this daring character, who fears not man or government, but sets all at defiance.

“He had the impudence to say if he wanted provisions or repairs, he would put into an Irish harbor and obtain them.

“It is vain here to say Conyngham is a pirate. They will tell you he is one brave American; he is ‘a bold Boston.’

“You can not be too soon on the alert to stop the cruise of this daring pirate.

“JAMES CLEMENTS.”

There was also a letter that Conyngham read in even a louder tone:

“PARIS, *July 28, 1777.*

“SIR: You have no doubt been informed by your ministry that Lord Stormont had been successful, and that the Court of Versailles had declared their ports shut against American privateers. Let your blind politicians sleep, the guns of the American privateers will waken them to their sorrows. The General Mifflin privateer arrived, and Monsieur de Chauffault, the admiral, returned the salute in form, as to a vessel from a sovereign and independent state.

“Your papers tell us that Conyngham is in chains in Dunkirk, and is expected shortly in London, to be tried and hung. I tell you that Conyngham is on the ocean, like a lion searching for prey. Woe be to those vessels who come within his grasp. No force intimidates him. God and America is his motto. Our country is duped by French artifice.”

As he finished it was noticeable to both men that the drunken sailor was paying strict attention.

“What’s your opinion of that?” asked Conyngham.

The man looked up slowly and found the captain’s eyes fastened upon his own. “I say, what is your opinion of that?” he reiterated, this time leaning forward and grasping the man by the collar of his open jacket.

So surprised was the latter that the pipe fell from his lips, and before he could control himself an oath followed the pipe—an oath in good round English.

Conyngham affected to laugh.

“Why, he has understood everything we’ve been saying,” he said, turning to Mr. Hodge again.

The sailor, who had wrenched himself free, started to walk away. His efforts in that direction were accelerated by a well-placed kick, administered by the toe of Conyngham’s boot. But he apparently did not resent it, and still affecting to be under the influence of liquor stumbled up the wharf.

“That will puzzle our friend with the high-heeled boots,” said the captain, “but to tell the truth I think there is very little use in any more secrecy. They seem to know as much of the situation as we do.”

This was nothing more than the truth, and before two days had passed Conyngham had openly acknowledged it by superintending the placing of the cannon on board of the *Revenge*, and the French Government had agreed to allow her to depart from the port of Dunkirk, upon Mr. Hodge, who had all through the transaction appeared as her owner, signing a bond that she would do no cruising off the coast of France.

The time of sailing drew on quickly. The vessel was laden, the ammunition was all on board—there was no secrecy about that now—the crew had been picked and divided into watches; some attempt had even been made to drill them at the guns. The citizens of Dunkirk knew almost to a man that the tidy little cruiser would soon be on the sea.

Once more the four “conspirators” were grouped about the table at the tavern.

“Three days from now, captain, and you will be off the headlands,” observed Mr. Hodge, “and we shall be here waiting to see which way the cat will jump.”

“If you mean Lord Stormont by ‘the cat,’” answered Conyngham, “I think he is all ready for jumping now.”

“I wish,” rejoined the elder Ross, “that we were certain of the French minister’s temper. Dr. Franklin must have had a strong cudgel in his hands to bring him to terms at all. I wonder what it was? You could tell us, Captain Conyngham, if you wished, of that I’m sure.”

Conyngham looked at the others intently. He waited for Hodge to speak, thinking that of course the good doctor had told him of the commission that undoubtedly had been the cudgel that had brought the Count de Vergennes to terms. But seeing that Hodge apparently did not wish to refer to it, he also held his peace and changed the subject.

“You say that Dr. Franklin’s secretary will be down from Paris tomorrow?” he asked Mr. Hodge. “I suppose with final instructions.”

The younger Ross laughed. “I don’t think there will be many instructions that we could not guess,” he said. “It seems to me that the case is clear enough—to capture as many of the enemy’s vessels as possible and not to get caught at it, is an easy thing to remember.”

“There will be more than that, my son,” returned Hodge, “much more than that, I hope, for you must remember that I am responsible to the French Government for the proper behavior of the gallant captain so long as he remains on the coast of France.”

“And you have no longing for the Bastille, eh?”

“Not much, my son. But Mr. Carmichael will tell us to what length we can go in interpreting the cautions of the ministry.”

After some more desultory talk the meeting broke up, another parting toast being drunk to the success of the Revenge.

Mr. Hodge and Conyngham walked down the street toward the pier where the captain’s gig was waiting, for he was now living openly on board the Revenge and making no secret of his connection with her.

“Tell me, my good friend,” asked the captain, “did Dr. Franklin say nothing to you about the contents of that packet that you brought to Paris with you? It would seem rather unusual if he did not.”

“Nothing beyond the fact that he was glad to receive it,” was the reply. “What did it contain? You were asked that question before. If you do not care to tell—why, consider it unasked.”

“It contained enough to save my life,” was the reply: “my commission—that was all.”

“You have not received it back?”

“I have not seen or heard of it from that day to this.”

Hodge gave vent to a prolonged whistle.

“This is a serious matter,” he said. “But perhaps Carmichael will fetch it down with him.”

“I hope and trust so,” was the reply. “Sure, I don’t care any more for the yard-arm than you do for the Bastile.”

Conyngham was worried and slept little that night, still he reasoned that it was more than probable that the commission would be forthcoming in the morning, and also that he would be relieved, from all secrecy as to its possession. He saw that it had worked wonders, and that slowly but surely France and England were verging toward war; that before many months should pass America would have a powerful ally. Of course, in view of these circumstances, France could not have given the mortal offense of surrendering a regularly commissioned officer into the hands of what soon was to be a common enemy.

The next day Carmichael arrived. He was a tall, spare man, with a hawked nose; a broad, good-natured grin was usually on his lips, but he was keen as a whip-lash.

It was the morning of the 15th of July, and in the cabin of the *Revenge* Mr. Carmichael sat opposite Captain Conyngham, who watched him with a smile of dry amusement as he wrote. Carmichael was smiling also. He had a trick of apparently spelling the letters he was writing with his tongue wriggling at the corner of his mouth. As soon as he had finished he turned, and waving the paper in the air to dry it, chuckled.

“There, Captain Conyngham, are your sailing orders. Of course, to a man of your intelligence, there is no use of being more than explicit. Somehow I am reminded of a story of one of your fellow countrymen who was accused of killing a sheep, and in explanation made the plea that he would kill any sheep that attacked and bit him on the open highway. So all you’ve got to do is to be sure that the sheep bites first.”

“There is another little adage about a wolf in sheep’s clothing,” replied Conyngham laughing, “and sure, there are plenty of them in both channels, and in that case——”

“Be sure to kill the wolf before he bites you at all. But seriously—once away from the French coast, you ought to have a free foot. Do not send any prizes into French ports. Here is a list of the agents of Lazzonere and Company, Spanish merchants, and here is a draft of a thousand livre upon them at Corunna. Should you desire more, accounting will be kept with Hortalez and Company that will be audited by the commissioners and by Grand, the banker, of Paris. You will receive the usual percentage accruing to the captain of a vessel making such captures, and will keep a separate account of your expenditures and moneys received and the value of prizes.”

He handed Captain Conyngham the remarkable instructions, which now for the first time are shown to the public in their original form.

Captn Cunningham

As with much difficulty the Commissioners of the United States of North America now at Paris, have obtained Liberty for you to sail from Burcharguen, and as it has been on express Condition that you should not write against the Commerce of England. I beg & intreat you in the name & by the orders of the Commissioners that you do nothing which may involve your security or occasion umbrage to the Ministry of France - Notwithstanding which if necessity obliges you to obtain provisions of which your stock is not abundant on account of the abrupt manner in which you are obliged to leave the Port, on If attended first by our Envoies. the circumstances of these cases will extenuate ground pleaded in favor of your conduct either in making prizes for your own preservation or in making reprisals for damages sustained. Nothing of this sort happening you are to proceed directly to America. Delivering as soon as possible the dispatches intrusted to your care & taking your further orders from your Employers there. Wishing you success & prosperity I am &c

Wm Carmichael

Burcharguen July 15th. 1777

Conyngnam read the paper through. "But there is something else," he said. "Did not Dr. Franklin send some other paper to me?"

"Yes, there is a packet here which I received from the secretary of the Cabinet Minister, M. Maurepas, who told me that he had been instructed to give them to me by the Count de Vergennes. They contain some matter in relation to our project."

He opened his portfolio, and breaking the seal displayed some pages of closely written matter that was undated and unsigned. It merely stated that Mr. Hodge, merchant, had given his guarantee and bond, together with Messrs. Ross and Allan, that the American vessel about to depart from

Dunkirk should respect all English commerce and should make the best of her way to the United States. Conyngham's name was not even mentioned. As soon as he had read it, the captain exclaimed aloud:

"We are trapped again! By the Powers, there's a large rat somewhere. Where is my commission? I can not sail without one, and I refuse to put myself and my crew in such jeopardy."

"Dr. Franklin spoke to me of the paper that he had given you, and that he had sent to the Count de Vergennes. He understood from the latter that it had been returned to either Mr. Arthur Lee or Mr. Silas Deane, who had sent it to you at this place."

"I have never received it."

"Well," said Mr. Carmichael, "this must be attended to before sailing. We will meet ashore this afternoon with Hodge, Allan, and the rest, and hold a council of war. Perhaps I had better see them first, and I will ask you to send me off in one of your boats immediately."

The secretary and the captain repaired on deck. Conyngham felt no little pride in his vessel, and indeed she was one to make the heart of any captain glad. Everything about her was as neat as a pin. Her crew of nearly one hundred men, forty-four of whom were Americans, had picked up wonderfully in their work. On her decks were fourteen six-pounders and twenty small two-pounder swivels capable of making great havoc at short range when loaded with grape or ball. He pointed out the good points of his vessel to Mr. Carmichael, who appeared in a great hurry to get away, and was soon sent off in the captain's gig, intending to look up Mr. Hodge as soon as possible.

After drilling the crew all one afternoon, Conyngham early in the evening went ashore, and repaired at once to the usual rendezvous. There he found the others awaiting him. All seemed to be in good humor.

"Ho, Captain Glumface," cried Hodge, "sit down with us. I have some news that will give thee comfort."

"Has it arrived?" asked Conyngham eagerly.

"Hear the man!" replied Hodge. "Look!"

He handed Conyngham a paper.

“It is one that just by luck I found in my possession. A blank commission, and I have dated it to cover your last cruise.”

“But this is a privateersman’s commission,” Conyngham said, looking up from his perusal of the paper. “I do not consider myself in that light.”

“I went on your bond,” replied Hodge.

“Yes, but it was not your money that paid for the outfitting; it was money belonging to the United Colonies of America, or borrowed on their account, and I am an officer in the regular navy, and that vessel sails under the flag.”

It looked dangerously like a quarrel. Hodge relapsed into silence and the elder Ross looked furtively from Mr. Carmichael to the captain, as if expecting the former to come to the rescue.

“What you have there,” said the secretary at last, “is authority enough, and is the same under which many of our cruisers are now sailing. It is a letter of marque respected by the British Admiralty.”

“Mayhap so,” replied Conyngham, “but the date is made out wrong. I sailed in the Surprise on the 1st of May, and this is made out on the 2d.”

“Tut, tut! that is too bad,” muttered Mr. Hodge, “and the last one I’ve got, and in fact the only one I had. What now are we to do?”

“My brother comes down from Paris to-morrow,” put in Ross, “and he may bring news proving that we have time to wait, or perhaps he may have seen Dr. Franklin and have the very paper the captain desires.”

Hardly had he spoken than a sound of hurrying feet came down the hallway outside. The door burst open, and in rushed the younger Ross. Evidently the position of the candles on the table prevented him from seeing that Conyngham was present, for in his first words he asked for him, and upon the latter rising, he came quickly to his side.

“We must think and act quickly,” he cried. “But two hours behind me in the road is a messenger from de Vergennes instructing the authorities to seize the vessel and not to allow her to depart. I have this on the very best authority. I saw Dr. Franklin but an hour or so before I received the news. He expected me to wait until to-morrow, when he should have been granted an audience with the Foreign Minister, but upon ascertaining the importance

of immediate action (I was told by the very messenger to whom I had once been presented by Dr. Bancroft) I sought out the doctor. Search high or low, I could not find him, but by good fortune I met Silas Deane in company with our misanthropic friend, Mr. Lee. They ordered me to post it here at once and tell you to get under way at the earliest possible moment.”

“Where was Dr. Franklin, do you suppose?” asked Allan.

“Dining with some fair countess or duchess at Versailles,” replied Hodge, who leaned perhaps a little toward the Lee faction.

The secretary shrugged his shoulders and said nothing, but Conyngham spoke quickly.

“Gentlemen,” he said, “there is but one thing to do. Commission or no commission, I sail from Dunkirk on the early morning tide. We have but a few hours before us. May the Powers grant the messenger does not arrive before then. Stormont must have played his trump card and won.”

Quickly the party broke up and accompanied Conyngham to the water’s edge. Early in the morning, while still the mist hung over the harbor and shrouded the houses and shipping, a ghostlike vessel appeared in mid-channel, fanned by the damp shore breeze. It was the *Revenge*. On the fast ebb tide she slid swiftly out to sea.

CHAPTER XIII

IN THE CHANNEL

The firm of Hortalez and Company received word from their Spanish agents and the representatives of Lazzonere and Company that four English vessels—two brigs, a large lugger, and a ship (the last a most valuable prize)—had arrived at Corunna, all sent in within a week after the sailing of the *Revenge*. So well had everything been arranged that there was a ready sale. Vessels and cargoes were disposed of without a hitch to Spanish and French merchants, in many cases auctions being held on the public wharves. Two weeks more and eight other prizes were added to the list.

England was now in a storm of indignant protest. The Admiralty was besieged with letters, and ship-owners and insurance people, frightened at the prospect of further losses, showed signs of panic. Vessels already loaded and ready for sailing were held in port until they could sail, under convoy of an armed guard-ship. Insurance rates rose twenty-five per cent. And all this time a little, fast-sailing craft drove up and down the Channel, occasionally flaunting the rattlesnake flag almost in sight of the fleets that lay at anchor in the roadways.

And so we find her on one bright day in August, still in sight of the white cliffs, but heading southwest in chase of a deep-laden vessel whose suspicions had been aroused, for she was staggering along under a press of snow-white canvas.

Conyngham had gone forward to the fore-castle and was watching the chase through his spy-glass. The crew, much reduced in numbers by reason of manning the prizes, watched him carefully. There had been something about the set of the stranger's canvas that had suggested the man-o'-war, and now—although, as we have said, she had all sail set—she seemed to

display a slowness that was puzzling, for hand over hand the Revenge picked up on her. The six-pounders and the swivels had been cast loose and provided, and the men were only waiting the orders to take their stations. There was a ponderous sea running, and the armament of the Revenge was practically useless except at short range. Time and again had the captain longed for a bow gun, and he would have exchanged half of his broadside for a long twelve-pounder. They were within two miles of the vessel now, and for the last few minutes Conyngham had not taken his eye from the glass, crouching, or at least half kneeling, against the bow-sprit in order to steady himself. The lower sails were wet with the spray that dashed up from the bows, and he himself was soaked almost to the skin. Suddenly he arose and shouted some orders hurriedly. The Revenge came up into the wind as if abandoning the chase. The second mate, who stood beside the helmsman, saw the captain come running aft.

“She’s a man-o’-war brig!” cried Conyngham. “I thought as much. She has a drag out to hold her back.”

“There she comes about,” answered the second mate. “Now we can see her teeth. You’re right, sir. She hoped to bring us up to her. Hadn’t we better run for it?”

For an instant the captain did not reply. He seemed to measure carefully the rate of the other vessel’s speed against that of his own. The result apparently satisfied him, for he turned again with a smile.

“I’ve got half a mind to try a few passes with him,” he said, “and I would do it if it were not for the old adage about discretion. For an Irishman, sure I have a reputation for discreteness that must not be broken. And so,” he continued, “we’ll let well enough alone.”

It was evident to every one on board the Revenge that their vessel sailed faster and closer on the wind than did the brig. And though both were heading toward the white cliffs, it became apparent that if the wind held, the Revenge would not only cross the brig’s bows at a distance that was practically out of range of her broadside guns, but would also weather the point that was the southernmost cape on the English coast—Land’s End. By nightfall, if all went well, she should be past the entrance to the Irish Channel and in her new cruising grounds. But an unlooked-for occurrence put an end to all such hopes. Suddenly appearing around the point of land,

carrying the wind from an entirely new direction, came a large three-masted vessel. At once the brig, that, although to leeward, was the nearer, began to set a little row of signal flags, and, as if noticing the shift of the wind, she came about, apparently abandoning the attempt to head off the Revenge. Instantly Conyngham divined her purpose, and came about also as quickly as he could. The breeze, which had been from the eastward, was rapidly dying down.

The big stranger, carrying the new wind, grew larger and larger. Through the glass Conyngham could make out three rows of ports, and the billowing canvas rising above the dark hull looked like a cloud hanging low in the sky. It was almost dead calm, and the Revenge swung lazily up and down, with her steering sails dipping uselessly in the water, while the brig, that had now caught the wind, bore down nearer and nearer. The men looked back at the quarter-deck with frightened, white faces. All the good fortune that had so far followed them in the cruise had apparently deserted them. They saw visions of their prize-money disappearing, and many of the knowing ones could imagine the crowded harbor of Portsmouth, with the big seventy-four lying at anchor, while black, faintly struggling objects depended from her yard-arms. The first mate and Conyngham had not exchanged a word, when suddenly the former, lifting his hand, broke the silence.

“She’s coming, captain; by tar, she’s coming!” he cried.

The big foresail of the Revenge lifted and the sheets and outhauls of the steering-sails spattered a line of spray as they tautened up out of the water. But it seemed almost too late that the breeze had reached them. Broad off the starboard bow was the brig, but a mile and a half away, while little more than twice that distance, dead astern, came the seventy-four, a roll of seething white playing under her forefoot and sweeping out on either side. Down on the wind came the ominous rolling of a drum.

“They’re beating to quarters, sir,” observed the mate; and then in almost semitragic despair he muttered, “and they’ve got us in their locker!”

But the Revenge was now slipping along swiftly, although she had not yet felt the full force of the following wind. The brig had set a little answering pennant to a new string of signals that had risen to the masthead of the seventy-four, and in obedience, although at extreme range, she began

firing with her bow guns, the balls plashing harmlessly in the water a few hundred yards away, but each one appearing to come nearer than the last, and threatened to reach the Revenge at any moment. It looked black indeed for the little cruiser. Her actions had placed her, beyond doubt, in the minds of her pursuers as the vessel for whose capture a large reward had been offered. Subterfuge was useless. She had proclaimed herself as much as if she had flown the cross-barred flag with the wriggling rattlesnake that, bent to the color halyards, lay on deck ready to have risen and to have been tossed to the wind.

The feeling of terror that was spreading through the crew seemed to unnerve them. A French sailor, as a shot from the brig came closer than before, fell on his knees and began to call upon the saints. Something must be done, although it seemed that all human exertion would be futile, for even now the line-of-battle ship had opened up with her two forward guns, but, like her smaller consort, the shots fell harmlessly some distance off. Now the Revenge had caught the full force of the wind, and every sheet was taut as a bar of iron. The spray began to fly over her bows as she dipped and rose against the crest of the seas. For an instant it appeared as if she was holding her own, and it was so, as far as the brig was concerned; but the seventy-four was faster than her bulk would lead one to suspect. A shot came skipping along the water, jumping from wave to wave until it sank almost broad off the beam of the Revenge.

“We must try the last resort, Mr. Minott,” said Conyngham quietly; “we must lighten her.”

And with that he began to shout orders to the crew, all of whom were gathered in the waist talking in subdued voices, with much shaking of heads and low curses. As if relieved at having something to do and at hearing their captain’s voice ring with a note of assurance, they sprang forward. The swivels were cast over the side, and one after another the broadside guns followed. The effect was immediately perceptible; the Revenge seemed to lift to the sea instead of dipping into it. And now the water casks, some of which were on deck just abaft the foremast, were broken in with swift blows of the axes, and the scuppers were running full with a mixture of salt water and fresh. The shot from the lockers followed, and both anchors, cut away, were let go and plashed overboard. And now, inch by inch, the Revenge drew ahead. The brig had fallen back until she was almost astern,

and had ceased firing, but the seventy-four maintained her distance and continued, by an increased elevation of her bow-chasers, in an endeavor to reach her quarry.

It was approaching dusk; a fine red sunset, with bars of narrow blue clouds against the glare, glowed in the west; a still narrower and darker cloud was draped down from the sky above, and it looked for all the world like a picture on a grand scale of the Revenge's cross-barred flag, the wriggling snake and all. Prompted by an impulse, Conyngham stepped to the color halcyards, and with his own hands hoisted the Revenge's colors to the masthead.

As if angered by the seeming insult, the big vessel swung off a point or two until, port after port, her broadside could be seen being brought to bear. It was the very thing for which Conyngham had been waiting. By doing so she lessened her speed and lost perceptible headway.

Every nerve was tense in the captain's body as he stood there close to the taffrail waiting for the coming discharge, and trusting that the British commander had underestimated the distance or the rate of the Revenge's sailing. The brig also was repeating the maneuver and endeavoring to bring her broadside also into play, for she and the seventy-four were now sailing almost side by side.

All at once it came! A cloud of white smoke broke from the tall sides of the larger vessel, and immediately the thunderous roar of her main-deck battery followed. How the Revenge escaped was more than any one on board of her could tell, for some of the heavy shot passed over her and crashed into the crests of the waves some distance in her path. But one shot reached her, and that, striking the top of her port bulwarks, sent a shower of white splinters whirring across the deck and then glanced harmlessly into the sea.

The brig, that had yawed wide, immediately followed suit, and just here the strangest thing occurred. Whether one of the guns that she had been firing earlier in the day had not been re-aimed or whether some accident in the firing took place has never been ascertained; perhaps some impressed seaman gunner who had been taken by the press-gang in a British port now found the moment to wreak his vengeance. At all events, a shot from one of the brig's broadside guns went so wide of the mark that it caught the

foretopmast of the big one full and square just above the hounds and brought it, with a tangle of sails and rigging, lurching and swinging down to deck, where the wreckage poised for a minute and then, swayed by the wind, tangled in the head-sails and brought the vessel almost to a stop.

The chase was over! The Revenge slipped on her way, and as Conyngham looked back he could see his two pursuers shortening sail.

“Somebody’ll swing for that, Mr. Minott,” observed the captain.

“And somebody would have swung if it hadn’t happened, sir,” returned the mate, giving up the wheel, which he had been handling himself, to the now grinning helmsman.

“What course, sir?” asked the latter.

“Hold as you are,” Conyngham answered. “We’ll make some port in Spain.”

Two days later the Revenge entered the harbor of Corunna.

CHAPTER XIV

ON THE IRISH COAST

A very peaceable craft indeed the *Revenge* appeared to be as she lay at anchor in the Spanish harbor, as all evidence of her real character had disappeared. But of course Captain Conyngham did not intend long to live up to this peaceable appearance; his chief concern was to procure another armament, gather his crew together, and, nothing daunted, put back to the rich cruising grounds. It was his settled purpose to enter the Irish Channel and pick up some of the fat prizes that he knew were there ripe for the picking.

He had been forced to moor the *Revenge* to one of the naval mooring-buoys when he first entered, but upon explaining that he had lost both anchors during a stress of bad weather, the captain of the port had allowed him to remain until he could procure others.

To his delight, Conyngham had noticed five or six of his prizes lying farther up the harbor, and the *Revenge* herself had been recognized by some of the prize-crews that were still on board the latest captures.

As soon as possible Conyngham had pulled to shore and sought out the agents of the mysterious mercantile house of Hortalez and Company. At the offices of Signor Lazzonere, whom should he meet but the elder Ross!

Eager and warm were the greetings. Ross had so much to ask and so much to tell that he found it difficult to begin.

“Upon my word, captain,” he said at last, “could I have had a prayer answered, you could not have appeared at a more opportune moment. There is the old Harry to pay in France—upon no account must you return there, for——”

“I have no such intention,” was Conyngham’s answer, interrupting. “Sure our friend de Vergennes gave me hint enough for that. I shall, if I can, pick up some scrap iron here and something to throw it with, go back and pay the old country a fleeting visit, and then across the wide sea to America. But how goes it with all our friends?” he added.

“That is what I am about to tell you,” replied Ross. “Poor Hodge is in the Bastille, and my brother and Allan are confined in the prison at Dunkirk.”

“All on my account?” asked Conyngham.

“On our joint account. Charge it to the Revenge,” was the reply. “Hodge and Allan went on your bond, and at the first news that you were cruising de Vergennes remarked that ‘it was a bad matter to lie to a king,’ which he claimed they both had done, and clapped them into prison.”

Conyngham frowned and looked puzzled.

“But, upon my soul, the sheep attacked me first,” he said. “So my Lord Stormont has yet some influence.”

“But never fear,” Ross went on. “Hodge is being treated well; and as for my brother, he dines with the commandant every evening. Good news has come from America, and all things point to an early alliance between our country and France. And now,” he added, “tell me of yourself, and what do you mean by ‘scrap iron’?”

In a few words Conyngham related the story of his narrow escape and the loss of his guns, and the necessary jettisoning of his anchors and armament.

“We will arrange for all that,” was Ross’s comforting comment when he had finished. “There is money in the treasury, and the commissioners are well satisfied. There must be some now to your credit. If you should care for an accounting——”

“Let it stand,” replied Conyngham. “I desire no more than is customary for an officer in the regular service—two twentieths—and will wait for my accounting until the business is finished. By the Powers, I only ask to be at sea again.”

“The very person to help us out is Signor Lazzonere,” exclaimed Ross. “Although a Frenchman, he has strong connections here in Spain, and there is neither a Stormont nor a de Vergennes to be dealt with. Money can do a great deal when backed with a little influence.”

The conversation was here interrupted by the entrance of the merchant himself, and all then adjourned to Signor Lazzonere’s inner office.

In a few minutes Conyngham came out, a smile on his lips and a light of satisfaction dancing in his eyes.

That very night the *Revenge* was warped in with a small kedge and moored alongside a large bark that lay close inshore. Under cover of darkness there was transferred to the cruiser the very thing that her captain most wished for—a long twelve-pounder. It was hidden beneath a canvas covering in such a way that its shape took on the innocent appearance of a pile of wine casks, and the following evening work was again resumed and eight six-pounders and ten short swivels—what the French called demi-cannon—were put on board. By the fourth day the *Revenge*’s armament was practically complete. In fact, she was, if anything, in better fighting trim than ever before, and her crew was again recruited to its full strength. The Spanish authorities had paid not the least attention to the goings on, and no attempt was made to prevent her sailing, although by this time her character must have been known to every longshoreman in the port. Many Englishmen in Corunna were in high dudgeon, and as usual would have prevented her sailing if they could. But on the tenth day after her arrival, at noon of a Sunday, she made sail and put out into the rolling waters of the Bay of Biscay. The crew, all of whom had been paid part of their prize-money, looked to their young captain to bring them safely through any adventure that might be in store. Before the cruiser was out of the bay she had taken two prizes, and almost at the very spot where she had made her sensational escape she took a third. But it was in the Irish Channel that her run of luck began. No less than twelve richly laden craft were despatched to Spanish ports, and of them but two were recaptured. Nearly all of the merchantmen surrendered without making any resistance, either completely taken by surprise or, not being prepared for fighting, concluding that it would be wiser to give in at the very first summons.

But this rather inglorious method of warfare did not altogether suit Captain Conyngham's adventurous spirit, and time and again he wished for a brush with one of the king's cutters before his crew and his stores were depleted by the manning of so many prizes. As yet he had found no occasion to use the long twelve-pounder. But the opportunity was soon to come, and the way it happened was this:

The Revenge was running short of water, and owing to the necessity of dividing her stores with some of the coasters that were provisioned for voyages of only one or two days' duration, the crew was at last forced to accept half rations, and sailors will grumble quicker at this than at any form of dangerous hardship.

Once, forced by a hard blow, Conyngham had boldly made into the mouth of the English harbor of Ravensglass, in Lancashire, where of course he dared not go ashore, and owing to the presence of a British thirty-four-gun frigate he could not cut out any of the numerous fleet of merchant vessels by which he was surrounded. When the storm was over he sailed out of the harbor as boldly as he had entered it, and none of the English fleet imagined that the natty little craft that dropped anchor among them was the dreaded Yankee "pirate."

But now to the adventure: The supply of water was growing less and less. It became an absolute necessity to fill the casks in some fashion, and also to procure some fresh provisions, for scurvy, the dreaded enemy of sailors of that day, had begun to appear—at least there were signs of it, and the crew were grumbling louder than ever. So Conyngham bethought him of his promise to pay a visit to the land of his birth; and after skirting the Isle of Man in a fruitless search for a safe landing-place or a well-provisioned prize, he crossed the Channel and entered the harbor of a little Irish fishing port (the name of which he fails to record in his log) about twenty miles or so to the north of the town and harbor of Wicklow.



The dreaded Revenge was lying in the harbor.

Probably the fisher folk were simple and unsuspicious; mayhap they did not care to inquire closely into the mission of a polite fellow countryman who claimed to be a peaceable merchantman, for here Conyngham allowed his original nationality to be unmistakably plain if he did conceal his calling; or maybe it was the sight of the Spanish gold with which he paid for everything that blinded them; but they were eager and willing to help him to the things he wanted; and as many hands make light work, twelve hours sufficed to fill his casks with fresh water and his forehold with potatoes—the best cure for scurvy. Stores of various kinds to replace those he had sent to Spain were also taken on board.

It was a misty, foggy day, with very little wind. The red evening sun could not pierce the thick clouds, and the falling barometer proved that heavy weather might be expected. Conyngham was anxious to be off. He did not relish being kept longer in port than was necessary; for, although he had seen that no vessel, even of small size, had sailed out the harbor, he could not tell but that some suspicious person had traveled overland to

Wicklow bearing the news that the dreaded Revenge was lying in the harbor. So, just before darkness set in, he bade good-by to his friendly countrymen, and getting up his anchor drifted out with the tide toward the Channel.

There was a steep headland to the south, and just as the Revenge was rounding it a vessel came into full view that, from her appearance, could be none other than a British cutter. There was hardly enough wind to fill her sails, and like the Revenge she was drifting slowly with the tide.

It would be hard to conjecture what it was that caused her captain to be suspicious, but immediately upon sighting Conyngham's vessel two boats were lowered from the cutter's side and filled with armed men. They pulled out as if to intercept him. There were altogether in the Revenge's crew at this time but some thirty men left, but at once the long twelve was cast loose and the short broadside guns were double-shotted. Before the boats had traversed half the distance they were stopped by a challenging shot from the twelve-pounder, and with all haste they made back to their vessel. Although she was evidently of heavier metal, had Conyngham had his full complement of men he would not have shrunk from engaging her, but under the circumstances, as he had once remarked before, "discretion was the better part of valor," and at long range a drifting fight began.

If the people of the little fishing port had been at all in doubt as to who their visitor was, all such uncertainty was put at rest by the appearance the next morning of the cutter with her jib-boom and topsail-yard shot away and three shot holes in her hull, one at the water-line that necessitated immediate attending to.

The Revenge had escaped all injury except to her larder, a chance shot having entered at her cabin window and completely spoiled the captain's dinner; thence glancing into the galley, it broached a barrel of fine salt pork, and ended by lodging in one of the deck beams.

The cruise had ended in an adventure at last, although a rather tame one, and, satisfied with results, Captain Conyngham determined to set sail for America.

Another prize was added to his list before he was quite free of the Channel, and this was ordered to meet him at a port in the Spanish West

Indies, toward which he now laid his course, as he deemed it much wiser to ascertain how matters stood in America before making for any home port, which, for all he knew, might be in possession of the enemy.

He was satisfied with the work that he had accomplished, and well he might be. Perhaps the result of his cruises had been exaggerated, but he had prevented the sailing of two loaded transports, and from the very fear of his name over forty sail of vessels of all kinds, to quote from a contemporaneous account, “lay at anchor cooped up in the Thames.”

As Silas Deane wrote to Robert Morris and to the home Government, “His name has become more dreaded than that of the great Thurot, and merchants are constrained to ship their cargoes in French or Dutch vessels.”

Not a guard-ship on the coast but had received specific orders to be on the lookout for him, and yet he had cruised in the English and Irish Channels for month after month. Another fact that he regarded with satisfaction was that he had accomplished all this not merely as a privateersman, but as a regularly commissioned officer in the navy of his country. The prize-money due him as such, now amounting to a large sum, he regarded as safe in the hands of the commissioners.

After reaching the West Indies, where he spent some time, he learned from the American consul of the condition of affairs at home, and after waiting for the arrival of the latest prize he set sail for Philadelphia. The one thing that he regretted was the fact that he did not have in his possession the commission signed by John Hancock, then president of Congress, and given to him by Franklin in Paris, but he did not doubt that the good doctor had it in his possession and would produce it at the proper time. Without mishap, the *Revenge* sailed up the coast, slipped by the British guard-ships off the capes of Delaware, and early in February, 1779, Conyngham was home at last!

CHAPTER XV

THE CAPTURE

Of all the surprised people in Philadelphia, James Nesbit was the most astonished when into his office walked the young seaman who almost four years before had left in command of the *Charming Peggy*. The fame of his doings of course had reached America, and Mr. Nesbit's brother had written at some length of Conyngham's career in the *Surprise*, his subsequent arrest, and mysterious release; but it was not until he had spent a long afternoon in the coffee-room of the little inn around the corner, and had listened to the captain's modest and half-humorous account of his doings, that he understood what had happened in France; and he followed with breathless interest the career of the two little vessels that had flown the flag in the Channel.

When Conyngham had finished at last, Mr. Nesbit, who had not allowed himself to interrupt the recital by even so much as a question, propounded his first interrogation.

"And what do you intend to do now, Brother Conyngham?" he said. "Of course you do not mean to rest idle upon either your oars or your laurels."

"I suppose I shall have to wait orders from the Naval Committee," was the reply. "As an officer in the regular service, I have already reported my arrival and asked for an audience on the morrow. I hope," he added, "they will see fit to make use of my services."

"There is little hope of finding them in a mood to adopt any proposition of an aggressive nature," returned Mr. Nesbit ponderously, "and there are few commands lying idle. It is as much as Congress can do to keep our army supplied with clothing, food, and ammunition. The fleet under

Admiral Hopkins did not meet with any signal success. England is too strong for us on the sea.”

Conyngham shrugged his shoulders. There probably came to his mind the months during which in one little vessel he had dared the strength of the English fleets in their home waters. But he said nothing, and waited for Mr. Nesbit to continue.

“You are perfectly satisfied with the vessel which you have commanded, Captain Conyngham?” the latter asked.

“Perfectly, so far as she goes,” was the reply. “But I have it in my mind that I should like to command a larger. Sure, if you know of any loose seventy-fours wanting a skipper, you might put in a word for me. In case there is nothing better, I mean to apply for the command of the Revenge again.”

“What do you suppose that they will do with her?” asked Mr. Nesbit; and then, as if answering his own question, he went on, “Sell her, I suppose. They are in more need of money than of ships.”

As he finished speaking he leaned forward and placed his hand on Conyngham’s arm.

“If they do,” he said, “I may have a proposition to make to you. Why not let us buy her in? You could sail her under a letter of marque in joint ownership, and you must have a good sum of money to your credit. See what the privateersmen of this port and that of Baltimore have accomplished. They have practically already swept British commerce from the seas.”

“I would much sooner,” replied Conyngham, “accept a regular command; but rather than remain idle,” he concluded, “I would accept your proposition. It depends entirely upon Congress.”

“Your commission would, of course, stand you in good stead,” remarked Mr. Nesbit, “and a letter of marque could easily be obtained in addition.”

As Conyngham had not as yet joined his family, that had moved out to Germantown, he was evidently anxious to be away, and in a few minutes he

parted company with Mr. Nesbit, promising to meet him again on the morrow.

It was much to his surprise that he found himself quite a hero among his friends and acquaintances, but, strange to say, Mr. Hewes, of the Naval Committee, to whom he reported, had heard nothing official in regard to him from either Dr. Franklin or Silas Deane, and his name had not as yet been placed on the naval list.

All this, of course, caused him more chagrin than uneasiness. He claimed that the *Revenge* was subject to the orders of the Naval Committee, and gained a point at last in that they accepted her as public property, and as such she was almost immediately offered for sale at auction. "Conyngham, Nesbit and Company" bought her in, one third being credited to Gustavus, to whom Mr. Nesbit and his cousin advanced the money.

So the further fortunes of the young captain were still bound up in the *Revenge*. Unfortunately, however, there were some enemies of his at work. Whether it was the tory lawyer whose designs he had thwarted in regard to his first command (by the way, he was now a most pronounced believer in the cause of liberty), or whether it was a discharged surgeon's mate who had lodged complaints against him, Conyngham never found out. But suffice it, some one was working against him, and the letter of marque—the authority to "cruise, capture, and destroy"—was withheld by the Naval Committee and Congress. Perhaps they were waiting until they could secure some substantiation of his claim in regard to his commission—it may have been that; but, at all events, the delay grew more and more irksome to him and to his partner in the enterprise.

Good seamen were difficult to find idle in American ports; the few ships of the navy had hard work in recruiting their complement; almost every one who followed the sea for a living was already off privateering, and the *Revenge* was forced to complete her crew out of the riffraff of the docks, supplemented by numerous landmen who, attracted by the rich rewards offered, dodged service in the army and flocked to the seaports. Out of the crew of one hundred men that Conyngham had hastily gathered together, only twenty-two had seen service on deep water, and more than half of these were men who had served with him in the Channel cruise. Owing to the delay in sailing, the *Revenge's* people were almost in a state

of mutiny, and for three weeks nothing but the young captain's presence on board his vessel prevented wholesale desertions. One day there came a notice from Mr. Nesbit—the *Revenge* was anchored out in the river—informing him that the letter of marque was likely to be refused, and intimating that probably the Naval Committee would require his presence on shore, to be placed on waiting orders.

This was too much for Conyngham's gallant spirit. The prospect of months of inaction galled him, and he replied that if he left his vessel the greater part of the crew would desert and the whole adventure be a failure.

It was while he was writing this in a note to be taken ashore to his partners that he remembered that the second commission, given him by Mr. Hodge in Dunkirk, was still in his possession. It had never been rescinded, and the vessel he commanded was the same! It was surely authority enough. Without hesitation he added a postscript—"Am sailing with the flood-tide in half an hour"—and sent the note off to Mr. Nesbit. So the deciding die was cast, and at the top of the flood the *Revenge* made out into the midstream and floated into the lower bay. The green crew, glad to be off, burst into a ragged cheer. Had they known what was before them they would not have felt so much like rejoicing.

It did not take the captain long to find out that his crew of farmhands and dock-rats was vastly different from the able lot of seamen that had contributed so much to the previous success of the *Revenge*. Before they were half-way to the capes a few had broken into the storeroom and a dozen were too drunk to pull a rope. The captain and the mate had their hands full, and the obstreperous ones were double-ironed and placed in the hold, to get sober at their leisure.

There was time found for one or two drills at the guns before the cruiser was out in the Atlantic, and here, as might have been expected, half of the crew were seasick and almost incapacitated from duty. Off the New Jersey coast, as the *Revenge* proceeded northward, she ran into thick and stormy weather. On the third day, the 26th of April, while the wind went down the fog increased, and when it cleared away at last the captain found himself some ten miles south of Sandy Hook. Dead ahead were two small square-rigged vessels that had the look of English transports or supply ships, and Conyngham made all sail in chase.

This was the year 1779—a dreary one for the struggling colonies. New York city was in possession of the English troops under Lord Howe, and the Revenge was in dangerous waters; but the captain was in a reckless mood, and boldness having served his purpose so well at various times, he disdained his old adage about “discretion,” and pressed ahead. Once more the fog closed down, the wind died completely away, and as night came on the Revenge drifted slowly along on the round, oily seas, her prow turning first this way and then that. All night she swung about, when, early in the morning, a slight wind sprang up that Conyngham took advantage of to work off shore. But it held only for an hour or so, and fell calm again. The fog was thicker than ever at daybreak—one of those opaque white mists that the sun finds it impossible to penetrate, and seems to give up trying in despair.

The captain had been on deck all night, and, tired out, was lying on the cabin transom half asleep when suddenly he was awakened by the shrilling of a boatswain’s pipe, so close that it seemed to come from his own forecastle. Then, as if it were the signal for the lifting of the misty shroud, the fog broke and there lay the Revenge under the stern of a huge seventy-four. Under her gallery there could be read plainly the word “Galatea.”

It was all up! Even with the stiffest and most favorable wind, the little cruiser could not have escaped; she would have been blown out of the water before she had gone a cable’s length.

There was nothing to do. In two minutes two boatloads of armed sailors and marines had put off from the big vessel, and soon they clambered unmolested over the Revenge’s bulwarks.

“Who commands this vessel?” asked a red-faced lieutenant.

“I have the honor,” replied Conyngham, giving his name.

The lieutenant whistled.

“Conyngham!” he exclaimed. “Are you the pirate who sailed out of Dunkirk?”

“I am an officer in the navy of the United Colonies,” was Conyngham’s reply, “and will answer further questions to your superior officer.”

“That you will do at once,” sneered the lieutenant, and he gave orders for Conyngham to enter one of the boats. Much elated, he rowed off with his prisoner to the seventy-four.

On his way Conyngham learned that his captor was Captain Jordan, whose commodore was Sir George Collier, and his heart sank, for he knew that the latter had a reputation for being a man of a cruel and vindictive temper. The *Galatea* was the very vessel from which the *Revenge* had escaped off Land’s End on that memorable afternoon when the cross-barred flag had appeared in the sky. He felt that he could expect small favors under the circumstances, but his chief concern was for his crew. Poor fellows! Some had not even recovered from their sea-sickness. Now more than ever he longed for his missing regular commission. But one thing rejoiced him—war was now on between France and England. Stormont had packed up his belongings for the last time.

CHAPTER XVI

IMPRISONMENT

It would take another book to describe the immediate and subsequent adventures and misadventures of Captain Conyngham in prison, for the next few months of his life were passed in such close confinement that it seems almost incredible that any human being could have survived it. He kept a diary during this period that is merely a recital of his sufferings, and yet we can not pass them over in silence, but must outline what happened from the day of his capture to the day of his first attempted escape, an escape that led only to recapture and worse treatment, if possible, than before.

But we are anticipating. As soon as Captain Jordan learned who his prisoner was he was much elated, but Conyngham's own journal gives an account of these trying days in the following picturesque language:

"On first going aboard the ship I was abused by a Mr. Cooper, who acted as first lieutenant and took my commission. He sent every one, without exception, to the hold. After some time a message came for 'Captain Conyngham,' and I was introduced in the gun-room to the purser of the ship, Mr. Thomas, surgeon of the ship, and Mr. Murray, master. After some little time Mr. Cooper, the lieutenant, makes his appearance. I find his behavior different from what I had reason to expect, and I am made to understand it is the captain's orders to be treated well and granted the liberty of his quarter-deck. The officers and men still in the hold. Very disagreeable, so warm. The following day, Mr. Waln, my first lieutenant; Mr. Heyman, second lieutenant; Mr. Lewis, captain of marines; Mr. Downey, master, relieved from the hold and given liberty of the lower decks. Mr. Campbell, a prize-master, ordered into irons.

“Upon our arrival in New York, Mr. Waln was sent on board the flagship to see the Commodore, Sir George Collier. Mr. Waln told me on his return that he was solicited to enter on board the ship. What an honor, to walk his Majesty’s quarter-deck! Mr. Waln declared he would not, that he was a prisoner. The answer was made, ‘You shall go, then, to England with Mr. Conyngham,’ and he was dismissed. I soon learned by Mr. Cooper that my people were to be distributed among the men-of-war. Boats came alongside with officers for the prisoners. One officer in particular, by his appearance a lieutenant, an Irishman, addressed me in these words: ‘So, Mr. Conyngham, you have prospered long and in different stages?’ I answered him, ‘Not so many or so long.’ After some hesitation he walked off.

“The crew and officers were sent on board different men-of-war, as I understood, after many threatenings to get them to enter the English service. Most of them were sent on board the prison ship with the officers. After being in the East River, I was detained on board the Galatea myself, with one leg in irons. I petitioned Captain Read to alter my situation, asking if possible to be put along with other American prisoners. In a short time I was sent to the provost prison with officers and guard of marines. Upon application he conducted me to the condemned room, where was one person that was in on suspicion of being concerned in theft, another supposed to be a spy. It was a dismal prospect. At six in the evening the provost master, a Mr. Cunningham, came to see me. I begged to know the reason of such usage. He said his order was to put me in the strongest room, without the least morsel of bread from the jailer; water I had given to me. The Continental prisoners found a method through the keyhole of the door to convey me some necessities of life, although a second door obstructed the getting in of very much.

“At the end of the week I was let out of this room and introduced into the Congress room by Mr. Cunningham. I was then given the liberty of the prison.

“On the 17th of June a deputy sergeant, a Mr. Gluby, desired I should get ready to go on board the prison ship. After some little time Mr. Lang came to the door, called to me, and I took my leave of my fellow prisoners. Went down stairs, and was conveyed to another private apartment. There a large heavy iron was brought with two large links, and ring welded on. I was linked to the jail door, and when released found it almost impossible to

walk. Got into a cart that was provided for that purpose, and led to waterside by the hangman. Then I was taken in a boat alongside of the Commodore Sir George Collier, his ship being the *Raisonable*. There I was shown an order to take me on board the packet in irons, signed 'Jones.' Up to this time I was made to believe I was going on board the prison ship."

So it was evident to Conyngham that the English were about to redeem, if possible, their threat of seeing him dance at the yard-arm, and that he was going to be taken to England for trial. On the 20th of June he sailed in the packet under the convoy of the *Camilla*, and, still in irons and in close confinement, he applied to the captain to have the links taken off his legs and arms. After some time this was done, and he was allowed a half an hour a day on deck to get the air.

On the 7th of July the packet arrived in Falmouth harbor and the prisoners were taken off in the press boats. A Captain Bult came on board and read an order from Sir George Collier, the purport of which was that Conyngham should be put in close confinement in Pendennis Castle until the wishes of the Lords of the Admiralty were known.

On his way to the castle he was gazed upon by the large crowds that had collected, as it had become noised about that "Conyngham the pirate" had been taken.

It was evident that the authorities wished to prove that Conyngham was still a subject of King George, for many times men were brought to see him in an attempt to identify him. On one occasion a woman was admitted to see him, so he records in his diary, who promised that he would be released if he acknowledged that he was her husband. Of course he indignantly repudiated such a trick, and discovered subsequently that her husband was a man who some years before had been accused of murder and had escaped out of the country.

Every night poor Conyngham was put in irons, and his diary is but a record of hardships and suffering. Curious people came in day after day to gaze at the prisoner, and yet there was no prospect of his being brought to trial.

On the 23d of July we find an entry as follows:

“A sailor declared in Falmouth before different people that he could take his oath that I was with Captain Jones when he threatened to set White Haven on fire. This was told me by Sergeant Williams of the guard, and this day the irons on my hands were beat close to my wrists.”

On the 24th of the month Conyngham was moved from the castle to the celebrated Mill prison. For the first time the irons were taken off when he was placed aboard the vessel that was to convey him to Plymouth, where immediately he was transferred to Mill prison. For a few days he was confined in what was known as the “Black Hole,” an underground dungeon without either light or air. It was not until the 7th of August that he was brought out for a preliminary trial, and then he was committed again to the prison by the justices of the peace, on the charge of high treason.

All this time Conyngham was planning to escape. Not an opportunity went by that he did not seize upon to extend his plans. After his being remanded on the high-treason charge, strange to say, his treatment improved and he was allowed the liberty of the jail-yard, and found opportunity on one or two occasions to converse with some of his fellow prisoners. Many of them were Frenchmen, who had been taken in the actions with the French fleet. On one occasion a battle was fought within hearing of Plymouth, and the soldiers and inhabitants, fearing that the French were going to attempt to land, began to throw up earthworks and entrenchments along the water front. Among the prisoners that were brought in was a Frenchman who had served in the capacity of surgeon on one of the captured vessels. He was a man of education, and his clothes were of a better character and texture than those of the other prisoners, who were mostly common seamen. He spoke no English, however, and Conyngham had to talk with him in French. Now it happened that the prison doctor, who made his round of visits every day, was a short, slight man, something of the young captain’s general build and appearance. The clothes he wore were black, and he usually carried a book under his arm in which he kept a record of his patients and their condition. It suggested itself to Conyngham that it might be easy for the Frenchman so to disguise himself that he might be taken for the doctor, and by walking out boldly past the sentries in the evening gain the outside of the prison walls and conceal himself in the town.

“All you need,” Conyngham observed, speaking in French, “is a pair of huge horn spectacles, pull your hat well down over your eyes, and walk out of the door. I’ve studied the doctor’s gait—he walks like this——”

Suiting the action to the word, Conyngham gave a very good imitation of the English doctor’s mincing step. The Frenchman laughed.

“My faith!” he exclaimed, “it is it to the life! I have observed him. But remember this, my friend; I speak no English and would be helpless; they would discover me at once.”

A day or so later the Frenchman and Conyngham met again in the jail-yard. The latter motioned his friend aside to where one of the stone buttresses hid them from the sight of the sentry who was watching the yard.

“Here,” said the captain; “with this wire I have made a pair of spectacles, and in the evening no one would notice that there is not glass inside the rims.”

As he spoke he placed the wire upon his nose, drew down his upper lip, and the Frenchman looked at him and laughed.

“My faith!” he said again, “it is the doctor to the life.” And then, as if an idea had suddenly dawned upon him, he touched Conyngham on the shoulder. “It is you who should try it,” he said. “You shall have my clothes. I can give them to you piece by piece, and as they have allowed me to keep some others I shall not miss them.”

At first Conyngham demurred, but the Frenchman was insistent, and so the next night and the next transfers were made unobserved in the jail-yard, and the captain secreted the clothing inside the mattress upon which he slept on the floor of his cell. From another prisoner a hat was obtained almost like the heavy three-cornered affair that the visiting doctor wore. A book was procured somewhat resembling the doctor’s.

Saturday evening was set for a trial of the plan. Conyngham was most anxious to get away. He had, by his trick of reading people’s lips, discovered that there was a plot on foot to convict him if possible of the charge that hung over his head. A man had been found who swore that he had known him in Ireland, and another who had positively identified him as his brother. If they could prove the contention that he was a British subject

he would have short shrift of it, so it behooved him not to put off long the attempted escape.

Saturday afternoon at about five o'clock the prisoners were released in batches of ten or a dozen for exercise in the courtyard. When the door of Conyngham's cell was opened he feigned indisposition, and asked only to be allowed to sit in the doorway where he could breathe the fresher air; but no sooner had the turnkey left than he quickly donned the Frenchman's black small-clothes and the long coat, and putting on the spectacles and the big hat he stepped out into the corridor that opened into the yard. Imitating carefully the doctor's step and holding the book under his arm, instead of turning to the left he went down the corridor to the right, at the end of which stood the first sentry at the entrance to the guard-room. It was dark in the corridor, and what light there was came from behind him. The sentry hardly looked at him; turning the key and pulling the bolt, he let him pass.

He was now in the room that was occupied by the soldiers whose special duty was to watch the prisoners and to patrol the outer walls, but the room, by luck, was empty except for a sergeant, who, with his coat off and his feet propped against the wall, sat snoring in a chair. At first Conyngham was uncertain which of the two doors, that led out of the apartment, to take. He chose the one to the right again, and opening it came into another room where at the farther end three soldiers were throwing dice. They paused in their game as he entered and looked up at him. At first it appeared as if the one who was holding the dice-box was about to address him, but one of his companions, with an oath, exclaimed, "It's only the doctor; go on with the game, you blockhead!" and the men proceeded, rattling the dice and then tossing them on to the bench. Conyngham walked past them and opened the door that led out of the prison entrance, and here he had to go through a worse ordeal than ever, for he came into the daylight, and there within twenty feet of him stood the man on guard. He was in full regimentals, with his long red coat and white cross-belts, and propped against him at an attitude of attention was his loaded musket with the bayonet fixed. Conyngham pulled the hat a little farther over his eyes, and opening the imitation note-book he began muttering to himself the way he had seen the doctor do. Closer and closer he came to the sentry. In his imagination he could feel the man's eyes looking through and through him, and he thought he could detect a shuffling of his feet as if he was stepping to intercept him.

He was past the sentry now, and thought he was over the worst of it when the latter spoke.

“Halt there! The countersign!” the man demanded; but as if deaf Conyngham walked on. “Halt there!” came the second hail.

It would never do to stop. Hastening his mincing steps and as if oblivious of everything but his note-book, the supposed doctor walked on. He even heard the sentry mutter, “Confound the old fool! I’d like to send a ball after him.” He never turned his head.

Now he was free of the shadows of the prison walls. Before him stretched a wide street running down to the town, and to the right was a meadow, upon which were some trees, with benches under them. As he concluded that it would be better not to trust his disguise any further until after dark, he walked over to one of the benches, and, still in the sight of the sentry, sat down and pretended to scribble something in the note-book. In a few minutes the sun had sunk below a bank of clouds in the west, and getting to his feet he walked toward a little lane, intending to follow it until he could turn into the main street some distance below. But here his good fortune deserted him. On the very first corner stood a man with a basket on his arm. It was a huckster who had been allowed the privilege of selling oranges and small cakes in the prison-yard. Maybe the sense of security had caused the captain to forget to imitate the doctor’s step. At all events, as he approached the man with the basket the latter turned and looked at him intently; then, after he had passed, the huckster walked quickly up the lane, and when he had reached the common started at a run for the prison gate.

“That Yankee pirate Conyngham is loose!” he cried. “I just met him yonder at the corner.”

“You’re mad, man!” returned the sentry. “That was the doctor; he just passed out.”

“It was not,” replied the orangeman hastily. “I know him well; it was Conyngham in disguise.”

The sentry was about to call back into the guard-room when an officer appeared. To him the excited orangeman repeated the news.

“We’ll see about this!” was the officer’s reply, and he despatched a messenger at once to Conyngham’s cell. The fellow returned on the run.

“It is true, captain!” he cried. “Conyngham is not in his cell or the yard, and the doctor is calling the sick list in the French division.”

An instant later a drum rolled and a scurrying squad of red-coated soldiers hastened at double-quick down the main street toward the town.

They found the supposed doctor conversing with a merchant, at the door of his shop, from whom he was asking directions and the time of the next coach going to London, for there Conyngham knew of friends who would help him, and the big city was the safest hiding-place, as shall be hereinafter proved. It was useless to offer resistance, and without a word he surrendered and was marched back to the prison gate.

That night, shorn of his good clothes and in double irons, he was placed once more in the “Black Hole.” He dreamed that some one had restored to him the lost commission, and that instead of being confined as a pirate and a man supposed to be guilty of high treason, he had been treated as an officer should be and accorded the privileges of his position; but he awoke cold and stiff, with the knowledge that his captors would now be harder upon him than ever, and, as he wrote in his own diary, it was “a dismal prospect” again.

CHAPTER XVII

FREEDOM

That Dr. Franklin had been much concerned in regard to the treatment accorded to Captain Conyngham by the British authorities is proved by the letters and correspondence that passed between him and Conyngham's friends. Let us look at these letters for a moment and we shall see that these friends were not idle. Here are the authentic copies of a portion of the correspondence.

Jonathan Nesbit, the nephew of Mr. James Nesbit, of Philadelphia, was yet in Europe, living for the time at L'Orient, and in September he wrote to Dr. Franklin as follows:

“L'ORIENT, *Sept. 22, 1779.*

“SIR: By the brig Retaliation, Captain Kolloch, which left Philadelphia the 10th August, I have received letters informing me that Captain G. Conyngham, late commander of the cutter Revenge, had the misfortune to be taken last spring by the Galatea and sent into New York, from whence he had been sent to England with a design to have him tried for piracy. They pretend to say that he took the Harwich packet without having any commission, which your Excellency must know to be false—as I believe you were in Paris at the time that his commission and orders were delivered him. The commission under which he acted as captain of the Revenge is dated, I apprehend, after the taking of the Harwich packet. It is on this circumstance, no doubt, that the charge of piracy is founded. His first commission was taken from him in Dunkirk after he was put in jail and sent up to Paris, and I think was lodged in the hands of M. Comte de Vergennes. I have to request that your Excellency

will do everything in your power to prevent the poor fellow from suffering. Considering the smallness of his vessel and the difficulty he labored under when he first left France, he has done a great deal for the service of his country. He has done so much harm to the enemy that he can expect no mercy at their hands, and if they can find any pretense whatever, they will certainly destroy him. Captain Kolloch informs me that he was sent home in irons. I should certainly have heard from him was he not already confined. I once more take the liberty to recommend the unhappy man's case to your Excellency's particular attention.

"I have the honor to be, with great respect,

"JONATHAN NESBIT."

Before this, however, Dr. Franklin had been informed of the condition of affairs, and he had written to secret friends of America in London and tried to get them to interfere in some way for the gallant captain, or at least to endeavor to mitigate the circumstances of his imprisonment. He replies to Mr. Nesbit in the following letter:

"To Mr. Nesbit.

"PASSY, Sept. 20 1779.

"SIR: Captain Conyngham has not been neglected. As soon as I heard of his arrival in England, I wrote to a friend to furnish him with what money he might want, and to assure him that he had never acted without a commission. I have been made to understand in answer that there is no intention to prosecute him, and that he was accordingly removed from Pendennis Castle and put among the common prisoners at Plymouth, to take his turn for exchange. The Congress, hearing of the threats to sacrifice him, put three officers in close confinement to abide his fate, and acquainted Sir George Collier with their determination, who probably wrote to the British ministers. I thank you for informing me what became of his first commission.

"I suppose I can easily recover it, to produce on occasion. Probably the date of that taken with him, being posterior to his

capture of the packet, made the enemy think they had an advantage against him. But when the English Government have encouraged our sailors, entrusted with our vessels, to betray that trust, run away with the vessels, and bring them into English ports, giving such lawful prizes, it was foolish imprudence in the English commodore to talk of hanging one of our captains for taking a prize without commission.

“I have the honor to be, with great esteem, sir,

“B. FRANKLIN.”

Rumors, and then certain assurance, soon came to Paris that a wholesale escape of American prisoners had taken place from Mill prison, and on November 23d Franklin was rejoiced to receive the following letter, dated November 18th, at Amsterdam:

“SIR: I have the pleasure to inform you that on the 3d inst., I, with about fifty of our unfortunate countrymen, broke out of Mill prison. I brought three officers with me. I came by the way of London, it being the safest. At London we met with our good friend Mr. Digges, who did everything in his power to serve one and all his countrymen that chance to fall in his way. Happy we to have such a man among the set of tyrants they have in that country! The treatment I have received is unparalleled. Iron, dungeons, hunger, the hangman’s cart, I have experienced. I shall set off from here the 19th for Dunkirk. There I shall be glad to hear from you. I shall always be ready to serve my country, and happy should I be to be able to come alongside some of those petty tyrants. I find something of the effects of my confinement. In a short time will be able to retaliate. I should at this time go out with Captain Jones or in the squadron, could I have heard from you. I should be glad to go for the Continent if a good opportunity served. In this I shall take your advice, and act accordingly.

“The cash Mr. Digges supplied me with, and some necessities I got at Plymouth. The friend we have at Plymouth is obliged to act with the greatest caution. Mr. Redmond Conyngham, in Ireland, has

ordered me some little supply through the hands of David Hartley, of London—a mortal enemy of America, by all accounts.

“From your most obedient and very humble servant,

“G. CONYNGHAM.”

One more letter—Franklin’s answer to this one just quoted—and we have done with the correspondence.

“PASSY, Nov. 22, 1779.

“SIR: It gave me great pleasure to hear of your escape out of prison, which I first learned from six of the men who broke out with you and came to France in a boat. I was then anxious lest you should be retaken, and I am very glad indeed to hear of your safe arrival at Amsterdam. I think it will be best for you to stay awhile at Dunkirk till we see what becomes of the little squadron from Holland, for which it is said the English are lying in wait with superior force. The Congress resented exceedingly the inhuman treatment you met with, and it ordered three English officers to be confined in the same manner, to abide your fate.

“There are some Frenchmen returned to Dunkirk who were put by you into one of your first prizes, which was afterward carried into England. I wish you would adjust their claims of wages, prize-money, etc., and put them in a way of getting what may be due to them.

“I write to Mr. Coffyn by this post, to supply you with necessaries. You will be as frugal as possible, money being scarce with me, and the calls upon me abundant.

“With great esteem, I have the honor, etc.,

“B. FRANKLIN.”

Now let us return to Conyngham and follow him through the excitement of the escape that he refers to so casually.

The English officers in charge of the prison not only visited revenge upon Conyngham’s head for the clever ruse that had almost been

successful, but they made most of the other American prisoners suffer also. Below ground, under the center of the western wing of Mill prison, were the “Black Holes,” or dungeons, and in the largest one of these Conyngham, with three officers of American privateers and fifty men—captured seamen—were confined. Four times a day and twice during the night was the damp and dismal apartment inspected, and yet no sooner had they all been placed inside and the heavy door locked behind them than Conyngham proposed that a meeting should be held and that they should appoint a leader who was to rule and govern them. At once the proposition was made to him, that as senior officer he should at once take the responsibility himself. At first modestly he refused, but the rest of the prisoners would hear of nothing but his acceptance, and so, wisely, the first thing he did was to appoint a committee that examined into each man’s pedigree and position in order to be assured that there were no spies among them. No suspicious persons were developed by the inquiry, and that very evening Conyngham detailed the plans for the attempted escape. Upon searching the apartment the first thing he discovered was a loose flat stone in the flooring. Upon being removed the ground was found to be soft and sandy underneath—so much so that it could be almost scooped out with the hand. Digging began that very night under Conyngham’s direction, a watchful person being placed at the door to listen to the approaching footsteps of the patrol.

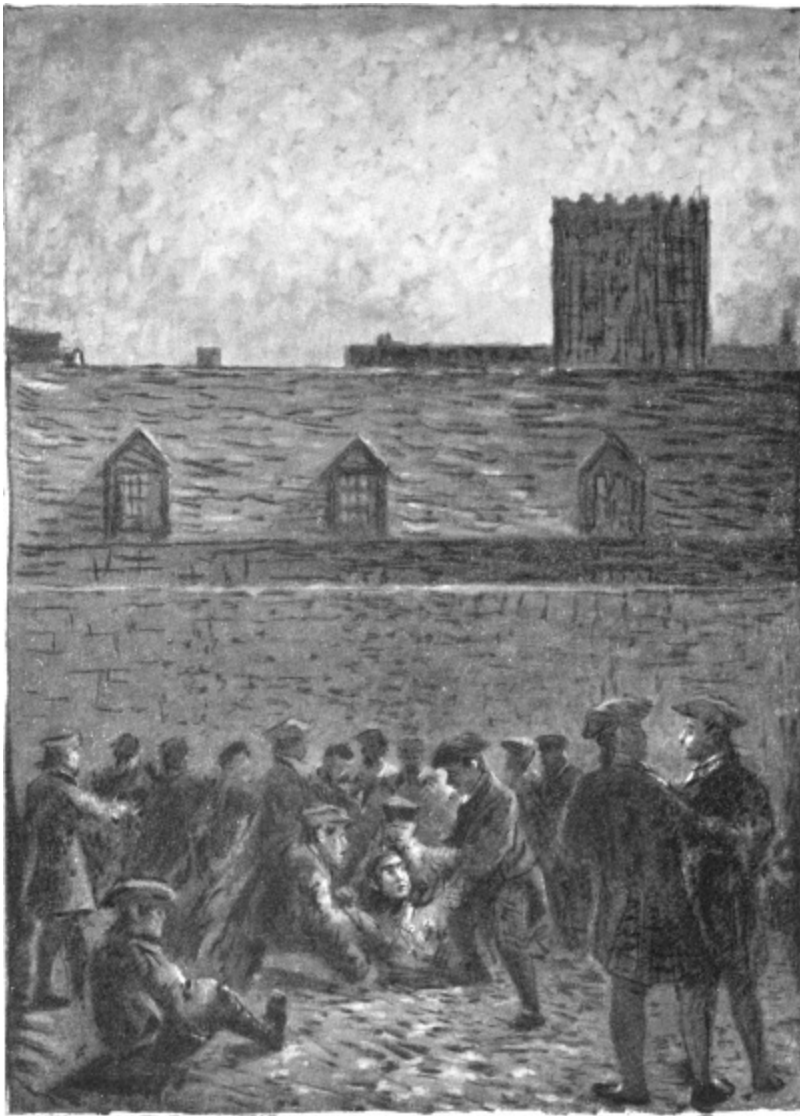
Conyngham had well gauged the distance and direction that the tunnel should take to bring him out at the edge of the common outside of the prison walls. The earth as it was dug up was concealed under the mattresses, and from thence transferred to the pockets of the prisoners, who carried it out handful by handful when they were in the corridor, the privileges of the jail-yard being now denied them. During the day and when the men were not working, for they had arranged the labor and divided the time into watches of half an hour each, the stone that concealed the opening was itself hidden by one of the straw pallets.

The guards continued to be unsuspecting, and one night, late in October, the two men who were at work in the farthest end of the tunnel came quickly back announcing that they were so close to the surface that the earth was beginning to break and crumble. It was very fortunate that they had found beneath the first layer of soft sand a stratum of hard clay mixed with gravel, which required no prop or support to prevent its caving.

Work now for a time was suspended, Conyngham concluding to wait for the moonlight nights, and yet to choose one when the light would not be too brilliant. The hour settled upon was when the shadow of the prison would lie heavy upon the spot where the breaking out would take place.

No better night could one imagine than that of the first Monday of November, when every one was warned to make ready for escape. Conyngham himself led the way and dug, lying on his back with the earth falling all about him, until at last he could feel the free air as his hand broke through the upper crust. In three minutes more a hole was made sufficiently large to admit of his thrusting forth his head and shoulders.

It was dangerous indeed, for should a sentry happen by any chance to be in the vicinity, not only might the discovery lead at once to the detection of the plot, but also to death by a musket-ball. No one was in sight! The deep black shadows lay heavy under the high wall, and above it towered the great roof of the prison. Beyond them rose the square watch-tower against the gray misty moonlit sky. All at once he heard a voice behind him. It was evident that if he did not take care, the very eagerness of the men to make their way out would prove their own undoing, for they had already begun jostling and shoving one another, despite the stringent orders he had given. With great difficulty he forced his way back through the hole, and there in a few earnest words impressed upon them the necessity for caution and patience. Order restored and the muttering stopped, he drew himself by sheer strength out of the hole and rose to his knees on the ground outside. One after another the men were pulled forth. All went well until the last man's turn came. I say "man," but in reality he was a huge overgrown boy, whose weeks of imprisonment had not appeared to have reduced his bulk, for he stuck fast in the hole and apparently could not be moved either one way or the other. If the position had not been so full of danger it might have been found amusing, but every minute's delay increased the prospect of discovery, so they struggled to relieve the fat boy from his predicament. Three men had hold of one of his arms, when suddenly he gave a sharp cry. He once had been hurt or wounded, and in their endeavors to release him they had broken the large bone of his forearm. However, after his first outcry the poor fellow said nothing, and by dint of digging and more careful hauling they succeeded in releasing him.



One after another the men were pulled forth.

By common consent they were to divide into small parties and make their way to London or the vicinity, where from their various hiding-places they were to inform a certain Mr. Digges of their arrival. It would be six hours and more before their escape would be discovered.

One by one, keeping close to the cover of the walls, they each made the shelter of a small clump of bushes, from which they reached a wood about a half mile distant, where a meeting was held to determine on their future course of action. It was a very short one, for Conyngham dominated it and

impressed upon them the necessity for haste. Soon all were on the highroad, which they followed for about five miles and then broke up in small parties as had been arranged for. Strange to say, only fourteen of them, so far as could be ascertained, were ever recaptured. The fat boy escaped!

Conyngham and one of the officers were the first to reach London, where they immediately repaired to the house of Mr. Digges, who provided them with food, money, and clothing, and despite the great risk began to make preparations to assist the other men as they should arrive.

Conyngham, while walking the streets of London, had the pleasure of seeing displayed, in the window of a print-shop, a most extravagant print alleged to be his portrait, “representing him a man of gigantic stature, very broad in the shoulders, the whole person indicating great strength, with a ferocious countenance. Under the arm was a sword at least six feet long, and beneath the whole was the legend, ‘The Yankee Pirate, Conyngham, the arch-rebel. An Admirable likeness.’”

Soon a vessel was found that was sailing for Amsterdam, and on board of her Conyngham embarked in the guise of an English merchant, but before this, six of his companions had made their way to the seacoast, where they had helped themselves to a small fishing boat and arrived safely on the French coast. As soon as he reached Amsterdam he wrote the letter to Benjamin Franklin which we quoted at the beginning of this chapter.

John Paul Jones was then in the Texel, where he was having any amount of trouble with the Dutch authorities owing to the objections of the English representatives to his remaining there with his prizes. Conyngham joined him, when at last he was forced to leave, and sailed with him in the Alliance; but the captain’s misfortunes were not yet over.

CHAPTER XVIII

CONCLUSION

The Alliance put into Corunna, where Conyngham saw again representatives of the house of Roderigo, Hortalez and Company, and learned that the money received for the prizes had been forwarded to the commissioner's agent at Paris.

Although he had been treated as an officer of the regular service by John Paul Jones, and had been summoned to attend a court-martial as such, Conyngham decided to return as soon as possible to his own country and sailed in the Experiment for Philadelphia. But most unfortunately his hard luck followed him. When but a few days on the voyage the vessel was captured by the British Admiral Edwards, and within three weeks Conyngham was back once more at Mill prison. But his treatment this time was very different from that which had been accorded him before; and though his spirit chafed at the delay and the confinement, still he was not forced to endure such bodily suffering. In prison, however, he stayed for the rest of the war, and upon his release returned to the United States.

Philadelphia Decr 26 1797
To the Honourable the Senate House of Representatives
of the United States of America in Congress Assembled
The petition of Gustavus Conyngham
Respectfully Sheweth
That he feels it incumbent on him
once more to apply to your Honourable Body, on a subject
which has been of equal Anceity and Importance to him, for
many years past, without having been able to obtain any
Decision on his Claim on the United States —
To recapitulate to your Honourable Body, his services and dangers
during his command of the Revenge Cutter, or to paint in just
and glowing Colours, the cruel & grievous Sufferings he experienced,
during a long & tedious captivity, would be at this time irrelevant
to the sole object of this petition, which is simply to request of
your Hon^{ble} Body, that his claim, of compensation for services
rendered to his country, during her revolutionary War, should
be decided on. — Altho he has sent petition after petition, to the
proper Authority, from the year 1779, untill his last petition
to your Hon^{ble} Body in the year 1793, yet it remains to this day,
in the same state of Doubt & uncertainty, to him, no investigation
or report having yet been made. —
The nature of the Claim of
your petitioner will be capitally stated by him, to whom your
Honourable Body, may think proper to refer it. — That a
speedy enquiry may be made, and an early decision adopted
by your Hon^{ble} Body, is the Earnest & solemn prayer, of your
Petitioner. —
Gustavus Conyngham

Facsimile of Conyngham's petition to Congress, December 26, 1797.

Almost immediately he sought to have an inquiry made and an accounting rendered for his prize-money and reimbursement for his services, but owing to the condition of affairs that existed at that time it was difficult to get Congress to take any action. There was indeed but little money in the Treasury, and so he was forced to go upon a voyage in a merchant vessel, from which he returned to begin institution of his long suit against Congress for remuneration and redress. And now the tragedy of his life began. For year after year he prayed and petitioned Congress to listen to his plea. Before the matter came actually to trial, good Dr. Franklin was dead. Many witnesses could not be procured, and some of his earlier acquaintances and friends who had not behaved in good faith toward him now deserted him completely.

The missing commission would have proved his position, and the search for it became almost the business of his life. A voyage to Europe and a personal investigation of all clues failed to show any trace. It had disappeared as completely as if it had never existed—a fact which some of his enemies asserted to be the case.

In this chapter we print a facsimile of his petition to Congress, signed by himself and dated ten years after his first services were rendered. It shows how much hope he had, and yet there is a note almost of despair that rings throughout it. The claim was first submitted to Benjamin Walker by Alexander Hamilton, then at the head of the Treasury, and Mr. Walker failed to perceive any proof of Captain Conyngham's having been a regularly appointed officer in the service, and for this reason recommended that the claim be not acknowledged. But yet we find him again in 1793 petitioning Alexander Hamilton for redress. In fact, to the day of his death he attempted in every way to have his claim, that he had left to the justice of his country, adjusted and closed up.

During the *quasi* war with France, Conyngham commanded an armed brig named the *Maria*, and in the War of 1812 he again sought to go to sea, but his health prevented him taking an active part.

Treasury Department July 5.th 1793. -
Sir

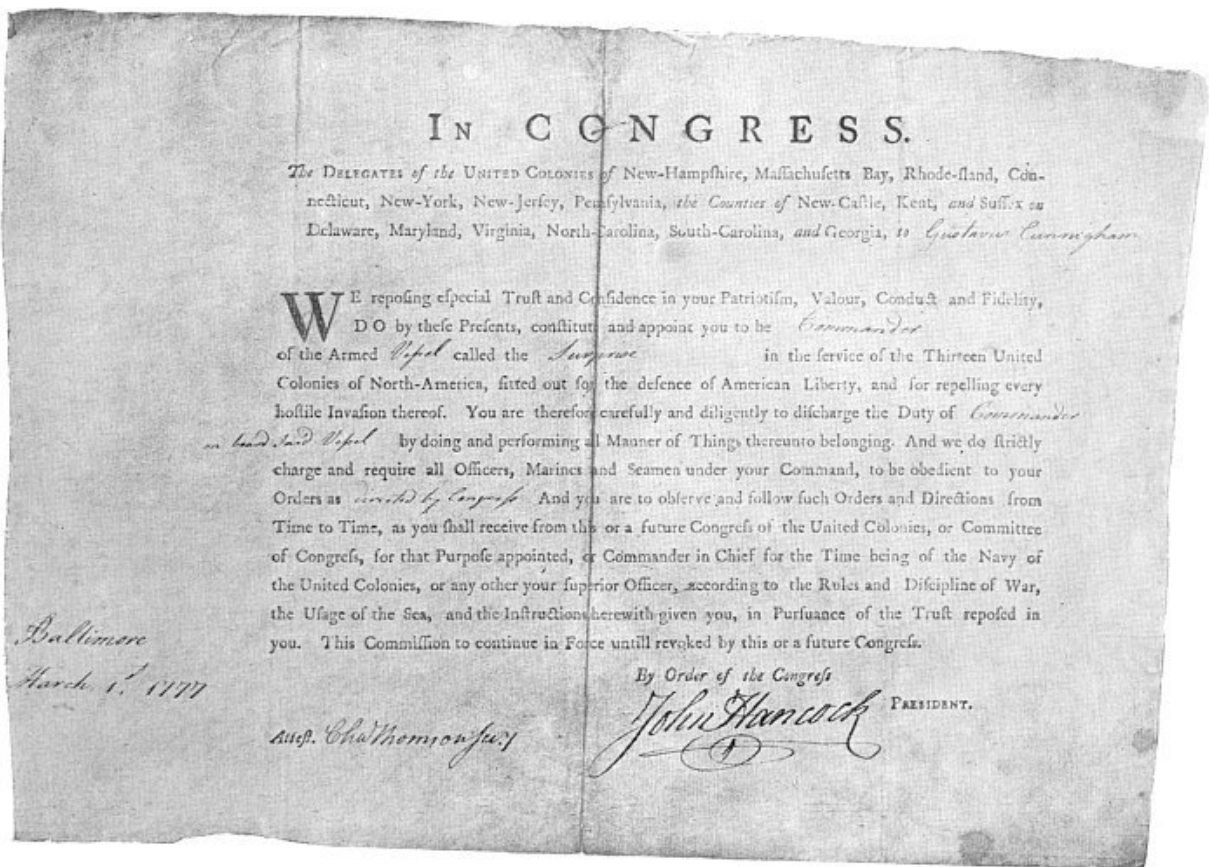
I have to acknowledge the receipt
of Your note of the 1st instant, respecting Your
claim upon the United States, and to assure You
that a report on the Petition which was referred
to me will be made to Congress next session

I am Sir
Your obed^t Serv^t,

A Hamilton

Capt. Conyngham once more takes the liberty of stating to the
Secretary of the Treasury - that his claim for services
rendered to the United States during the last war - still
remains undecided on - The Secretary of the Treasury having
assured Cap. Conyngham by note dated July 5.th 1793. that
a report on his petition would be made to Congress at their
next session - he has leave to urge to the Secretary
his anxiety to have it one way or the other as speedily as
possibly determined - 31st March 1794 -
Capt. Gustavus Conyngham

Conyngham died in Philadelphia, November 27, 1819, in the seventy-second year of his age, and was buried in St. Peter's churchyard, and on his grave is an odd epitaph in the form of an acrostic built on the name "Gustavus."



The "lost commission."

But now appears the strangest part of the whole story—one of those remarkable instances that so well prove the old adage of "facts being stranger than fiction." It is the tragic epilogue to the play—the bitter end of the thread that runs through the whole of the relation. It does not take long to tell, and surely it speaks for itself.

Only a short time ago there appeared in the catalogue of M. Charavay, an autograph and print-seller in Paris, among hundreds of other notices, the following:

143 Hancock (John), celebre homme d'Etat américain, gouverneur du Massachusetts, signataire de la Déclaration de l'Indépendence,—Pièce signe comme président du congrès; Baltimore, 1 mars 1777, 1 p. in-fol. obl. Rare.

The connection of names and dates of course would attract the attention of any collector. It would be seen that most possibly it had something to do with Franklin's sojourn in France. It was only the price asked for John Hancock's signature—in fact, much less than his signature usually brought in the autograph market—ten francs. But what was the joy and surprise of its present possessor, upon opening his new purchase, to find that it was nothing more nor less than the missing commission of the Surprise! Where it had been, what has been its history since it was delivered at Versailles, how it came at last into the possession of a little print-shop, no one can tell; but that it had much to do with the foregoing story any one can see. It lies before the author as he writes, and is reproduced in these pages for the first time, that the court of public print may decide the question. That bold Gustavus Conyngham was badly treated by his country and hardly handled by Fate the reader can perceive. He had helped the cause in the way it most needed help, but, notwithstanding, unrewarded, the man who flew the flag in the Channel went broken-hearted to his grave, and now out of the past, too late, comes the authentic proof of his cause and asseverations. The world is a small one and strange things happen in it, can be the only comment.

THE END

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Transcriber's Notes

Punctuation, hyphenation, and spelling were made consistent when a predominant preference was found in this book; otherwise they were not changed.

Simple typographical errors were corrected; occasional unbalanced quotation marks retained. Ambiguous hyphens at the ends of lines were retained.

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IN THE CHANNEL; OR, THE ADVENTURES OF CAPTAIN
GUSTAVUS CONYNGHAM ***

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